

RUBE BURROW,
KING OF OUTLAWS,

AND HIS

BAND OF TRAIN ROBBERS.

AN ACCURATE AND FAITHFUL HISTORY OF THEIR
EXPLOITS AND ADVENTURES.

BY

G. W. AGEE,

Superintendent Western Division Southern Express Company.

PUBLISHERS

THE HENNEBERRY COMPANY
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BURROW, KING OF OUTLAWS, AND HIS BAND OF TRAIN**

ROBBERS ***

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RESPECTFULLY DEDICATED
BY THE AUTHOR
TO HIS COMRADES AND CO-WORKERS
IN THE EXPRESS SERVICE
OF AMERICA.

“Some hapless souls are led astray,
While some, themselves, seek out the way.
Some fall, unthinking, in the pit,
While others seek about for it.

’Tis probable, if Satan should
Strive for the universal good,
And close his gates and bar them well,
Some souls would still break into Hell.”

PREFACE.

SINCE the days of the James and Younger brothers, bold types of Western outlawry, which were the immediate products of the late civil war, no banditti have challenged such universal attention as those led by the famous outlaw, Rube Burrow. The press of the country has woven, from the wildest woof of fancy, full many a fiction touching his daring deeds, and manufacturers of sensational literature have made of the bandit as mystical a genius as the "Headless Hessian of Sleepy Hollow."

With the view of correcting the erroneous accounts heretofore given the public, I have yielded to the solicitations of many friends in the Express service and consented to give a faithful and accurate history, compiled from the official reports of the detectives, detailing the daring deeds, the thrilling scenes and hair-breadth escapes of the outlaw and his band of highwaymen. Important confessions of some of the principal participants in the eight train robberies committed, covering a period of nearly four years, are also given, without color of fiction or the caprice of fancy.

It is the province of this volume, therefore, not to laud evil endeavor, but rather to chronicle the hapless fate of those who, turning aside from the paths of peace and honor, elect to tread the devious and thorny road which leads on to the open gateway, over which is emblazoned, in letters of living fire, the accursed malediction, "All hope abandon, ye who enter here."

G. W. AGEE.

Memphis, Tenn., December, 1890.

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RUBE BURROW.

CHAPTER I.

LAMAR COUNTY, ALABAMA—THE HOME OF THE BURROW FAMILY—BIOGRAPHICAL SKETCH OF RUBE BURROW'S ANCESTORS.

LAMAR County, Alabama, the home of the Burrow family, has become historic as the lair of a robber band whose deeds of daring have had no parallel in modern times, and the halo of romance with which that locality has been invested has converted its rugged hills into mountain fastnesses, its quiet vales into dark caverns, and the humble abodes of its inhabitants into turreted fortresses and robber castles. The county of Lamar, divested of the drapery of sensationalism, is one of the "hill counties" of northern Alabama, and takes high rank in the list of rich agricultural counties of the State. It possesses a charming landscape of undulating hill and dale, watered by limpid streams, and amid fertile valleys and on the crests of its picturesque uplands are found the peaceful and prosperous homes of many good and law-abiding people, thus proving that good people are indigenous to every clime and land where the hand of civilization has left its kindly touch. "It does not abound in grand and sublime prospects, but rather in little home scenes of rural repose and sheltered quiet."

Lamar County was formed in 1868 from the most fertile portions of Fayette and Marion Counties, and has changed its name three times; first it was called Jones, then Sanford, and, finally, it was named Lamar, in honor of the distinguished statesman and jurist who now adorns the bench of the Supreme Court of the United States. This section of the State, though not until the last decade possessed of the advantages of development which more fortunate sections have long enjoyed, has always had an excellent citizenship. Here, in the olden time, were found ardent followers of the political faith of the founders of the Republic, and while the bonfires of the zealous pioneers of that day and time lighted the hill tops, the valleys of that section of northern Alabama reverberated with the campaign songs of their enthusiastic compatriots. From this section, no less renowned in war than in peace, a large company of soldiers was sent to the Creek war, and a full

quota of gallant men went forth to the Confederate army, three companies of which were in the Twenty-sixth Alabama Infantry, one of the most superb regiments in the Army of Northern Virginia.

This much, in truth and justice, should be said in behalf of Lamar County, which has gained an unenviable notoriety as the birthplace of Rube Burrow, and later as the rendezvous of his confreres in crime. When metropolitan places, with well-equipped police powers, give birth to such social organizations as the anarchists in Chicago and the Italian Mafia in New Orleans, and become asylums for organized assassins, the good people of these cities are no more responsible for the resultant evils than are the law-abiding people of Lamar County, Alabama, for the deeds of outlawry of which one of her citizens, by the accident of birthplace, was the chief exponent. The Burrow family, however, were among the earliest settlers of Fayette County, Alabama, from which Lamar was taken, and from their prolific stock descended a numerous progeny, who, by the natural ties of consanguinity, formed a clan amongst whom the bold outlaws found ready refuge when fleeing from the hot pursuit organized in the more populous localities which were the scenes of their daring crimes. Chief among Rube's partisans and protectors was James A. Cash, a brother-in-law.

Allen H. Burrow, the father of Rube, was born in Maury County, Tenn., May 21, 1825, his parents moving to Franklin County, Ala., in 1826, and who, in 1828, settled within the vicinity of his present home in Lamar County, Ala. In August, 1849, Allen Burrow married Martha Caroline Terry, a native of Lamar County, who was born in 1830. From this union were born ten children—five boys and five girls. John T. Burrow, the oldest child, lives near Vernon, the county seat of Lamar. Apart from harboring his brother Rube, while an outlaw, he has always borne a fair reputation. He is of a rollicking disposition, possesses a keen sense of the ridiculous, is a fine mimic and recounts an anecdote inimitably, and, though crude of speech and manner, having little education, is a man of more than average intelligence. Jasper Burrow, the second son, is a quiet, taciturn man; he lives with his father, and is reputed to be of unsound mind. Four of the daughters married citizens of Lamar County. The youngest, who bears the prosaic name of Ann Eliza, is a tall blonde of twenty summers, and is yet unmarried. She is of a defiant nature, has a comely and attractive face, and is a favorite with many a rustic youth in the vicinage of the Burrow

homestead. She was devoted to Rube, afforded a constant medium of communication between the parental home and the hiding place of the outlaws, and was the courier through whom Rube Smith was added to the robber band while in rendezvous in Lamar County.

Reuben Houston Burrow, the outlaw, was born in Lamar County, December 11, 1854. His early life in Lamar was an uneventful one. He was known as an active, sprightly boy, apt in all athletic pursuits, a swift runner, an ardent huntsman and a natural woodsman. He possessed a fearless spirit, was of a merry and humorous turn, a characteristic of the Burrow family, but he developed none of those traits which might have foreshadowed the unenviable fame acquired in after-life.

James Buchanan Burrow, the fifth and youngest son, was born in 1858, and was, therefore, four years the junior of his brother Rube, to whose fortunes his own were linked in the pursuit of train robbing, and which gave to the band the name of the "Burrow Brothers" in the earliest days of its organization.

The facilities for acquiring education in the rural districts of the South, half a century ago, were limited, and Allen Burrow grew to manhood's estate, having mastered little more than a knowledge of the "three R's," and yet talent for teaching the young idea how to shoot was so scant that Allen Burrow, during the decade immediately preceding the late war, was found diversifying the pursuits of tilling the soil with that of teaching a country school. Among his pupils was the unfortunate postmaster of Jewell, Ala., Moses Graves, who was wantonly killed by Rube Burrow in 1889. Many anecdotes are current in Lamar County, illustrating the primitive methods of pedagogy as pursued by Allen Burrow. It is said that the elder Graves, who had several sons as pupils, withdrew the hopeful scions of the Graves household from the school for the reason that after six months' tuition, he having incidentally enrolled the whole contingent in a spelling bee, they all insisted on spelling every monosyllable ending with a consonant by adding an extra one, as d-o-g-g, dog; b-u-g-g, bug.

Allen Burrow served awhile in Roddy's cavalry during the civil war, but his career as a soldier was brief and not marked by any incident worthy of note. Soon after the close of the war he made some reputation as a "moonshiner," and was indicted about 1876 for illicit distilling. He fled the

country in consequence, but after an absence of two years he returned and made some compromise with the Government, since which time he has quietly lived in Lamar County. While possessed of some shrewdness, he is a typical backwoodsman, with the characteristic drawling voice and quaint vernacular peculiar to his class. Martha Terry, the wife of Allen Burrow, claims to be possessed of the peculiar and hereditary gift of curing, by some strange and mysterious agency, many of the ills to which flesh is heir, and had she lived in the days of Cotton Mather she might have fallen a victim to fire and fagot, with which witchcraft in that day and time was punished. There are many sensible and wholly unsuperstitious persons in northern Alabama, where old Mrs. Burrow is well known, who believe in her occult powers of curing cancers, warts, tumors and kindred ailments, by the art of sorcery. Capt. J. E. Pennington, a prominent citizen, and the present tax collector of Lamar County, tells of two instances in his own family in which Dame Burrow removed tumors by simple incantation. The witch's caldron "boils and bubbles" on the hearthstone of the Burrow home, and whether the dark and fetid mixture contain

"Eye of newt and toe of frog,
Wool of bat and tongue of dog;
Adder's fork and blind worm's sting,
Lizard's leg and owlet's wing,"

or what not, many good but credulous people come from far and near to invoke the charm of her occult mummary, despite the fact that our latter-day civilization has long since closed its eyes and ears to the arts of sorcery and witchcraft. Here, amid the environments of ignorance and superstition, evils resulting more from the inherent infirmities of the rugged pioneer and his wife than the adversities of fortune, the family of ten children was reared. It is from such strong and rugged natures, uneducated and untrained in the school of right and honesty, that comes the material of which train robbers are made.

CHAPTER II.

RUBE LEAVES LAMAR COUNTY, ALABAMA—HIS EARLY LIFE IN THE LONE STAR STATE—HIS BROTHER JIM JOINS HIM—THE BELLEVUE, GORDON AND BEN BROOK, TEXAS, TRAIN ROBBERIES.

RUBE BURROW's old companions in Alabama recall distinctly the day he left Lamar County for Texas in the autumn of 1872. He left the old and familiar scenes of his boyhood, full of hope and eager to test the possibilities that Texas, then the Eldorado of the southern emigrant, opened up to him. He was but eighteen years of age when he took up his abode with his uncle, Joel Burrow, a very worthy and upright man, who owned and tilled a small farm in Erath County, that State. In 1876 Rube was joined by Jim Burrow, his younger brother, who remained in Texas until 1880, when, returning to Lamar County, Alabama, he married and resided there until 1884, when he rejoined his brother Rube in Texas, taking his wife thither. Jim Burrow was a "burly, roaring, roistering blade," six feet tall, as straight as an Indian, which race of people he very closely resembled, with his beardless face, his high cheek bones and coal-black hair. He was in every way fitted for following the fortunes of Rube, and had he not succumbed to the unhappy fate of imprisonment and early death he would have been a formidable rival of his brother Rube in the events that marked his subsequent career.

Rube worked awhile on his uncle's farm, but soon drifted into that nondescript character known as a Texas cowboy. Meantime, in 1876, he married Miss Virginia Alvison, in Wise County, Texas, and from this marriage two children were born, who are now with their grandparents in Alabama, the elder being a boy of twelve years. This wife died in 1880, and he again married in 1884 a Miss Adeline Hoover, of Erath County, Texas. These events served to restrain his natural inclinations for excitement and adventure, and it may be truthfully said that from 1872 to 1886 Rube Burrow transgressed the law only to the extent of herding unbranded cattle

and marking them as his own. In this pursuit he traversed the plains of Texas, enjoying with an excess of keen delight a companionship of kindred spirits, whose homes were in the saddle, and who found their only shelter by day and by night under the same kindly skies. As he grew to manhood he had given full bent to his love for the athletic pursuits incident to life upon the then sparsely settled plains of the Lone Star State. Taming the unbridled broncho, shooting the antelope, and lassoing the wild steer, under whip and spur, he soon gained fame as an equestrian, and was reckoned as the most unerring marksman in all the adjacent country. With a reputation for all these accomplishments, strengthened by an innate capacity for leadership, Rube ere long gathered about him a band of trusty comrades, of which he was easily the leader.

A short time prior to this period, at varying intervals, all Texas had been startled by the bold and desperate adventures of Sam Bass and his band of train robbers, with which Rube was erroneously supposed to have been associated. Possibly inspired, however, by the fame which Sam Bass had achieved, and the exaggerated reports of the profits of his adventures, contrasted with the sparse returns from his more plodding occupation, Rube was seized with a desire to emulate his deeds of daring, and achieve at once fame and fortune.

At this time, December 1, 1886, his party, consisting of Jim Burrow, Nep Thornton and Henderson Bromley, returning from a bootless excursion into the Indian Territory, rode in the direction of Bellevue, a station on the Fort Worth and Denver Railway. Here Rube proposed to rob the train, which they knew to be due at Bellevue at eleven o'clock A. M. Hitching their horses in the woods a few hundred yards away they stealthily approached a water-tank three hundred yards west of the station, and where the train usually stopped for water. Thornton held up the engineer and fireman, while Rube, Bromley and Jim Burrow went through the train and robbed the passengers, leaving the Pacific Express unmolested. They secured some three hundred dollars in currency and a dozen or more watches. On the train was Sergeant Connors (white), with a squad of U. S. colored soldiers, in charge of some prisoners. From these soldiers were taken their forty-five caliber Colt's revolvers, a brace of which pistols were used by Rube Burrow throughout his subsequent career. Rube insisted on the prisoners being liberated, but they disdained the offer of liberty at the

hands of the highwaymen and remained in charge of the crest-fallen soldiers, who were afterwards dismissed from the service for cowardice. Regaining their horses the party rode forth from the scene of their initial train robbery, out into the plains, making a distance of some seventy-five miles from the scene of the robbery in twenty-four hours.

The ill-gotten gains thus obtained did not suffice to satisfy the greed of the newly fledged train robbers, and early in the following January another raid was planned. At Alexander, Texas, about seventy-five miles from Gordon, all the robbers met, and going thence by horseback to Gordon, Texas, a station on the Texas and Pacific Railway, they reached their destination about one o'clock A. M., on January 23, 1887. As the train pulled out of Gordon at two o'clock A. M., Rube and Bromley mounted the engine, covered the engineer and fireman, and ordered them to pull ahead and stop at a distance of five hundred yards east of the station. The murderous looking Colt's revolvers brought the engineer to terms, and the commands of the highwaymen were obeyed to the letter. At the point where the train was stopped, Jim Burrow, Thornton, and Harrison Askew, a recruit who had but recently joined the robber band, were in waiting. As the train pulled up, Askew's nerve failed him, and he cried out, "For heaven's sake, boys, let me out of this; I can't stand it." Askew's powers of locomotion, however, had not forsaken him, and he made precipitate flight from the scene of the robbery. Rube and Bromley marched the engineer and fireman to the express car and demanded admittance, while the rest of the robbers held the conductor and other trainmen at bay. The messenger of the Pacific Express Company refused at first to obey the command to open the door, but put out the lights in his car. A regular fusilade ensued, the robbers using a couple of Winchester rifles, and after firing fifty or more shots the messenger surrendered. About \$2,275 was secured from the Pacific Express car. The U. S. Mail car was also robbed, and the highwaymen secured from the registered mail about two thousand dollars.

Mounting their horses, which they had left hidden in the forest hard by, they rode off in a northerly direction, in order to mislead their pursuers. Making a circuit to the south they came upon the open plains, which stretched far away towards the home of the robber band. The trackless plain gave no vestige of the flight of the swift-footed horses as they carried their

riders faster and still faster on to their haven of safety, which they reached soon after daylight on the second morning after the robbery.

The better to allay suspicion the robber comrades now agreed to separate, and all made a show of work, some tilling the soil, while others engaged in the occupation of herding cattle for the neighboring ranch owners.

Rube and Jim Burrow, about this time, purchased a small tract of land, paying six hundred dollars for it. They also bought a few head of stock and made a fair showing for a few months at making an honest living. The restless and daring spirit of Rube Burrow, however, could not brook honest toil. As he followed the plowshare over his newly purchased land, and turned the wild flowers of the teeming prairie beneath the soil, he nurtured within his soul nothing of the pride of the peaceful husbandman, but, fretting over such tame pursuits, built robber castles anew.

While planting a crop in the spring of 1887 he had for a fellow workman one William Brock, and finding in him a dare-devil and restless spirit he recounted to him his successful ventures at Bellevue and at Gordon. Thus another recruit was added to his forces, and one, too, who was destined to play an important role, as subsequent events will show. Time grew apace, and Rube wrote, in his quaint, unscholarly way, affectionate epistles to his relatives in Lamar County, Ala., sending them some of his ill-gotten gains. Two of these letters, written on the same sheet of paper, the one to his brother, John T. Burrow, the other to his father and mother, at Vernon, Ala., are here given *verbatim et literatim*, and show that a collegiate education is not a necessary adjunct to the pursuit of train robbing.

ERATH COUNTY, TEX., March 10, 1887.

Dear Brother and family:

All is well. No nuse too rite. the weather is good for work and wee ar puting in the time. Wee will plant corn too morrow. Mee and james Will plant 35 acreys in corn. Wee wont plant Eny Cotton Wee hav a feW Ooats sode and millet. i am going too Stephens Vill too day and i Will male this Letr. J. T. when you rite Direct your letr too Stephens Vill Erath county and tell all of the Rest too direct there lets too the

same place. i want you and pah too keep that money john you keep \$30.00 and pah \$20.00. the Reason i want you to hav \$30 is because you have the largest family. john i don't blame pah and mother for not coming out here for they ortoo no there Buisness. john i want you too rite too me. i did think i would Come Back in march. i cant come now. Rite.

R. H. BURROW
too J. T. BURROW.

ERATH COUNTY, TEXAS, March 10, 1887.

Dear father & mother:

Eye will Rite you a few Lines. all is well. Elizabeth^A has a boy. it was bornd on the 28 of february. She has done well. Mother i want you too pick mee out one of the prityest widows in ala. i will come home this fawl. pah i want john thomas too hav 30 dollars of that money eye want you too Buy analyzer a gold Ring. it wont cost more than \$4. i told her i would send her a present. pah that will take a rite smart of your part of the money but it will come all right some day for I am going to sell out some time and come and see all of you. Rite.

R H BURROW
too A H BURROW.

^A Elizabeth was the wife of his brother Jim.

“We have sowed a few oats,” wrote Rube. Whether this was meant as a *double-entendre*, and referred not only to a strictly domesticated brand of that useful cereal, but also to the “wild oats” which Rube and Jim had been sowing, and which bore ample fruitage in after years, it is useless to speculate.

In the midst of seed-time Rube tired of his bucolic pursuits, and concluded to try his fortunes at Gordon again, and on the tenth of May the chief gathered his little band at his farm in Erath County and, under cover

of a moonless night, rode northward to the Brazos River, about fifty miles distant. They found to their disappointment that the river was very high and was overflowing its banks, rendering it impossible to cross it by ferry or otherwise, and spending the day in the adjacent woodland, they rode back to Alexander the following night, to await the subsidence of the floods, which, however, kept the Brazos River high for some weeks.

Again, on the night of June 3d, by appointment, Henderson Bromley and Bill Brock met Rube and Jim Burrow at their home near Stephenville, in Erath County, and, after consultation, Ben Brook, Texas, a station on the Texas and Pacific Railway, seventy-five miles south of Fort Worth, was selected as the scene of their third train robbery.

After a hard night's ride they were at daylight, on June 4th, within a few miles of Ben Brook. Having ascertained that the north-bound train would pass the station about 7 P. M. they secreted themselves in the woods near by until dark, at which time they rode quietly to within a few hundred yards of the station. Rube Burrow and Henderson Bromley had blackened their faces with burnt cork, while Jim Burrow and Brock used their pocket handkerchiefs for masks. Rube and Bromley boarded the engine as it pulled out of the station and, with drawn revolvers, covered the engineer and fireman, and ordered the former to stop at a trestle a few hundred yards beyond the station. Here Jim Burrow and Brock were in waiting, and the two latter held the conductor and passengers at bay, while the two former ordered the engineer to break into the express car with the coal pick taken from the engine, and again the Pacific Express Company was robbed, the highwaymen securing \$2,450. The passengers and mail were unmolested.

Regaining their horses within thirty minutes after the train first stopped at the station, the robbers rode hard and fast until noon of the following day. Through woodland and over plain, ere dawn of day they had fled far from the scene of the robbery of the previous night, and a drenching rain, which commenced to fall at midnight, left not a trace of the course of their flight. Here the robbers remained in quiet seclusion, disguising their identity as train robbers by a seeming diligence in agricultural pursuits, until September 20, 1887, when they made a second raid on the Texas Pacific Road, robbing the train at Ben Brook station again.

When Rube and Bromley mounted the engine, wonderful to relate, it was in charge of the same engineer whom the robbers had “held up” in the robbery of June 4th, and the engineer, recognizing Rube and Bromley, said, as he looked down the barrels of their Colt’s revolvers, “Well, Captain, where do you want me to stop this time?” Rube laconically replied “Same place,” and so it was that the train was stopped and robbed, the same crew being in charge, on the identical spot where it had been robbed before. The messenger of the Pacific Express Company made some resistance, but finally the robbers succeeded in entering his car and secured \$2,725, or about \$680 each.

The highwaymen reached their rendezvous in Erath County, having successfully committed four train robberies.

About the middle of November following, Rube and Jim paid a visit to their parents in Lamar County, Ala., Jim taking his wife there and Rube his two children. They remained in Lamar County some weeks, visiting their relatives and walking the streets of Vernon, the county seat, unmolested, as neither of the two men had at that time ever been suspected of train robbing.

CHAPTER III.

THE GENOA, ARK., ROBBERY, DECEMBER 9, 1887—ARREST OF WILLIAM BROCK—HIS CONFESSION.

EXPRESS Train No. 2, on the St. Louis, Arkansas and Texas Railway, left Texarkana, Ark., on the evening of December 9, 1887, at 5:50 P. M., fifty minutes late. Nothing unusual occurred until just as the train began to pull out of Genoa, Ark., a small station thirty miles north of Texarkana. Engineer Rue, on looking about, discovered two men standing just behind him, with drawn revolvers, covering himself and fireman.

“What are you doing here?” asked Rue.

The answer was, “Go on! Don’t stop! If you stop I will kill you!” And further: “I want you to stop about one and a half miles from here, at the north end of the second big cut. I don’t want to hurt you or your fireman, but we are going to rob this train or kill every man on it.”

Arriving at the spot designated, the leader abruptly said, “Stop!” The engineer and fireman were then ordered down from the engine, and the leader said, “Boys, how are you all?”

A voice from the brush, where a third man was in waiting, said, “All right, boys!” The latter then walked towards the passenger coaches and with a sixteen-shooting rifle opened fire in the direction of the coaches. The two men in charge of the engineer and fireman were closely masked, and were armed with a brace of forty-five caliber Colt’s pistols, with Winchester rifles strapped across their backs. Messenger Cavin, of the Southern Express Company, put out his lights and, like Br’er Fox, “lay low” for some time. The robbers demanded admittance, showering volleys of oaths and shots in one common fusilade. The heavy Winchesters sped shot after shot through the car, the balls piercing it from side to side, and yet young Cavin held his ground until Rube Burrow ordered the engineer to bring his oil can and saturate the car with the contents. The engineer was ordered to set fire to the car, but before doing so he made an earnest appeal to the messenger,

who agreed to surrender, under the condition that he should not be hurt. The robbers were some thirty minutes gaining access to the car. Having done so, they secured about two thousand dollars.

This was the first train robbery in the territory of the Southern Express Company for a period of seventeen years. Not since the robbery of the Southern Express car on the Mobile and Ohio Railway at Union City, Tenn., in October, 1870, by the celebrated Farrington brothers, had highwaymen made a raid on a Southern Express train. The Pinkerton Detective Agency having been given charge of the Union City, Tenn., case, and all the participants in that crime having been punished to the full extent of the law, the management of the Southern Express Company called to their aid at once the Pinkerton force.

Assistant Superintendent McGinn, of the Chicago agency, reached Texarkana in about forty-eight hours after the robbery, and immediately repaired to the scene of the occurrence. Genoa is a small railroad station only a short distance from Red River. The winter rains had filled the bottom lands with water, and the dense and impenetrable growth of matted brush and vines, denuded of their foliage, made the landscape a picture desolate and uninviting. Here in this wild woodland came Superintendent McGinn, on the morning of the third day after the robbery, to take up the tangled skein from which to weave the net for the capture of the train robbers.

On the night of the robbery a report of the occurrence had been telegraphed to the officials of the Express Company at Texarkana, and a posse at once started to the scene of the robbery. A few miles north of Texarkana the posse, being in charge of Sheriff Dixon, of Miller County, came upon three men on the railway track, walking towards Texarkana. This was about three o'clock A. M. The three men were allowed to pass, when the sheriff's posse, turning about, commanded them to halt. The latter ran, taking refuge in a railway cut some thirty yards distant, and the sheriff's posse at once opened fire, which was promptly returned, and a score or more of shots were exchanged.

The night being very dark the firing on each side was done at random, and no casualties ensued. After daylight that morning two rubber coats and a slouch hat were found in the vicinity of the fight, and these articles were subsequently identified as having been worn by the men who robbed the

train at Genoa. The hat bore the name of a firm in Dublin, Texas, and the coats, which were new, bore the simple cost mark "K. W. P." Here was an important clew, proving that the robbers had at least purchased the hat at Dublin. Thither the detectives went, with the hat and coats, hoping to have the purchasers identified. Calling upon the Dublin firm, diligent inquiry failed to disclose the purchaser of the hat, the firm having sold hundreds of a similar style during the season.

No trace of the purchasers of the coats could be found at Dublin, but the detectives felt that they were on a hot trail and renewed their exertions. To Corsicana, Waco, Stephenville and other points adjacent they journeyed, exhibiting the coats, with the cabalistic letters, until finally McGinn arrived at Alexander, Texas, as if carried there by that intuition common to shrewd men of his profession, and plied his inquiries anew. Falling in with a salesman of the firm of Sherman & Thalwell, to whom the coats were exhibited, the answer of the young salesman, Hearn, was:

"That is the cost mark of Sherman & Thalwell. I put those letters, 'K. W. P.,' on myself." He then seemed lost a moment in thought, and resumed:

"We had a lot of that brand, and I sold a coat like that to one Bill Brock, who lives, when at home, at his father-in-law's, five miles from Alexander, on the road to Dublin." He further stated that Brock had been away, he thought, up about Texarkana, and added:

"At the time Brock made the purchase there was a man with him to whom I also sold a similar coat, and who afterwards went to Alabama, and who I think is there now."

Here was a ray of light upon the dark mystery of December 9th at Genoa. The name, William Brock, had been copied from the hotel register at Texarkana, where it was found under date of December 3d, six days before the robbery, and was in the possession of the detectives who were on the alert for the owner.

A few days prior to this occurrence another detective was shadowing a man in Waco, Texas, who was spending money freely, and who answered the description of one of the train robbers. Following him to Dublin, Texas, the man was ascertained to be Brock, and here the detectives, comparing

notes, found themselves in possession of abundant evidence upon which to arrest Brock. Before this was done, however, the important disclosure was made that Brock had two companions, Rube and Jim Burrow, and as these men answered the descriptions of the men who committed the robbery at Genoa the detectives felt quite sure that the names of all three of the robbers were at least known. Further investigation, however, developed the fact that Rube and Jim Burrow had recently gone to Alabama, and the immediate arrest of Brock was determined upon.

At three o'clock on the morning of December 31, 1887, twenty-two days after the robbery, Wm. Brock was arrested at his home near Dublin, Texas. The detectives demanded admittance and Brock surrendered without firing a shot, although he had a forty-five caliber Colt's revolver and fifty cartridges in a belt under his pillow, and also one of the Winchester rifles used at Genoa. The prisoner was taken to Texarkana and confronted with engineer Rue, who thoroughly identified him. He was also identified by parties who saw him in the immediate vicinity of Genoa. Brock could not stand the pressure brought to bear on him by the wily detectives, and in the course of a few days made a clean breast of his participation in the Genoa, Ark., robbery, confirming the information already in possession of the detectives as to the complicity of Rube and Jim Burrow in the daring adventure.

From Brock it was learned that Rube and Jim Burrow had, about November 15, 1887, gone to Lamar County, Ala. By agreement, Brock had joined the Burrow brothers at Texarkana on December 3d, where all three registered at the Cosmopolitan Hotel, Brock in his own name, and Rube and Jim as R. Houston and James Buchanan, respectively, each using his middle name as a surname. They had robbed the train at Genoa on the night of December 9th, and while walking toward Texarkana in the early morning of the 10th had been fired upon by the sheriff's posse. Taken by surprise, he and Jim Burrow had dropped their coats, while Rube had lost his hat. After going a few miles south of Texarkana they separated, Brock going into Texas and Rube and Jim making their way into Lamar County, Ala.

On the 29th of December Rube wrote the following letter to Brock, which was received by Mrs. Brock, and turned over to the detectives after her husband's arrest:

Dec. 20-29-87.

Mr. W. L. Brock:

All is well and hope you the same Bill notis everything and let me know Bill eye will sell you my place ef you want it at 7 hundred let me here from ef you want it eye will have all fixt right and send you the tittle in full let me here from you soon.

R. H. too W. L. B.

The figures 20-29-87 meant that Rube and Jim reached Lamar County on the 20th and the letter was written on the 29th of December. William Brock detailed to the detectives the history of the Bellevue and Gordon robberies, as gathered from Rube, and of the Ben Brook robberies, in which he himself participated. He seemed thoroughly penitent over his crimes, and, after reaching Texarkana, disclosed the fact that he had about four hundred dollars of the proceeds of the Genoa robbery, which he proposed to and did restore.

Brock was a rough, uncouth-looking fellow, about five feet eleven inches high; weighed about 180 pounds, and was a strong-chested, broad-shouldered fellow, whose forbidding features made him a typical train robber. He was about thirty-one years old, and although born in Georgia, his parents moved to Texas when he was quite a child. He was wholly illiterate, not being able to either read or write, and the environments of corrupt companionship tended to fill his untutored mind with evil only. Brock made an important witness in the trials of the participants in the various train robberies in Texas, and was afterwards given a comparatively light sentence as a punishment for his offenses.

CHAPTER IV.

THE PINKERTONS AFTER RUBE AND JIM BURROW IN LAMAR COUNTY—THEIR NARROW ESCAPE.

ASCERTAINING definitely that at the time of Brock's arrest Rube and Jim Burrow were not in Texas, but supposed to be in Lamar County, Ala., Superintendent McGinn, of the Pinkerton Agency, left Texarkana January 5, 1888, accompanied by two of his detectives, for the purpose of capturing them.

On arriving at Fayette Court-House, Ala., McGinn summoned to his aid the then sheriff of Lamar County, Fillmore Pennington, a very courageous and efficient officer, and the party left for Vernon, the county seat of Lamar County, about three o'clock P. M., January 8th. The night was dark, and continuous rainfalls had rendered the roads well-nigh impassable. It was not until ten o'clock that the distance of twenty miles was made, and the detectives, under the guise of land buyers, reached Vernon.

On the succeeding day a heavy rain set in about daylight and continued throughout the day. The weather was, therefore, suited neither to the outing of land buyers nor to a visit from Rube and Jim to the town, as the sheriff had so confidently expected. The detectives kept their rooms in the hotel during the day, inspecting a large assortment of mineral specimens which were brought in by anxious owners of valuable mining properties in that section.

That night it was determined to arrange a raid upon the house of Jim Burrow, who had his family in a small dwelling about four miles from Vernon, with the hope of finding both Rube and Jim. Accordingly, on the morning of the 10th of January, Supt. McGinn, at 2:30 o'clock, left Vernon for the house of Jim Burrow. Detectives Carney and Wing were on horseback, with Deputy-Sheriff Jerry as a guide. Sheriff Pennington and Detectives Williams and Wilbosky were in a wagon with McGinn. The party drove to a point designated by the guide as being half a mile from Jim

Burrow's house. Leaving a guard in charge of the horses, the posse quietly surrounded the house, and while closing in upon the place, just as the day was dawning, the guide informed the detectives that he was mistaken in the house, but that it was another house, pointing to one about a half mile distant, in which a light was seen. On arrival at the second house the guide found himself again in error. It was then daylight. The detectives were about to withdraw and get their horses and wagon out of the way before they should be discovered, when they found they were already observed by the inmates of the house. It was then too late to retreat and await the cover of the succeeding night to surround the house of Jim Burrow, then ascertained to be still about two miles further on. Their only hope was to go at once and risk the danger of being discovered while approaching the place after daylight.

Pushing forward, with great anxiety as to the result, the house they were seeking was soon visible on the slope of a hill near the edge of the timber. Deploying their forces they advanced quickly, and when within about one hundred yards a crushing, tearing sound was heard in the rear of the building. Jim Burrow had discovered their approach and ran so swiftly from the house as to tear the door from its hinges. Shot after shot from the Winchesters of the detectives was fired at the young robber as he fled. Several of the bullets perforated his clothing, but he succeeded in reaching the cover of the woods and escaped, to the grievous disappointment of the detectives, whose vigilance and energy had been defeated through the stupidity of the guide.

After this escapade there was hurrying to and fro among the kinspeople of the Burrow family, and preparations were set afoot to apprise Rube, who was then at Kennedy, Ala., eighteen miles distant, of the attempt to capture Jim, and of the fact that the detectives had visited his father's house in search of him. Henry Cash met Rube about one mile out of Kennedy and recited the events of the morning. Cash was *en route* to Kennedy to make some preparation for his marriage, which was to occur the following day. Rube awaited his return and the two then rode back towards Vernon by bridle paths, and met Allen Burrow, who had appointed a meeting-place for the two brothers, that night, near the house of one Green Harris. From this point they started afoot at midnight, January 10th, traveling in a south-

easterly direction, and before daylight were beyond the confines of Lamar County.

CHAPTER V.

LUBE AND JIM BOARD AN L. & N. RAILWAY TRAIN AT BROCK'S GAP—THEIR ARREST AND THE SUBSEQUENT ESCAPE OF RUBE.

ON the twenty-second day of January succeeding their escape from Lamar, Rube and Jim boarded a Louisville and Nashville passenger train, south bound, at Brock's Gap, a few miles south of Birmingham. Meantime an accurate description of the brothers had been obtained, and descriptive circulars had been scattered broadcast by the officials of the Southern Express Company, one of which was in possession of Conductor Callahan, on whose train the robbers had taken passage. He was not certain of their identity, and simply sent a telegram to Chief Gerald, of the police force of Montgomery, to which point they had paid fare, which read as follows: "Have special officer meet number five."

Captain John W. Martin, one of the most efficient officers of the force, met the train. The night was rainy, and Captain Martin wore a rubber coat and slouch hat, which completely concealed his identity. The train pulled into the depot just as Captain Martin arrived, and he inquired of the conductor what was wanted. The conductor replied, "I think those two fellows walking down the track there, and who boarded my train at Brock's Gap, are the Burrow brothers."

Captain Martin at once called to Officer McGee, who was on duty at the depot, and, like himself, attired in rain coat and slouch hat, and imparted to him the information received. The officers then walked toward the men, who were some distance away, and hailed them, saying: "You can not go through that railroad cut at night."

Rube replied: "We are going to the country to get timber, but would like to get a boarding-house for the night."

Captain Martin said, "We are going up town and will show you one."

Rube, thinking the officers were railroad men, replied, "All right," and, joining them, the four men walked a distance of about a half a mile, when, on reaching the police station, Captain Martin inserted the key in the door, and while in the act of unlocking it Rube asked, "What place is this?"

Captain Martin, shoving the door, which was adjusted with a heavy spring, half open, with one hand, laid the other on Rube's shoulder and said: "This is the office of the Chief of Police, and you boys may consider yourselves under arrest."

"I reckon not," replied Rube, and straightway made a break for liberty.

Captain Martin grappled with him, and the heavy door of the station-house closing, caught his rubber coat in a vise-like grip, and held him fast. Soon freeing himself, however, by pulling out of his coat, he dashed after Rube, who had broken away, and after running some thirty paces, turned and saw his brother Jim down, with a police officer on top of him. Jim, in attempting to break away, had fallen, in the scuffle with Officer McGee, over a street hydrant.

At this moment Rube, seeing the officer had started in pursuit, turned and fled like a deer up the street. Neil Bray, a printer, being on the opposite side of the street, joined the officer in the pursuit and was shot by Rube, who twice fired upon him, one of the shots taking effect in the left lung and nearly causing his death.

Out into the darkness Rube fled, leaving Jim in the hands of the officers, and scaling a fence some hundred yards ahead he was soon lost to his pursuers.

Jim was taken to police headquarters and gave his name as Jim Hankins, and said the other man's name was Williams, and he had only known him three weeks. However, while *en route* to Texarkana, he confessed his identity, and said to Capt. Martin:

"I am Jim Burrow, and the other man is my brother Rube, and if you give us two pistols apiece we are not afraid of any two men living."

He further stated that while walking up the street from the depot he became satisfied they were in the hands of the police, but as Rube had the only pistol, he having failed to secure his in his sudden flight from his home in Lamar County, he was looking for Rube to make the first break. Rube,

however, suspected nothing until he reached the police station. When afterwards chided by friends for his failure to assist Jim, in view of the fact that the latter was unarmed, Rube replied that he thought the whole of Montgomery was after him.

The next day, realizing the *faux pas* of the previous night, and the notorious character of the fugitive, the entire police force of Montgomery joined in the chase. The city, its suburban districts and the adjacent country all swarmed with anxious pursuers.

No trace of Rube, however, was found until just before dark, when Officers Young and Hill, having searched a negro cabin about five miles south of Montgomery, without result, rode off in the direction of the city. After leaving the house a negro boy came running after them and informed the officers that the man for whom they were searching had just gone into the cabin they had left. Rube, hungry and exhausted, had seen his pursuers leave the cabin, and immediately thereafter went in and asked for something to eat.

Young and Hill rode back at once in company with the boy, and instructed him to go in and tell the man to come out. They were about thirty paces in front of the cabin, when Rube came to the door, and, looking out, saw a solitary horseman in front of the cabin. He deliberately sat down in a chair in the doorway and pulled off his boots, while Officer Young dismounted. Hill had covered the rear of the cabin.

Taking his boots in his left hand, Rube held his trusty revolver in his right. His chief forte was a running fight. With the agility of an Indian he sprang from the cabin and bounded away to the swamps, which were distant only about one hundred yards, and as he passed in front of Officer Young the latter rested his breech-loading shot gun on his saddle and fired the contents of both barrels in quick succession at the fleeing desperado, when only about thirty yards distant.

Rube dropped his boots and hat, and to the chagrin of the officer, when he picked them up, he found them filled with number eight birdshot. He had substituted these for his loads of buckshot early in the day to shoot a bird, and had forgotten the fact. Rube carried to the day of his death the marks of the birdshot, which filled his neck and face, but were powerless to stop his flight.

Fifty yards further on a countryman, who had joined the pursuing party, sprang up from behind an embankment, and was in the act of taking aim at twenty paces distant, his gun being charged with buckshot, when Rube wheeled and covered him with his revolver. His pursuer dropped flat to the earth and Rube escaped. He was wont to revert to this incident frequently, afterward and laughingly state what was the truth, that he had fired his last cartridge, and the intrepid courage with which he turned and covered his pursuer with an empty revolver saved his life.

Hatless and bare-footed, the friendless felon now found himself, at dark of night, in a wilderness of swamp, whose treacherous waters were covered with a tangled growth of brush and vines, and chilled with the winter's cold. Exhausted with the toils of the day's flight, his face and neck smarting with the keen pain of the wounds he had just received, hungry and foot-sore, his body quivering with the biting cold—could human flesh and blood be subjected to the frenzy of sharper distress than that which faced Rube as he blindly picked his footing through this *terra incognita*? Plodding through bog and fen, full knee-deep with water, his progress was beset by indescribable perplexities, and so it was nearly midnight when he emerged from the marsh into a field, distant only about three miles from the point at which he had entered it.

A flickering light in a negro cabin a few hundred yards away, on the slope of a hill, gave friendly token of comfort within, but Rube, fearing that some one of his pursuers might be sheltered there, approached it with cautious step. All was still within, save the snoring of the sleeping inmates, and in his dire extremity the outlaw slowly pulled the latch-string which hung without and entered. With bated breath he looked about him. The cheerful log fire alone beamed for him a silent welcome. Noiselessly taking a chair he sat himself before the coveted warmth of the lowly hearthstone, while the old colored man and his family slept on, in blissful ignorance of the presence of their midnight visitor.

The robber tarried only long enough to warm his chilled frame into energy for the task of further flight, and after about one hour's stay he quietly donned the shoes of the black *pater familias*, and, stealthily drawing an old quilt from a couch in which a brood of pickaninnies slept, all unconscious of their loss, he wrapped it about him, and, stepping silently out into the darkness, resumed his journey.

A few miles further on he stole a horse from the stable of a farmer, and, mounting its bare back, rode hard and fast till daylight, when he turned the animal loose in the road, and betaking himself to the protection of the forests that covered the bottom lands of the Alabama River, left no further trace of his course. Here his trail was lost to the detectives, who, after an arduous and vain pursuit of several days, abandoned all further effort in that vicinity.

CHAPTER VI.

RUBE BURROW RETURNS TO LAMAR COUNTY—JOE JACKSON JOINS HIM IN MARCH, 1888—THEIR TRIP INTO BALDWIN COUNTY, ALABAMA.

RUBE BURROW, having effected his escape at Montgomery, and successfully eluded pursuit, it was supposed by the detectives that he would go down into southern Alabama or Florida, as the presence of himself and brother at Montgomery seemed to indicate. Rube, however, was restless and anxious concerning the fate of Jim, and at once made his way back into Lamar County. Soon after reaching home he learned, for the first time, of his brother's incarceration at Texarkana, and also that his old comrade, William Brock, had disclosed the whole history of their operations in Texas, and particularly of the Genoa, Ark., affair.

Rube was heard to say: "Never mind; when I get my partner, Joe Jackson, from Texas, I will wreak my vengeance upon the Southern Express Company." Rube knew, although he had never participated in any of the many robberies which the Sam Bass gang had committed, that the name of "Joe Jackson" was a terror wherever the fame of the Bass gang was known, and that Joe Jackson was the only member of that brutal band of highwaymen who had escaped justice when their chief, Sam Bass, was shot, with a small remnant of his followers, in the streets of Round Rock, Texas. It was thus he sought to herald, as the comrade he was about to select to fill his brother's place, the guerrilla who had unfurled the black banner at Lawrence, Kansas, under the leadership of the notorious Quantrell, and who had drifted into Texas to join Bass and his unholy gang.

While in northern Texas in 1886, Rube had met a young Alabamian who went under the name of Lewis Waldrip. Rube had Waldrip in his employment while herding cattle, and had witnessed his unflinching courage on several occasions while associated with him. Waldrip had, in confidence, given Rube the story of the troubles which had caused him to

flee from his native State and seek refuge in Texas. Soon after his return to Lamar County, in February, 1888, he wrote Waldrip to join him there. The correspondence was conducted through Jim Cash, and about the first of March, 1888, at the house of the latter, the two men, who had separated in 1886 in Texas, met again for the first time. Rube recited his recent history, and acting upon the advice of his friend, whom he had christened "Joe Jackson," the two left for southern Alabama, as Rube had knowledge of the fact that the vicinity in which he was then hiding was being constantly watched by detectives.

Leaving Lamar County afoot, the pair traveled through the woods until they reached Columbus, Miss. They went thence, partly by rail and partly by boat, to Baldwin County, Ala., locating at Dunnaway's log camp, on Lovette's Creek, some forty miles from any railway line, and in one of the most sparsely settled sections of southern Alabama. The trail thither, by the circuitous foot journey out of Lamar County, had been completely covered, and here Rube and his newly found comrade were not only lost to the detectives, but to all the world besides, save the little squad of day-laborers who gathered about the camp-fire at nightfall, after the day's labor was over. This rustic audience Rube was wont to regale with many a humorous tale. Mr. Ward, as he was familiarly called, was the hero of many an adventurous story, and the very life and humor of the camp. Rube's fame had preceded him, even into this retired spot, and he would often bring up the subject of his own outlawry, that he might get an expression from those about him as to the thrilling adventures of which he himself was the hero.

After a stay of some three weeks, during which Rube and his partner labored not only with diligence but with increasing skill (for here it was that Rube was heard to say that John Barnes, who afterwards figured somewhat in his final arrest, taught him how to saw logs), the camp was broken up, Mr. Dunnaway moving his force to a point near Perdido, a station on the Louisville and Nashville Railway.

Rube and Joe then, about May 1st, left the camp, for the reason, perhaps, that the locality was more public, and for the additional reason that Rube began to conceive the idea that he could find a safe refuge among friends in Lamar County, and might render some help to his brother, who was then a prisoner in Arkansas. Setting out, the two men walked until they reached Forest, Miss., where Rube purchased horses for the two. At Dixon,

Miss., Joe, finding his horse a poor traveler, traded him for the “snorting steed” which he subsequently rode in the Duck Hill robbery, and which the detectives finally traced from the scene of that robbery into Lamar County. From Dixon they rode via Oxford, and thence to Berryhill’s, a brother-in-law of Rube Burrow, who moved, soon after his marriage to Rube’s favorite sister, into that section of Mississippi. Here they remained two days, and about the 15th of May rode into Lamar County.

CHAPTER VII.

THE RIDE INTO ARKANSAS TO LIBERATE JIM BURROW— FAILURE AND RETURN TO MISSISSIPPI.

ON his arrival in Lamar County Rube Burrow anxiously inquired after Jim's fate. Jim Cash, the brother-in-law, had visited Little Rock, where Jim was confined in the penitentiary for safe keeping, and had learned that he would be taken about September 5th to Texarkana for trial. Rube brooded over the fatal blunder which had resulted in Jim's capture at Montgomery, and blamed himself all the more because it was against the judgment of his brother that they had boarded the unlucky train. His proud spirit chafed at the thought, also, that he alone, being armed, should have been forced to flee and leave him to his unhappy fate. He therefore resolved, at all hazard, to attempt his rescue.

One moonless night in the latter part of August Rube and Joe Jackson rode out of Lamar County for the avowed purpose of taking Jim from the hands of his captors while *en route* to Texarkana for trial. Joe Jackson, after his capture, told how Rube rose in his stirrups, as he galloped away over the hills of Lamar County at dead of night, and swore that he would carry the boon of freedom to his luckless brother at whatever hazard or peril.

"We will board the train, shoot the officers down, and make Jim a free man, or die in the attempt. Will you give me your hand and pledge me your honor, Joe, to do your part?" asked Rube.

"I will," answered Joe, and grasping each the other's hand they rode forth with renewed courage and hope.

On to Okolona, Miss., thence to Sardis, through Tate County, and on to Helena, Ark., they crossed the Mississippi River at the latter point, and rode thence in a southwesterly direction towards Pine Bluff, and thence to Arkadelphia, Ark., a station on the Iron Mountain Railway, sixty-five miles south of Little Rock.

Ascertaining definitely the date of his trial at Texarkana before leaving Lamar County, they decided to attempt the rescue at one of the smaller stations on the Iron Mountain Railway, either on the north or south bank of the Oauchita River, where, if successful, pursuit could not be so readily organized, and where the dense timber in the adjacent bottoms would furnish ample cover for escape.

At Donaldson, at Malvern, and adjacent stations, these determined men boarded train after train, with cocked revolvers secreted and ready for the bold endeavor, and, finally, moving down to Curtis, a small flag station, they learned that the last south-bound train of that date, September 9th, was not scheduled to stop at Curtis, and their only hope to search it was to ride to Arkadelphia, fifteen miles north.

It was only one hour before the train was due at Arkadelphia. Rube said, "We will make the trip, Joe, or kill our horses." The men were well mounted, and defeat and disappointment had so far only sharpened their energies for the difficult task before them.

This was Sunday night, and Rube knew it was the last train his brother could be expected on, as his case was set for trial the following morning. It was a ride which had the possible alternative of death to the gallant steeds that bore them onward, liberty to an ill-fated brother, or grief and chagrin at the failure of a project on which Rube had set his heart with desperate devotion. Onward they rode, at breathless speed, faster and still faster, till the hill-tops of Arkadelphia hove in sight. At the same time the shrill whistle of the engine announced the approach of the train bearing the manacled brother toward Texarkana, and steaming into the railway station, paused but a moment, as if to take breath, and bounded on, leaving the rescuers, who were several hundred yards away, to their bitter disappointment.

CHAPTER VIII.

RUBE BURROW AND JOE JACKSON LEAVE ARKANSAS— THEY TURN UP AS COTTON PICKERS IN TATE COUNTY, MISSISSIPPI.

CRESTFALLEN and dispirited at the failure of his long cherished project to release his brother Jim, Rube decided to abandon all further effort in that direction and set out on the return journey. Joe Jackson proposed to visit Hot Springs, but Rube did not care to expose himself to the risk of being identified by the cosmopolitan population of that American Baden-Baden, and resolved to return immediately to the east side of the river. It has been popularly supposed that Rube Burrow was accustomed to visit metropolitan places, frequent gambling houses and saloons, and, with a reckless disregard of his personal safety, herald himself as a cattle king, or play the role of gambler. Such was not the case. Bold and fearless as he was in pursuit of his chosen vocation, he kept aloof from populous localities. His long immunity from arrest was due chiefly to the fact that, secluding himself in the wilds of the forest and shunning his fellow-men as far as possible, he habited the earth like a beast of prey.

The two men, on their return trip, traveled in a northeasterly direction, avoiding the public highways wherever practicable. Crossing White River at St. Charles, they rode leisurely on towards Helena, and, under cover of darkness, crossed the river at that point about one week after leaving Arkadelphia. Riding up the east bank of the Mississippi to a point about fifteen miles north of Helena they debouched from the river bottoms, pushing their way through bog and swamp for fifteen miles or more, over ground never perhaps covered by horsemen before, and where no sign of human habitation existed. The robbers were seeking a secure retreat, and this they found in Tate County, Mississippi, on the farm of Fletcher Stevens, about eighteen miles from Senatobia, a station on the Illinois Central Railway. Meantime the detectives of the Southern Express Company had searched every nook and corner of southern Alabama, made several

expeditions into Florida, and had also become satisfied that Rube was not in Lamar County.

In the early part of September the fact was developed that a man answering Rube's description had been seen near St. Charles, Ark., and the trail was taken up and followed into Helena, and thence east of the river a few miles, but all trace was lost in the ride through the swamps, which Rube had correctly divined would foil his pursuers if they should ascertain his presence in that locality. The farm of Fletcher Stevens, located as it was in a thinly settled section, and remote from railway lines, furnished a safe retreat for Rube and his companion, and here they hired themselves as day laborers and began the business of picking cotton about October 1, 1888. Rube was quite an adept at picking cotton, but Joe proved rather an awkward hand, as Mr. Stevens afterward reported; and so Rube, at the price of fifty cents per hundred, earned the larger share of the compensation received for their toil.

Strange to state, these men labored diligently and industriously on this Tate County farm from October 1st till about December 1, 1888, never once leaving the place. At rare intervals they would take their pistols down into the swamps and practice shooting at a target with one or two of their white co-laborers, and in a quiet way made some reputation for their skill as marksmen. Both Rube and Joe, it is said, could hit a silver dollar nine times out of ten, with their forty-five caliber Colt's revolvers, at a distance of seventy-five yards. During their stay on the farm they passed for brothers, Rube assuming the name of Charlie and Joe the name of Henry Davis. Their general demeanor was so quiet and unobtrusive that they betrayed no suspicion of their real identity; and although farmer Stevens, a very respectable and law-abiding citizen, did not relish the fact that his hired help carried such murderous-looking fire-arms, he gave little thought to the matter. On or about the first of December the cotton pickers asked for their pay, which was given them. Mounting their horses, which were in fine condition from the long rest they had enjoyed, they rode quietly away from the scene of their plodding labors.

CHAPTER IX.

JIM BURROW ARRAIGNED—TRIAL POSTPONED—HIS RETURN TO LITTLE ROCK PRISON—LETTERS HOME—HIS DEATH IN PRISON.

MEANWHILE Jim Burrow, at his preliminary examination at Texarkana, soon after his capture, admitted his guilt when confronted with the confession of Wm. Brock and the strong chain of circumstantial evidence that had been woven about him. But while ruminating in the penitentiary, during the interval preceding the fall term of the Miller County Circuit Court, he had evidently reconsidered his original purpose and determined on making a defense and risking the chances of a jury trial. Consequently, on September 10, 1888, the day succeeding the failure of Rube and Joe Jackson to effect his rescue at Arkadelphia, his case was called for trial at Texarkana, on the charge of robbery of the express car at Genoa, Ark. His attorney filed an application for a continuance, on account of the absence of witnesses in Alabama, by whom he alleged he could prove an alibi, and his case was thereupon continued, and he was returned to the state-prison at Little Rock, pending the spring term of the Court. Two days after his return there he wrote to J. A. Cash and his wife the following letters:

SEPT. 14, 1888.

Mr. J. A. Cash:

I am not well but not very sick. I have put off my trial. you Send \$20.00 to my lawyers if you get the order from them. tell Elizabeth and the children that I would like to see them. James you have all the money on hand by the 1st of Oct. that you can. I will send one of my lawyers back there on the 15th of November, he is about such a lawyer as Frank Summers. You was speaking about furnishing me a lawyer from that county. When my lawyer comes back to you send him to Summers, he will take the case. don't any of you come out until I write for you to come—they got three bills against me for train robbery, and the other two for

attempt to murder. I think I will come clear. You collect in my money as fast as you can.

J. B. BURROW.

* * * * *

Mrs. M. E. Burrow:

As I feel better this morning than I did yesterday I will write you a few lines. Elizabeth you all rest easy about me for I think I will best my case—my trial is set to come up the first Tuesday in March. You have \$200.00 on hand by the 15th of November to pay my Lawyers with. One of them is a better lawyer than Frank Summers is. So if you could employ Summers to help them in my case it would be an advantage to me to have counsel from my own state. Tell pa that I will answer his letter soon. Tell the children that I will see them again. Brock's trial was put off so he could be a witness against me. Write all of the news.

J. B. BURROW TO MRS. BURROW.

But Jim, not being a convict and therefore not required to labor, soon began to chafe under the restraint of prison life, which was aggravated by a depressing attack of nostalgia, which soon developed a fever, resulting in delirium. During his ravings, which were continuous for about a week, he talked about his wife and children, his home in Alabama, the stolen money he had hidden, his boyhood adventures and his experiences in Texas, but his statements were so incoherently mingled that it was impossible to make an intelligent narration of them. On October 5, 1888, his earthly career was terminated by death, and his unhonored grave is surrounded by those of such hapless fellows as have succumbed to the rigors of prison experience, leaving their bodies with their captors, while their spirits have slipped through the bars and gone for final trial before the Last Tribunal.



JIM BURROW.



WILLIAM BROCK.

CHAPTER X.

THE DUCK HILL, MISS., ROBBERY—THE KILLING OF PASSENGER CHESTER HUGHES.

ON the cold and cheerless night of December 15, 1888, the north-bound express train of the Illinois Central Railway, which left New Orleans for Chicago at seven o'clock A. M. pulled into the station of Duck Hill, Miss., twenty-five miles south of Grenada, thirteen hours later. The manner in which the engine was boarded and the train stopped is best told in the language of Albert Law, the engineer in charge of the locomotive. He says:

“I pulled out of Duck Hill Station at 10:05 o'clock P. M. The fireman called to me to look out; that there was a car of cotton ahead on the side track. I pulled slowly by, in order to avoid igniting the cotton by sparks from the engine, and when I passed the cotton the fireman said: ‘All right, let her go.’ I started ahead lively, and presently saw the robbers climb up on my engine from the east side.

“The smaller man got on first. I thought they were tramps, and was in the act of slowing up to put them off when the smaller man covered me with a big pistol and said, ‘Don't stop here! go on! go on!’ I then saw that the men were masked. I asked, ‘Where do you want to stop!’ He replied, ‘I'll tell you where to stop.’ I pulled along, and when we had gone about a mile he said:

“‘Stop here—stop now!’ I put the air on full and stopped as quickly as I could.

“The little man did all the talking. When we stopped he got down on the ground and fired his revolver two or three times. The train had hardly stopped when he commenced shooting. The other man said, ‘Get down!’ My fireman and myself were then made to go ahead, on the east side of the train, to the express car. Here they stopped us, and the tall man called out to the messenger, ‘Open up! Open up!’ The messenger looked out of the door and the tall man said, ‘Where is your other man?’ The messenger said, ‘I

have no other man—no one here but me,’ to which the reply was, ‘Help this man into the car!’ The messenger being covered by the revolver of the larger man, extended his hand and helped him into the car.

“About this time Mr. Wilkerson, the conductor, came out of one of the rear coaches with his lantern, and the smaller man, who stood guarding us, told me to tell him to go back. I did, and the conductor went back, but in a couple of minutes came out again. I saw two forms get out of the car. They had no lights. I said, ‘You had better go back, or they will shoot you; they are robbing the express car.’

“The fireman and I were between the robber and the rest of the train. He kept us in front of him as a sort of breastwork. Some one in the direction of the passenger coaches called out: ‘Law, where are you?’ When I answered a voice said: ‘Look out! I am going to shoot!’ I stepped back from the train and the firing commenced, and I broke and ran for the woods, which were close by.”

Meantime the robber who had entered the car handed a sack to Southern Express Messenger Harris and bade him deliver up the contents of his safe. At this juncture the firing on the outside of the car had commenced, and advancing to the door, still keeping an eye on the messenger, the robber fired three shots into the air. Conductor Wilkerson had, on first coming out, taken in the situation, and going back into the coaches announced to the passengers that the train was being robbed, and asked who would assist him. Chester Hughes, a brave young fellow, from Jackson, Tenn., arose quickly and said, “I will, if I can get anything to shoot with.” Two colored men seated near by had each a thirty-eight caliber Winchester rifle, and these weapons were quickly gathered by the conductor and his gallant passenger, and loading them with cartridges furnished them by the owners they went forth to do battle with the robbers. It was conductor Wilkerson who had warned the engineer to protect himself, and he fired the first shot at the robbers.

Advancing abreast of each other these brave men fired shot after shot at the dark form of the robber who stood as a sentinel on the outside of the car, and who unflinchingly held his ground, returning with steady aim charge after charge from his trusty revolver, until finally young Hughes dropped his Winchester, and exclaiming “I am shot!” fell to the earth. Wilkerson

raised the brave young fellow to his feet and dragged his unconscious and bleeding form into the coach, and returning to the steps of the front coach renewed the firing at the robbers.

The robber had, meantime, secured the money from the messenger (about two thousand dollars), and backing out of the car, still holding his pistol on the messenger, joined his comrade on the ground, and under the fire of the conductor both retreated to the woods hard by.

Chester Hughes had been in charge of a widowed sister, who, with several small children, were *en route* to Jackson, Tenn. The sister knew nothing of her brother's participation in the fight with the robbers until he was carried back into the coach, when she prostrated herself in affectionate embrace over his body, from which life was fast ebbing away. The scene was an agonizing and affecting one.

The unerring aim of the robber had sent three shots through the body of young Hughes, all entering the stomach within a radius of six inches, and the unfortunate but daring young fellow lived only a few minutes. The same train on which he had erstwhile embarked in the vigor of health and buoyant spirits, bore his lifeless form to the home of his widowed mother at Jackson, Tenn.

The Southern Express Company and the Illinois Central Railway promptly presented his grief-stricken mother with a fitting testimonial of appreciation for the heroic conduct of her son. While

“On Fame’s eternal camping ground
Their silent tents are spread,
And glory guards, with solemn round,
The bivouac of the dead,”

the name of Chester Hughes will be enrolled among the bravest of the brave.

The whole country was electrified with horror at the brutal murder of a passenger on one of the great trunk lines of railway, in one of the most populous districts of the South, by train robbers, and it was determined that

no expense or labor should be spared in bringing the criminals to justice. General Manager C. A. Beck and Superintendent J. G. Mann, of the Illinois Central Railway, were in Memphis in a special car at the time. During the night a violent and very general rain storm had prevailed, and the telegraph wires were down in many places. The news of the robbery did not, therefore, reach Memphis until about midnight. The railroad and express officials remained at the telegraph office all night, seeking the details, and left about daylight for the scene of the robbery. The aid of the Pinkertons was again summoned, and several of the most expert detectives of the Chicago agency soon arrived at Duck Hill.

About a month prior to the Duck Hill robbery the United States Express Company had been robbed at Derby, Miss., a station sixty-five miles north of New Orleans, on the Queen and Crescent Railway, by Eugene Bunch, a man who is supposed by some persons, even at this day, to be identical with Rube Burrow. Eugene Bunch, a native of Louisiana, and long a resident of Texas, bore a remarkable resemblance to Rube Burrow. The description, about thirty-six years old, weight one hundred and seventy pounds, height six feet one inch, light complexion, auburn hair, long, drooping mustache, blue eyes, raw-boned and stoop-shouldered, would fit either Rube Burrow or Eugene Bunch. Apart from this personal resemblance they bore nothing else in common except the title of train robber. Their habits and methods of life were strikingly dissimilar. Bunch was a man of some education, had taught school in Louisiana and Texas, and was for a long period of time a County Court Clerk in Texas, while Burrow was a coarse, unlettered fellow, and it may be stated, as a certainty, that these men never had any association as train robbers or otherwise.

The Pinkerton detectives, on their arrival at Duck Hill, were unable to find a trace of the robbers. There was no clew from which to begin a search for them. Whence the robbers came, whither they had gone, whether on horseback or afoot, was not known. At this juncture Detective D. C. Hennessey, of New Orleans, who recently met his death at the hands of assassins in that city, and a man of undoubted ability in his profession, having received a descriptive circular of the robbers, telegraphed the officials of the Southern Express Company as follows: "Description of the robbers received. I am well aware as to who they are, and am satisfied I can get them."

A conference was at once arranged with Hennessey, who declared the Duck Hill robbery to be the work of Eugene Bunch. An unfortunate combination of circumstances here ensued to corroborate Hennessey's view. Bunch answered Burrow's description with great exactness. The former was reliably ascertained to have been in northern Louisiana a few days prior to the robbery, and, therefore, within easy reach of Duck Hill; Bunch had an intimate friend who answered Engineer Law's description of the smaller man who stood guard over him at Duck Hill.

The detectives had, meantime, traced two men riding out south from the scene of the robbery in the direction of Honey Island, in the Pearl River, a favorite resort with Bunch; and, still more remarkable, one of the horses ridden corresponded with the one owned by Bunch's comrade in Louisiana, who was known to have assisted him in his flight from Derby, Miss. The chase that followed, therefore, under the leadership of the Pinkertons, was organized to find Bunch, and not Burrow. From New Orleans to Texas, to Monterey and Mexico City, to Los Angeles and San Diego, and even to San Francisco, the detectives pursued Bunch until, just as his capture seemed certain at San Francisco, he eluded the detectives by taking a Pacific coast steamer. The chase was then, after months of labor, abandoned.

Meantime, in a quiet way, the detectives of the Southern Express Company were at work on the theory that Rube Burrow was the leader in the robbery at Duck Hill. It was discovered that Rube Burrow and Joe Jackson rode away from the farm of Fletcher Stevens in Tate County, Miss., on December 1, 1888, and after paying a visit to Rube's brother-in-law, Berryhill, who lives eighteen miles from Oxford, proceeded to Water Valley, Miss., where they spent the night; and that going thence to Duck Hill they robbed the train in the manner described. After mounting their horses, tethered in the woods some half a mile from the spot on which the robbery occurred, they rode through a drenching rain a distance of forty miles by daylight. The next day they camped in the brush, divided the spoils of the robbery, and at sundown resumed their journey. After another hard night's ride they reached the vicinity of the Pearl River, near Philadelphia, Miss. Here, fearing the news of the deed at Duck Hill had preceded them, and that the detectives might be in waiting at the bridge, they turned their horses into the swamps and two miles north of the bridge swam the swollen current of Pearl River. Reaching the opposite bank, they continued their

journey through the wilds of the forest for a few miles, and turning from the southwesterly course on which they had ridden for two days, they rode in a northeasterly direction, traveling most of the distance at night, until they reached Lamar County. Here they remained in quiet seclusion until the tragic event recorded in the next chapter occurred.

CHAPTER XI.

THE COLD-BLOODED MURDER OF MOSES GRAVES, THE POSTMASTER OF JEWELL, ALABAMA.

THE reader may well ask what the detectives of the Southern Express Company were doing while these men remained in Lamar County and the adjacent country, from the time of the Duck Hill robbery until the summer of 1889.

In the contiguous counties of Lamar, Fayette and Marion the kindred of the Burrow family abounded on every hand. The homes of his kinsmen, notably Cash, Terry, Barker, Smith and Hankins, not only furnished a safe refuge for the robbers, but they were worshiped as heroes, and each household vied with the other in its fealty and loyalty to the robber chief. "Rube never robs a poor man," they were often wont to say, forgetting that one never gets blood out of a turnip. These people were of a thriftless, restive spirit, and among them were many shrewd and cunning natures, who became the paid scouts of the outlaws. A code of signals was established, and the appearance of a detective or a stranger of any kind in that section was at once ascertained, and the information conveyed to the outlaws. The firing of a gun in a certain locality, the cracking of a whip, the blowing of a horn, and the deep-toned "ah-hoo," as well as scores of other signals, all had their meaning. They gave the fugitives warning of the approach of danger; and so, when occasional raids were made, a house was surrounded, a trail was covered, or some solitary scout from among Rube's clansmen was encountered, the stillness of the air would be broken by a signal which plainly told the detectives that their presence was known and the robbers were on the alert. It was even impossible to trail the messengers who carried rations to the robbers while in camp, for these were stored in the crevices of rocks and in the trunks of trees, from which coverts, at propitious times, the food would be taken.

Detective Jackson once followed Jim Cash, with a supply of provisions, to a ravine some distance from Cash's house, and saw them hidden away in the cavernous depths of a hollow log. He concealed himself within one hundred yards of the spot, and, knowing Rube was in that locality, felt sure he would be able to pick him off with his trusty Winchester when he came for his rations. Jackson crouched behind the huge trunk of a tree, in breathless expectation of Rube's appearance, when a shot fired from the vicinity of Cash's house dashed his hopes. Half an hour later Cash walked cautiously down the hill, took the food away, and tied a flaming red cloth to the top of an adjacent bush, thus exhibiting for Rube the red signal of danger. Cash had, on his return, with the cunning of his class, discovered strange footsteps on his trail, and rightly divined that his movements had been watched. Although the detective took down the signal, Rube had doubtless seen it. If not, acting on the signal previously given, Rube missed his dinner that day.

Thus fed and harbored, the outlaws remained in Lamar County and the adjacent country all the spring and summer of 1889, without any event of note occurring until on the 7th of July, when Rube Burrow murdered, in cold blood, the postmaster of Jewell, Ala.

Rube had concluded that a wig and false whiskers were necessary in his line of business. His robberies were now of such frequent occurrence that he sought to disguise himself more closely, and after writing for a catalogue and selecting what he desired in that line, he wrote the following letter to a Chicago house:

June 1, 1889.

Mr. Sthrel:

I just Received your catalogue of wigs and will order Wig and Bird. Pleas ship one set of Bird, 4 or 5 inches and one Wig, Cullor of goods light Red, slieghtley Grey, and croped hair. Ship goods to Sulligent (express office, ship at once) Lamar county Ala, too W. W. Cain.

P. S.—Please find Five Dollars inclosed. eye Hav no sample of Hair.

Rube had written for the catalogue and for the wig in the name of W. W. Cain. The former letter was written from Jewell post-office, and as the name "Sulligent" was not plainly written, the shipper sent the parcel containing the wig and beard by mail to Jewell, Ala.

Meantime Jim Cash had made several inquiries for the catalogue to Cain's address before it arrived. On the arrival of the parcel containing the wig and whiskers, the wrapper being torn the contents were exposed. Naturally great curiosity was excited as to the ownership of these queer looking articles. The rumor soon gained currency that Jim Cash had been inquiring for mail for W. W. Cain. The postmaster recalled having delivered him the catalogue, and this parcel was supposed to be his property. Cash was told that the contents had been examined, and that the postmaster declared he intended to arrest the party who called for the parcel.

When this information was imparted to him by Cash, Rube became greatly enraged. He swore he would go to the post-office in person, get the mail, and kill Graves. Accordingly he left the home of his brother-in-law, Cash, about daylight on the 7th of July for Jewell, Ala., distant about six miles. Rube was known to Moses Graves, who kept the post-office in connection with a country store, and who was a quiet and inoffensive citizen.

Rube arrived at Jewell early, but the full-orbed day was not a fit time for the execution of the dark deed upon which he was bent. He lurked about the outskirts of the quiet little village until the shades of night had begun to fall, and creeping, with the stealthy step of the assassin, towards the post-office, he entered. Moses Graves, the postmaster, and Rube, companions and playmates in their boyhood, stood face to face, and exchanging a silent recognition, Rube said: "Have you any mail for W. W. Cain?"

"Yes," answered Graves, "but I can not deliver it to you."

Instantly Rube drew his heavy revolver and fired, the ball entering the stomach and piercing him through and through.

"I'll teach you how to open my mail," said Rube.

Graves staggered towards a chair, and falling into it, said: "Rube Burrow, you have killed me."

The murderer then turned, and leveling his pistol at the head of a young girl who was an assistant in the post-office, said: "Get my mail or I will blow your head off."

The frightened creature, in her terror, could not find the parcel until Graves, pointing to it with uplifted hand, bade her get it, and sinking to the floor soon expired.

Graves's wife, at the firing of the shot which killed her husband, rushed in from an adjoining room. Despite Rube's threat to kill her if she entered she flew to the assistance of her dying husband. He was conscious, however, long enough for his ante-mortem statement to be carefully taken, in the presence of witnesses, certifying to the fact that Rube Burrow was his murderer. Rube walked out of the town unmolested, and at ten o'clock that night reached the house of Jim Cash, his hands stained with the blood of one of Lamar County's most respected citizens—the perpetrator of a deed as wanton and as cold-blooded as ever blackened the annals of crime.

Rube and Joe were not amiss in surmising that the officers of the law would swoop down upon them. As soon as Rube returned to Jim Cash's, about ten o'clock that night, he informed Joe Jackson, his partner, of the events of the evening. The latter had advised strongly against the policy of taking Graves's life, and warned Rube of the consequences; but Rube's spirit was full of revenge, and he determined upon the murder.

All of northern Alabama was aroused with indignation at the cruel and wanton murder, and ex-Sheriff Pennington, heading a posse of determined citizens, went into the Burrow neighborhood a few days afterward and made an earnest endeavor to capture the outlaws. Too much praise can not be accorded this brave and gallant man, and had the laws of Alabama admitted his re-election to a second term it is more than probable that the career of these train robbers in Lamar County would have been less bold and protracted.

The homes of Allen Burrow, John T. Burrow and Jim Cash were all raided, and these men, who were openly aiding and abetting the outlaws, were arrested and taken to the Vernon jail. Threats of releasing the prisoners reached the officers, and the excitement grew with each passing hour. A strong guard was put around the Vernon jail to prevent this, and at the same

time it was whispered that the prisoners were in imminent danger of being lynched.

At this juncture the Governor of Alabama, in answer to a call made upon him by the sheriff of Lamar County, sent a military company from Birmingham to keep the peace. The troops remained at Vernon pending the arraignment and trial of these men, who were released, however, under bond, and being subsequently tried, were acquitted of the charge of being accessory to the murder of the postmaster.

CHAPTER XII.

RUBE SMITH JOINS RUBE BURROW AND JOE JACKSON— THE BUCKATUNNA ROBBERY.

THE murder of the postmaster at Jewell, Ala., was done by Rube Burrow in a spirit of bravado, and, doubtless, with the design of terrorizing the law-abiding people of that section into such a state of timidity as would give additional safety to his chosen place of refuge, and at the same time knit him all the more closely to the lawless band of his followers, who not only connived at his crimes but profited from the spoils of his misdeeds.

Despite the vigilant and unremitting search of the detectives the presence of the bandit in Lamar County had not been definitely known until the murder of Graves occurred. The officials of the Southern Express Company determined, therefore, to either capture Rube or drive him from Lamar County. The task was a difficult one, in view of the fact that Rube never slept under a roof nor broke bread at any man's table in Lamar County after the murder at Jewell. Soon thereafter, when invited by his father to come into his house, on one occasion, he refused, saying, "I might as well give myself up."

Detectives Jackson and Burns, of the Southern Express Company, about this time went into Lamar County and literally camped there. They endeavored by every possible means to discover the whereabouts of the outlaws by shadowing the persons who communicated with them from time to time, but the army of scouts in the secret service of the cunning desperado was so well trained, the field in which they operated so extensive, that the only result obtained was to force them to leave.

About September 1st Rube and Joe concluded to depart. A few days before their departure, however, Mrs. Allen Burrow brought Rube a message from Rube Smith, to the effect that the latter wanted to see him.

Rube Smith is a son of James Smith, who lives in Lamar County, near Crews Station, and about eight miles from the home of Allen Burrow. He is a first cousin of the Burrow brothers. Smith was about twenty-eight years old, five feet eight inches high, weighed one hundred and sixty pounds, and bore a

very bad reputation in all that section. He had never followed any legitimate occupation, except that, for a short period in 1883, he had been an itinerant photographer, moving about from place to place, and making cheap photographs in country towns of northern Alabama. In the fall of 1888, however, he was indicted, with James McClung and James Barker, an uncle, for robbery from the person of a Mr. Johnson, a respectable old farmer of Lamar County. Smith and party went to farmer Johnson's home about nightfall, with their faces masked, and at the point of their revolvers demanded his money. The old man hesitating, was cruelly beaten, and at last divulged the hiding-place of his money, some three hundred dollars, which the robbers secured. They left their victim bleeding and maimed, lying upon the floor, where he remained until the next morning, when kindly neighbors came to his assistance. Rube Smith then became a fugitive from justice.

Burrow, knowing of the presence of the detectives in the vicinity, suspected that Smith was being used by the officers to entrap him. After considering the matter several days he sent, through his sister, a message to Rube Smith that he would meet him at the hour of midnight, September 4th, in Fellowship church-yard, a point about four miles from Vernon. Thither Burrow and Joe Jackson repaired early after dark, on that night, for the purpose of forestalling any plan which the detectives might have to capture them through Smith. The watch was set, and each, by turn, stood sentinel in this quiet and lonely spot, awaiting the appointed hour. Smith, in due course, appeared as agreed. He was alone, and Burrow was soon assured that his proposal to join him was genuine.

There, in the graveyard of Fellowship church, where the body of the famous outlaw now lies buried, at the solemn hour of midnight, the compact which linked Rube Smith's fortunes with his own was made. There was no subscribing to the black oath, no signing in letters of blood, but with the skillfulness of a master Rube Burrow inducted his young kinsman into the office of train robbing to which he had elected him. He described the preliminary step of boarding the engine and getting the "drop;" the method of "holding up," and all the subtle artifices of the craft, in such a masterly style that the new recruit smacked his lips in anticipation of the rich dish spread before his mental vision, and, after the manner of little Jack Horner, he mentally "put in his thumb, and pulled out a plum, and said, what a good boy am I."

Setting out, therefore, with the two-fold object of avoiding the detectives in Lamar County, and of robbing a train, the three men journeyed southward, but without any particular destination in view. Going down the west bank of the Tombigbee River, they traveled a distance of about one hundred and fifty miles, to Buckatunna, Miss., on the Mobile and Ohio Railroad, seventy-three miles north of Mobile.

After a careful deliberation of the matter, Rube Burrow selected Ellisville, Miss., a point on the Queen and Crescent Railway, sixty-five miles south of Meridian, and distant fifty-five miles east across the country, as the point for making his seventh train robbery.

Leaving the Mobile and Ohio Railway at Buckatunna on the fourteenth day of September, the men walked towards Ellisville, arriving there on the night of the 17th of September. Here Rube Burrow concluded, after finding there were three trains daily each way on that road, that there was no money in robbing a train on the Queen and Crescent Railway. He argued that the shipments would be divided up between the several trains, and no one train would carry much money. He had been so often disappointed in the amounts obtained that he was now planning, with great care, to make a big haul. He concluded, therefore, to reverse his course, return to Buckatunna, and rob the Mobile and Ohio, as the schedule on that line indicated only a single daily express train each way. Accordingly the robbers resumed their journey towards Buckatunna, through the "Free State of Jones."

The county of Jones, Miss., bears to this day the appellation of the "Free State of Jones." During the late civil war the county seceded from the Confederacy and set up an independent government of its own. Here, in the famous Bogue Homer swamp, which covers one-third of the area of the county, hundreds of Mississippians, and Alabamians from across the border, declared themselves non-combatants, and gathering their families about them, set up a military government of their own. Fortified within this inaccessible wild land, by the aid of their flint locks, they defied Confederate and Federal alike, and in the solitude of a peacefulness disturbed only by an occasional unsuccessful raid upon them, lived on, unmindful of the fate of the Republic. One may ride, at this day, over the public road, so-called, from Ellisville to Buckatunna, sixty miles, and in all that distance he will find no sign of human habitation save at intervals of ten miles or so a rude log hut, and here and there a rosin orchard.

Through this lonely woodland, to the music of the sighing pines, Rube Burrow, Joe Jackson and Rube Smith wended their way from Ellisville to Buckatunna. On Sunday night about dark they reached an abandoned log cabin on the farm of one Neil McAllister, a very intelligent colored man, who lives three miles from Buckatunna station. Neil found the men snugly quartered in this out-house early Monday morning, and had frequent interviews with them during their stay of forty-eight hours on his premises.

The robbers visited a trestle at Buckatunna Creek, two miles south of the station of that name, during Monday, and, after carefully maturing their plans, agreed to rob the south-bound express train, due on Wednesday, September 25th, about 2:30 A. M., at the trestle, one and a half miles south of the station.

Leaving Neil McAllister's cabin soon after dark the trio passed through Buckatunna and went to the trestle, where they remained until the north-bound train passed at midnight. Rube Burrow and Rube Smith then walked to the station, where, on the arrival of the south-bound train, in charge of Conductor Scholes and Engineer Therrill, the two men quietly boarded the engine as it pulled out from the station.

The cool and determined manner in which the work was done is well described by Zack Therrill, the engineer, in his statement taken by the express officials next day.

STATEMENT OF ENGINEER THERRILL.

Just as I was pulling out of Buckatunna I heard a voice on my engine, and I thought the fireman was speaking to me. I turned to find the fireman and myself covered with pistols by two men. The larger of the two men, who had his pistol presented at me, said, "Pull on out!" After I had run several hundred yards he said, "Don't be uneasy." I told him I was not uneasy. He said: "I am going to rob this train or kill every man on it. Stop the train on the trestle beyond the bridge, so the passengers can't get off. I will kill every one that hits the ground." I stopped as directed, and was ordered to get down from the engine. When I got down, there was a man standing opposite the gangway on the ground, whom I will designate as number three. He backed towards the express car door. The man number one, who had been on the engine, said, "Call the express messenger." Just then robber number three, who was in

front, covered the messenger, who was sitting on the opposite side of the car, with his back toward us.

The conductor came out at this moment and asked what was the matter. The big man, number one, then fired a shot over my head towards the conductor and said, "Get back or I will kill you!" The messenger had not yet opened the door, but was covered by the pistol of number three. The big man, number one, then covered the messenger as soon as he had shot. The fireman was standing behind me, with a coal pick, covered by number two, who had been on the engine. The messenger shoved the grated door back, the wooden or outside door being already open. The messenger could not have stepped aside, as he was covered by two pistols. Number one then said, "Give me your hand and pull me in the car. Handle my hand carefully, as there are corns on it." He was in the car five or six minutes. Just after he got in the car the conductor again called to know what was the matter. Number three said, in a low tone of voice, "Look out, I will settle him." He went forward a few paces, called out "Come and see," squatted and fired one shot. He then got up, ran forward about ten feet, and laid down flat on his stomach. He laid there until number one, in the car, told the messenger to get out of the car, which he did, in front of the robber, who gave him the bag with its contents to hold, while he himself got out.

Number one then said to me, "Go to the engine with me and pull the mail car off the trestle." I told him it was off, and told him if it was not off I did not have steam enough to move the train. He then said to number two, "Take the fireman to the engine," and added, "Wait, I will go with you." He told the fireman to get on the engine, and told me to stay on the ground. He told the fireman to get his fire started, ordered number two to stay with the fireman, and instructed me to go with him to the mail car. He told the fireman, before he started off, not to move the engine until he came back, and said he would kill me if it started. I went back to the mail car as instructed, and when we got to the express car he instructed number three to bring the messenger up to the mail car. Number three took the bag from the messenger as soon as he struck the ground. I called the mail agent, as instructed, who was inside of the car. As soon as he appeared he was covered by number one, who ordered me to go into the mail car ahead of him, which I did. He ordered the mail agent to get up his registered letters, and said to him, "You have been hiding them."

The mail agent replied, "No, I have only turned the light down." The mail agent showed him the registered mail, saying, "There it is," and added, "You

are doing the worst thing you ever did in your life. You will get the U. S. Government after you, and there are not \$20,000 in the pile.” “That don’t make any difference,” said the robber; “I will take them anyhow.” He left the car and said to the mail agent, “If you don’t want to get hurt, shut the door and keep it shut until the train leaves here.” He gave the packages he got out of the mail car to number two, who was guarding the fireman, and told me to get up on my engine and pull out. I had started up on the engine when he told me to sit in the gangway between the tender and engine. Number one then said: “Do anything you want to get steam up.”

We were there ten minutes getting up steam. During that time he said he worked on a section once—though not on this road—and was discharged and a negro put in his place. He then decided not to work any more for a living. He said he had been around towns and had heard people say what they would do if they were “held up.” “What can a man do,” I asked, “in the fix you have me in?” “Do as I tell you.” he replied.

When I got steam up he said, “Hurry up to State Line, and send a message up and down the road, so they can get after us. Tell the operator I say to hurry up about it. Tell the boss of those cars (meaning the express cars) to put steps on them, or I will stop robbing them. Don’t ring the bell or blow the whistle,” he concluded, “or I will shoot into the engine.”

He told me, going down to the bridge, that he came here to rob this train because there was a boast in the papers last spring that he could not rob it, and he just wanted to show them what he could do.

The other two men, while we were talking at the engine, had gone out in the bushes. While going to the engine with me he told number three to put the messenger back in his car. When I got on the engine to start he said, “Holler to those boys on the other side, and tell them to get back from the train.” I thought he referred to his men, but saw none. In coming down from the station he said he had men and tools to do the job with.

* * * * *

The man described by Engineer Therrill as number one is easily recognized as Rube Burrow, number two as Joe Jackson, and number three as Rube Smith. The trestle at which the robbery was committed was undergoing repair by a force of bridge men, and the train was in the habit of stopping and then proceeding slowly across it. When the train stopped, therefore,

Messenger Dunning supposed it was on account of the bad condition of the trestle, and gave little thought to the matter. When hailed by the engineer, who had been instructed by the robbers to call him to the door, the messenger found himself, on facing about, covered by revolvers through the grated or iron barred door of the car, the outer wooden door being open.

“Hold your hands down, and come to the door, or I will kill you,” said Burrow.

A shot from the pistol of one of the robbers on the outside of the car gave emphasis to the highwayman’s request, and when the grated door was pushed back, as ordered by Rube Burrow, he got in the car and, handing a sack to the messenger, said: “Put your money in there. Hurry up! I have no time to lose.”

Securing \$2,685 from the express car, Burrow then went to the mail car and called for the registered mail. Mail Agent Bell had been collecting the registered matter, preparatory to leaving the car with it, when Rube entered and demanded it.

The registered mail, which contained \$795, was taken, making the total amount secured \$3,480, or \$1,160 each.

In stopping the train the passenger coaches had been left on the trestle so as to prevent any one reaching the ground, twenty feet below, and making an attack from that quarter. The shots fired soon after the train was halted, two of which took effect in the steps of the coach on which Conductor Scholes stood, silenced further inquiry, and the work was completed without molestation.

When Burrow joined his comrades, after leaving the mail car, he seemed anxious to have the train start. During the run from the station down to the trestle he had forbidden the fireman to put any coal in the fire-box, and, hence while the train was being robbed so much steam was lost that it was ten minutes after the robbery was over before sufficient steam was obtained to get under headway. Finally the train resumed its onward course, and Burrow, sending a few parting shots of humor after Engineer Therrill, joined his comrades who were anxiously awaiting his coming in the brush a few yards distant.

The train dispatcher’s record of that day bore the simple explanation: “Number five delayed thirty minutes at Buckatunna trestle, getting robbed.”

The news of the robbery brought the officials of the Express and Railroad Companies by special train to the scene. Possees were at once organized and

sent in pursuit. It was evident that the work was that of Rube Burrow. “I will rob this train or kill every man on it” was the identical expression used at Genoa and at Duck Hill. His disposition to be humorous—in fact, every detail of the robbery gave evidence of his identity as the leader.

The robbers were traced from the scene of their crime in an easterly course. Blood-hounds were used in the pursuit, but the trail being cold they were abandoned. The detectives, however, quietly took up the trail and followed it towards Demopolis, Ala. At this point it was found that Rube Smith separated from the other men about October 5th, and went by rail into Lamar County. Rube Burrow and Joe Jackson continued their journey afoot, and traveling by easy stages reached Lamar County on the night of October 23d, impelled by some strange fancy to return to the spot from which they had been so recently routed, and from which they were soon to depart again.



DETECTIVE T. V. JACKSON.

CHAPTER XIII.

THE CAPTURE OF RUBE SMITH AND JAMES M'CLUNG AT AMORY, MISS.—M'CLUNG'S CONFESSION—A PLAN TO ROB THE TRAIN FALLS THROUGH—A SAFE ROBBERY NIPPED IN THE BUD.

WHEN the Buckatunna robbery of September 25, 1889, occurred, the fact that three men participated in that deed proved that a third man had joined Rube Burrow since his last robbery at Duck Hill, on December 15, 1888, and the identity of the third man puzzled the detectives of the Express Company for some weeks. An accurate description, however, of all three of the men had been obtained, and Detective Thomas Jackson, after a visit into Lamar County a few weeks after the robbery, became convinced that it was Rube Smith. On the eighth day of October, succeeding the Buckatunna robbery, Rube Smith appeared in Lamar County, exhibited a good deal of money, and was known to be in hiding in the vicinity of his father's home. Here he remained for some weeks, narrowly escaping capture at the hands of Detective Thomas Jackson several times, while the latter was daily securing additional evidence of his complicity in the Buckatunna affair. Finally, in the latter part of November, 1889, Jim McClung, an old acquaintance of Rube Smith's, left Itawamba County, Miss., to visit his relatives in Lamar County, and while *en route* thither fell in with Rube Smith near the house of that worthy's father. Rube exhibited quite a sum of money to McClung, and invited him to accompany him to the Indian Territory, which McClung agreed to do. This was the hiding place to which Smith had gone soon after the Johnson robbery.

The two men left for the Indian Territory. Their destination was Kavanaugh, and Smith unfolded to McClung, while *en route*, the whole story of the Buckatunna train robbery and the part he played in it. He described every detail and circumstance of the robbery, and McClung, having a very retentive memory, was afterwards enabled to testify about it so minutely that the jury in the Federal Court, before which Smith had a

mistrial in May, 1890, concluded that Jim McClung had participated in that robbery. Such, however, was not the fact.

The section of the Indian Territory to which Smith and McClung went was wild and sparsely settled, but no sooner had Smith appeared there than he learned that the officers were after him for a violation of the Federal law forbidding the importation and sale of intoxicating liquors in the Indian Territory, while he was there in the early spring. Smith therefore left within twenty-four hours after his arrival, and returned to Lamar County, abandoning a project of robbing the disbursing officer of an Indian agency near Kavanaugh, which he had unfolded to McClung.

McClung soon tired of life in the Indian Territory, and, returning to Alabama, found Smith in Lamar County. Here, on the 13th of December, Rube Smith conceived the idea of robbing the Southern Express car at Bigbee trestle, two miles north of Amory, Miss. The next night, soon after dark, he set out with McClung from the home of Rube Smith's father for that purpose. How the plan fell through is best told by the confession of Jim McClung, after the capture of Smith and himself in the sitting-room of the depot at Amory, Miss.

At one o'clock A. M. Detective Thomas Jackson, assisted by local officers Clay and Aikin, of Amory, made the capture. McClung made but slight resistance, but Smith grappled with Jackson, despite the fact that he was covered by the revolvers of both Clay and Jackson, while Officer Aikin had McClung in charge, and a hand to hand struggle ensued, in which Smith succeeded in dragging his captors into the doorway of the station house, where he was finally overpowered and the handcuffs placed upon him. The prisoners were taken to the Aberdeen, Miss., jail, and on the 18th of December McClung made the following confession to the express officials, which confirmed the information already in their possession as to Smith's complicity in the Buckatunna robbery.

M'CLUNG'S CONFESSION.

My name is James McClung. I am twenty-two years of age. I have known Rube Smith for five or six years, but have not seen much of him

until within the past few weeks. I returned from the Indian Nation three weeks ago next Tuesday. I went to Henry Smith's, in Itawamba County, Miss., thirteen miles from Tupelo, and there found Rube Smith and Rube Burrow. Rube Smith was sitting on his horse at the gate when I arrived, about two hours after sun-up. About an hour after I arrived Rube Smith told me that Rube Burrow was there. Smith invited me to go down to the woods where Rube Burrow was. I went down a hollow on the west side, and then went to the south side of the house, in an old field, where Rube Burrow was lying on his coat. Burrow asked Smith what he had decided upon, now that I had come. Burrow said he wanted to go into Alabama, and to this we all agreed. Rube Smith and I went to Tupelo that night. We ate two meals in Henry Smith's house. Rube Smith carried Rube Burrow his dinner and supper in the woods. Burrow promised to meet us at old man Jim Smith's, in Alabama, about five miles from Crews Station. Rube Smith and I got off at Quincy, Miss., and walked over to Jim Smith's. We were afraid to get off at Crews. Burrow did not join us until last Monday morning. Burrow made his appearance at the spring at Jim Smith's on Monday morning, the 7th of December. I went down to the spring. They were talking of robbing a train at Bigbee trestle, two miles north of Amory, Miss. We all decided on robbing the train on the K. C. M. & B. Railroad on Friday night, the 16th of December. The plan was that Smith and I should board the train at Sulligent and come to Amory. Burrow was to walk and join us Thursday at Bigbee trestle. Smith and I got off at Amory at 3 A. M. Thursday. We went into the woods and slept about one-fourth of a mile from Amory. We went to the trestle about 9 A. M. Thursday. We found Burrow on the south side of the trestle in the hollow. Smith told Burrow he had taken in the situation, and did not think it would do to board the engine at Amory, because there was a night watchman there, and it could not be done. Burrow said all right—he did not care for a night watchman, but was willing to leave it to Smith. It was then agreed to abandon the robbery of the train.

We agreed to go down to Winfield, Ala., and rob Jonathan Jones, a merchant there. Smith proposed that he and I would go over to Hester's grocery, about three-quarters of a mile from Amory, and get some beer. Burrow said he would remain until we got back. We were absent about one hour, and when we came back, found Burrow there waiting for us. All three of us then went to Amory. We stopped at Tubb's spring, one quarter of a mile out of Amory, and stayed there awhile. We went then to Mrs.

McDaniel's, getting there about one hour before sunset. Rube Burrow did not go in. We found no one in the house, but got some bread and meat. Smith brought some out to Burrow. It was then nearly dark. Rube Burrow proposed that he would go into the woods on the north side of the track and sleep. Smith and I went to Mrs. McDaniel's and stayed all night. Next morning (Friday, the 13th) we met Rube Burrow in the woods. We waited until Mrs. McDaniel went into the field, and then went to the house and cooked some breakfast for Burrow, because he would not go into the house, nor would he allow us to bring anything out while Mrs. McDaniel was there. We remained about there until ten o'clock A. M., then Smith and I went to John Marsh's and got dinner. We gave Burrow enough for dinner and breakfast.

We all got together at Amory Junction, about one mile out of Amory, late in the evening. Burrow said there was no danger of any one knowing him, and he was not afraid to come into Amory. So we all started in about one hour before sunset. We came up the track until we got near the depot. Burrow went over towards the round-house, among the side tracks, where we went over later and joined him. We all went to a well near Armstrong's saloon and got some water. Rube Smith said he wanted to buy a Winchester rifle. Burrow said, "Go ahead and get a rifle; but be careful about fooling around, inquiring for guns." Burrow said to Smith that he wanted half a pint of whisky. Smith went into a saloon and got it. Burrow said to Smith, "I will meet you and McClung at the round-house." Burrow had hidden the rifle between the Junction and Amory. Rube Smith and I went into several stores inquiring for Winchester rifles, but could find none. We went into Snow's saloon, and Rube Smith bought one gallon of whisky in a jug, also one-half pint. We joined Burrow at the back of the round-house. Rube Burrow then ordered us to meet him at Jim Smith's, about three and one-half miles from Crews Station. He said he would go ahead on foot, and would be there between breakfast and dinner on Sunday, the 15th inst. We went to the depot to take the train. Burrow told Smith and myself to be careful and not get arrested. We were told to be sure and meet him, and were to rob Jonathan Jones on Sunday night. Smith said he had stayed at Winfield, Ala., where Jones did business, and he knew he had a good deal of money. He told how he generally came out from supper and stayed at the store all night, and said we could "hold him up" as he went into the store and make him open his safe.

McClung gave a faithful account of the Buckatunna train robbery, as detailed to him by Rube Smith, while they were on their way from Alabama to the Indian Territory.

Time afterwards proved that McClung spoke the truth, as before told in his confession at Aberdeen, except as to one particular—he was mistaken as to the identity of Rube Burrow. Rube Smith had brought with him from the Indian Territory a boon companion, whom McClung had not met, and who somewhat resembled Burrow, but who did not care to reveal his identity to McClung. As the latter had never seen Rube Burrow, Smith easily passed his comrade off as the famous train robber. It was afterwards proved beyond a doubt that Rube Burrow, on the day of the capture of Smith and McClung, drove his ox-cart into the pines near Flomaton, Ala., and camped there on that eventful night. McClung, however, was perfectly honest in the belief that the pal to whom Smith introduced him was no other than his cousin Rube. The man's name is well known to the express officials, but as he never committed, but merely contemplated, a train robbery, he was allowed to go back into the Indian Territory, and is now listed as a suspect only.

Rube Smith had conceived the idea of playing the role of leader in a train robbery, but when the appointed hour came he lost confidence in his ability for so bold an adventure, and abandoned the project for a less daring deed. While awaiting the train, however, to take him to the scene of his contemplated crime, he was arrested as described. He was taken to Waynesboro, the county seat of Wayne County, Miss., and on April 1, 1890, was convicted and sentenced to ten years, the extent of the penalty, in the state-prison, for robbing the Southern Express car at Buckatunna, Miss.



RUBE SMITH.

CHAPTER XIV.

A FALSE ALARM—THE OX-CART TRIP TO FLORIDA—THE SEPARATION—RUBE LOCATED AT BROXTON FERRY—HIS ESCAPE.

RUBE and Joe, on their return to Lamar County, found their lair closely beset by detectives. They found shelter, however, for some two weeks, spending the nights in the barn-loft of Allen Burrow, one of the men standing watch while the other slept.

On the 26th of October, 1889, the following telegram was received by an official of the Southern Express Company from Sheriff Morris, of Blount County, Alabama: "A posse in charge of one of my deputies attempted to arrest two men, armed with pistols and Winchesters, fifteen miles from Oneonta, Ala., yesterday. They killed two of the posse and wounded five. Am positive the men were Rube Burrow and Joe Jackson."

Repairing to Blount County, with blood-hounds and detectives, it was soon ascertained by the express officials that the men were not Burrow and Jackson, but two "moonshiners," who had shot and wounded a revenue officer at Blockton, Ala., about ten days prior to the date of the attack by the sheriff's posse.

Correspondents representing several prominent southern journals hied themselves to Blount County to gather the details of another tragic chapter in the history of Rube Burrow, and one enterprising scribe, fresh from the field of carnage in Blount County, went into Lamar County, bent on an interview with the famous bandit. This was the handsome and gifted Barrett, of the *Atlanta Constitution*. Arriving at Allen Burrow's, in company with Jim Cash, the young journalist made known the object of his visit.

The detectives having gone on a false trail to Blount County, Rube and Joe were at that time in old man Burrow's barn-loft, and when Allen Burrow took Barrett's horse thither he revealed to Rube the proposition of the correspondent to interview him. Rube declined, saying he knew the

paper would publish a description of him, and he did not want that done. Mr. Barrett, however, sent a very elaborate report of an alleged interview to the *Constitution*, which, as a faithful historian, the author is compelled to state never took place.

A crowning sensation in American journalism was reached when the *Age-Herald*, of Birmingham, chartered a special train to enable it to place upon the breakfast tables of Atlanta the daring exploits of Rube in Blount County, and the *Atlanta Constitution* responded by chartering a like train to distribute at Birmingham an interview with the famous bandit while he was supposed to sit under the very vine and fig tree of the *Age-Herald*, but, as a matter of fact, was engaged in combing the hayseed out of his hair after a night's lodging in his father's barn.

As soon as the Blount County sensation had exploded, the detectives of the Southern Express Company returned to Lamar County, and an incessant watch was kept upon the houses of Allen Burrow, Jim Cash, and others. Detectives disguised as peddlers of books, lightning rods, and nursery stock, and others assuming the simple guise of tramps, sold their wares in the one case, and begged bread in the other, from house to house, all over Lamar County, and until Allen Burrow said one day to Rube:

"I believe there is a detective under every bush in the county; you had better leave."

Rube concluded his father was right, and on the twentieth day of November, just about a month after their arrival, Rube and Joe left Lamar County again. The two men went afoot to within a few miles of Columbus, Miss., having resolved to walk into Florida and avoid the necessity of hiding out in the brush all winter in Lamar County.

Joe Jackson was not as robust as Rube, and was not physically equal to the task of walking several hundred miles. He proposed, after trudging about eighteen miles, to return to Lamar County, purchase horses, and make the trip on horseback. Rube dissented, fearing their trail would be discovered and that pursuit would ensue, but suggested that they return to the home of Jim Cash and purchase a yoke of oxen and a wagon owned by him and make the trip in that way. Joe Jackson was averse to this proposition at first, but Rube argued that as drivers of an ox-cart they could

assume the role of laborers and thus fully disguise themselves. Returning, therefore, to Cash's house, the oxen and cart were purchased.

It was the custom of Allen Burrow and Cash to make frequent trips by wagon across the country to Columbus, Miss., and so it was arranged for Allen Burrow to take the two men, in a covered wagon drawn by two horses, to within one mile of Columbus. Jim Cash, according to arrangement, followed with the ox team, and in the outskirts of the town, after dark, on the night of November 28th, the four men met. Through the intervention of Cash an ample supply of provisions, purchased from a store in Columbus, was stored away in the wagon, and at ten o'clock at night the outlaws, in the garb of plodding ox-drivers, resumed their journey southward. Cash and Burrow returned home the next day, the former announcing that he had sold his ox team in Columbus.

The detectives were not long in discovering, by the bearing and manner of the friends of the outlaws, that they had left Lamar County. Detective Jackson, knowing the habits and methods of Rube, was not satisfied with Cash's story that he had sold his oxen in Columbus. Investigation developed nothing to corroborate the reported sale, and Detective Jackson declared: "We must find that team, for it's just like Rube to give us the slip that way."

Going to Columbus, the faithful detective, day by day, sought diligently to discover the missing team, but it was not until about January 15th that his labors were rewarded in finding the trail near Carrollton, in Pickens County, Miss., forty miles south of Columbus. The detective was on foot. The outlaws were then forty-five days ahead of him, and were evidently heading for southern Alabama or Florida. Returning and reporting the discovery, it was deemed best to go by rail to Wilson's Station, on the Louisville and Nashville Railway, and thence to Gainestown, a landing on the Alabama River, about forty miles distant, where it was thought the men would cross. The conclusion had been wisely made. The cunning detective had shrewdly divined the very spot at which the robbers would cross the river.

Arriving at Gainestown January 24th, Jackson found that the ox-cart, in charge of two men, had crossed the river on the night of December 11th. Encouraged by this discovery the officer pursued the trail on through Escambia County, and found that on the evening of December 14th the two

men had driven into Flomaton, Ala., a small station on the Louisville and Nashville Railway, forty miles north of Pensacola. Here it was discovered that the men had camped about half a mile from the station, and had made inquiries concerning a logging camp in Santa Rosa County, Florida.

Leaving Flomaton on the morning of January 29th, Detective Jackson went to McCurdy's ferry, on the Escambia River, two miles south, and there ascertained that a man calling himself Ward had crossed the ferry with an ox team on the morning of December 15th, and that he was alone. Pursuing the trail south some twenty miles, Milton, Florida, was reached. Here it was found that one man had crossed Blackwater with an ox team at that point on the night of December 17th. The belief that Joe Jackson had separated from Rube at Flomaton was confirmed, for the man in charge of the ox team was, beyond question, Rube Burrow.

Leaving Milton, the detective went to Broxton's ferry, on Yellow River, about ten miles south. Arriving at the ferry he was confronted by a stream about thirty yards wide, whose tortuous length stretched itself through a jungle of cane and cypress which seemed to defy his further progress. There was no boat in sight, and the unbroken wild-wood on the opposite bank gave no sign of a mooring. The screech of an owl from his perch in the dark cover of the jungle broke the stillness that prevailed, and awakened the detective from his lonely reverie.

Jackson learned from a man, who came stalking through the brush at this juncture, that the opposite bank was that of an island, and in order to reach the south side of the river the point of the island must be turned by rowing about half a mile down stream and then stemming the current for a like distance along the opposite shore. While the distance across the island from shore to shore was only about five hundred yards, the view was wholly obscured by the canebrake that covered it.

By shrewd questioning, Jackson found that Rube, under the name of Ward, was engaged in hauling feed from the landing on the opposite shore to Allen's log camp, about eighteen miles away, and at that very hour he was loading for his return trip on the south bank of the river. Broxton, the ferryman, had, unfortunately, gone to Milton with the only boat used at the ferry, and it was impossible to cross the river that day.

It was ascertained that Rube's practice was to leave the log camp about seven o'clock in the morning, reach the ferry about two in the afternoon, and after loading repair to the house of Broxton, the ferryman, where he would spend the night, and making an early start on the succeeding day arrive at the camp in the afternoon. It had, therefore, been his practice to reach the ferry landing on Yellow River every alternate day.

Jackson, being unable to cross the river, returned to Milton on February 4th, and sent the following telegram to an official of the Southern Express Company: "I expect to secure title to tract number one, about ten miles south of here, Wednesday, February 6th. The papers are all in good shape."

Rube Burrow had always been designated in correspondence between the officers and detectives as number one, and the telegram therefore meant that Jackson had located his man, that his plans were in good shape, and the capture would be made at the hour and place designated.

At four o'clock on the morning of February 6th Jackson was joined at Milton by the express officials, to whom the details of the situation were given. At an early hour the start for Broxton's ferry was made in a hack, Jackson having selected four reliable men from Milton to assist him. The party reached the ferry landing on the north bank of the river about eleven o'clock A. M., and after some difficulty a boat was secured and a landing on the south shore was effected.

It had been determined at first to continue the journey beyond the river and capture Rube in the road, but on reaching the south landing the surroundings seemed so advantageous that it was decided to await his arrival at the ferry. The roadway, after leaving the south bank of the river a few miles, wends its course through a sparsely timbered pine forest. It is very straight, and persons traversing it from opposite directions could see each other for miles. It was therefore feared that Rube, ever on the alert, might take the alarm at sight of the posse. On the contrary, at the ferry all seemed propitious. There was moored the boat which contained the camp supplies to be loaded into Rube's cart with his own hands. It seemed a very trap, baited and set in the certain pathway of some beast whose lair had just been discovered, and here it was agreed to quietly await the hour of his coming. The exit from the landing where the boat was moored was a narrow corduroy road that debouched from the water's edge, through overhanging

boughs and vines, for some three hundred yards, to the foot of a hill, and, curving to the south, shut out all further view from the river. On either side of the road, approaching the landing, were the fallen trunks of huge cypress trees, which afforded a splendid cover for the posse.

At the hour of noon, with the ferryman sitting not thirty paces distant, so as to watch the road and give the signal when the cart should appear in sight, the posse went into ambush and anxiously awaited Rube's arrival. He had never been later than two o'clock in reaching the ferry. It had been arranged that upon his arrival, and immediately upon his halting his team, all six of the posse would cover him with their breech-loading shotguns, and Detective Jackson should order the bandit to surrender; and if he failed to do so, the discharge of Jackson's gun would be a signal for the rest of the posse to fire.

Every alternate day for five weeks Rube had arrived at this spot between two and three o'clock P. M. The presence of the posse at the ferry was known to no one save the ferryman, and he was kept under careful surveillance. The capture of the outlaw seemed absolutely certain.

As the silent hours rolled by the detectives watched with bated breath for the signal from the ferryman. In the awful stillness that prevailed the ticking of the watches that marked the passing hours could be heard. Two o'clock, three o'clock, four o'clock came, and yet the crack of the ox-driver's whip, the longed-for music of the "gee-whoa," which, on Rube's coming, were wont to disturb the solitude of this wild retreat, were heard not. Finally, at five o'clock, after another hour of anxious waiting had passed, a colored laborer in the log camp from which Rube was expected, appeared. He was questioned as to the whereabouts of Ward, the name assumed by Burrow, and answered that one of his oxen was sick; that he had not started at eleven o'clock, and would probably not come until next day. This was a sore disappointment. The camp could not be reached until long after dark. The outlaw might start at any hour, and the posse might miss him in some of the many by-roads that intervened the long distance. It was concluded, therefore, to remain on watch at the ferry, hoping that he might still arrive before night.

With the slowly sinking sun sank the hopes of the anxious officers, who felt that the cover of night would bring some untoward event to mar the

plans which had been arranged for the capture. Darkness came, but the silent watch was continued. Broxton, the ferryman, lived about one mile from the ferry, and immediately on the road along which Rube had to travel. It was now quite certain if Rube should arrive he would spend the night at Broxton's and reach the ferry next morning. Ascertaining that there was a vacant house a few hundred yards beyond the house of the ferryman, and only a few feet from the road, it was determined best to remove the posse to this building and watch there during the night.

About seven o'clock the posse started from the river, giving orders to the driver of the hack not to follow until time had been allowed the advance guard to reach the ferryman's house. This order was, however, disobeyed, and just as the detectives approached the house, and when only about three hundred yards distant, Rube drove up to the gate and inquired of Mrs. Broxton the whereabouts of her husband.

The woman answered: "He has been at the river all day with a party of hunters."

Rube, ever on the *qui vive*, gathered his Marlin rifle from his cart, saying: "I'll go down and see Mr. Broxton."

Walking towards the ferry about fifty yards he heard strange voices, saw the hack, and intuitively knew that he himself was the game the hunters were after. Like a deer he bounded into the forest and was lost to his pursuers.

A guard was placed over the team which Rube had left as a trophy to his would-be captors, in the hope that the owner would return to confirm his doubts, if he had any, but Rube took the safe side, ran no risk, and did not return.

Rube set out at once for the log camp, arriving there about midnight. Arousing the cook, he bade him prepare supper, which he ate with great relish, while he recounted a story of thrilling adventure with highwaymen, in which he had luckily escaped with his life. Supplying himself with a goodly store of provisions from the camp's larder, the outlaw about three o'clock A. M. said good-bye to his comrades, and went forth into the solitude of the forest, consoling himself with the reflection that he had again outwitted the detectives.

There are those who would doubtless have managed the affair at Broxton's Ferry, on the eventful evening of February 6th, differently, perhaps successfully, but fortunately for Rube they were not present.

The ox team was taken to Milton and sold for the sum of \$80.

Detective Jackson, undaunted by the luckless result of the chase, equipped himself for a tour through the swamps of Santa Rosa, and, leaving him in pursuit, the rest of the party turned their faces homeward.

As an example of the unparalleled audacity of the noted train robber it may here be recorded that a few weeks afterward he endeavored to recover the value of the oxen and cart by executing a bill of sale therefor to one Charles Wells. The latter demanded the property, but it is needless to say he did not succeed in obtaining it. The express officials notified the would-be purchaser that the outfit had been sold, and that the title of the party to whom sold would be defended against any and all claimants.

CHAPTER XV.

CAPTURE OF JOE JACKSON.

DURING the summer of 1890, after having been routed from his haunts on Yellow River on February 6th, it was known that Rube Burrow was in the swamps of Florida, near East Bay, and that Joe Jackson was not with him. It was definitely ascertained that they had separated at Flomaton, Ala., on the 14th of December, 1889, when Rube drove his ox-cart into Santa Rosa County, Florida. It was known that the two men had made an agreement to meet in Baldwin County, Ala., on the 20th of February, 1890. The information as to this proposed meeting was reliable. It was evidently their intention to rob a train at Dyer's Creek, a point about thirty miles north of Mobile. The routing of Rube, however, from his hiding place in Florida interfered with this project.

Joe Jackson was promptly on hand at the rendezvous, the exact locality of which was not then definitely known to the detectives. He had seen in the *Courier-Journal* a notice of the pursuit of Rube Burrow in Florida, and was very cautious in going to the place agreed upon. He however made his appearance at Dyer's. He waited about there only one day, and not finding Rube, he left, especially as he casually heard that the detectives were looking for Rube Burrow in that country.

Traveling from place to place until May, 1890, and restless over the long separation from Rube, Jackson went back into Lamar County, as it was expected he would. His presence in that locality was soon known to Detective Jackson, but there were so many hiding places among the Burrow kinsfolk that it was difficult to locate him. It was expected daily that Rube would join him, but not so. Rube still confined himself to Florida.

Detective Jackson knowing that Joe was in Lamar County, determined to capture him. Taking a trusty man with him he went into Lamar County, traveling by night and afoot, and camped in the woods a few hundred yards from the home of Allen Burrow. His night vigils were soon rewarded by

observing suspicious movements, and an interchange of visits between old man Allen Burrow and Jim Cash. They were evidently preparing for a trip.

About dark on the night of the 15th of July Jim Cash and Joe Jackson rode out from the home of Allen Burrow in the direction of Fernbank, on the Georgia Pacific Road. The detectives were close upon their trail, and as it was evident that Jackson was *en route* to take a train on the Georgia Pacific Road it was not deemed safe to attempt the capture at night on the open roadway.

Detective Jackson covered all trains east and west of Fernbank with careful men, and he himself boarded the train at Kennedy, a few miles east of Fernbank, with ex-Sheriff Pennington and Sheriff Metcalf, of Lamar County. At Fernbank Joe Jackson boarded the train. He deliberately walked into the ladies' car and took a seat. The detectives were in the smoking car ahead, but kept the robber under close surveillance.

On arriving at the first station Detective Jackson got out and went to the rear of the ladies' car. Entering, he took a seat, unobserved, immediately behind Joe Jackson, and sat there until the train reached Columbus, Miss. When the train stopped, and Joe stepped out of the coach, he was covered by the pistols of the detectives and was arrested without a shot being fired. He had left his pistols at Allen Burrow's, and, as afterwards learned, was *en route* to Pleasant Hill, La., the home of his uncle, J. T. Harrell, having become tired of waiting for Rube Burrow's arrival.

The prisoner was taken to Memphis, Tenn., where, upon being confronted with the overwhelming evidence against him, he made the confession recorded in the next chapter.

CHAPTER XVI.

CONFESSION OF LEONARD CALVERT BROCK, ALIAS JOE JACKSON, MADE AT MEMPHIS, TENN., JULY 19, 1890, AND CORRECTED AND AMENDED AT JACKSON, MISS., OCTOBER 16, 1890.

LEONARD CALVERT BROCK is my full name. I was born in Coffee County, Ala., July 13, 1860. My father's name is Joseph E. Brock, and he was born near Raleigh, N. C. He is a physician by profession. He moved from there to Georgia, and then to Alabama. My mother's name was Sallie F. Harrell, and she was born in Georgia. My parents were married in Georgia before coming to Alabama. I have one brother, whose name is John Brock. He was born in 1863, and now lives on a farm in Coffee County, Ala. I have a married sister, who was born in 1852, Rebecca Katherine Brock. She married William Russell, and lives in Coffee County. The post-office address of all the above named parties is Elba, Ala.

I was never married. Was raised on a farm, and my schooling was limited. I went to school to a good teacher about eight months. Remained on a farm in Coffee County, Ala., until 1886, when I went to Texas, on account of a cutting scrape, the particulars of which are as follows: I had a negro working for me whose name was Louis Chapman. We had some hot words about a business matter, and I stabbed him very severely. I was also accused of killing a negro in Coffee County about the same time, and on account of these troubles I left home. I am innocent of the murder of the negro.

I went to Texas via the Southern Pacific route, and stopped at San Antonio, where I went to work for one Robert Daniels. Daniels was engaged in buying horses and driving them to northern Texas. I went to Dallas from San Antonio, and worked awhile in a lumber yard. I also worked a month for a man named Brown. Then I went to Sherman and stayed a few days, but was unable to get work. I went from there to Gainesville, and from there to the Indian Territory, where I worked for a man named John Pair.

I then went back to Cook County, Texas, in the southwest part of the county. There I first saw Rube Burrow, in company with a man whom he called "Bill." This was in the spring of 1886. Burrow employed me to help get up cattle. We went down into Young County, and from there to Wise County. I did not visit Burrow's house at any time. We drove some cattle to Fort Worth and sold them. He sold about thirty or forty head. Then he quit the cattle business and discharged me.

I then went to Texarkana and worked at a saw mill for a few days. I then went to Shreveport and got work at a sawmill about one hundred miles below Shreveport. I went from there to New Orleans, and from there to Mobile, and worked a few days in a livery stable for a man named Metzger. I went from there, in the fall of 1887, to Pensacola, and got work driving a team. From there I went to Milton, and drove a team for a man named Collins for some time, and went from there to Florida and remained there, working part of the time. I was at several stations on the Pensacola and Atlantic Road.

In the latter part of 1887 I went from there to Texas. First I stopped at Sherman, and worked there for a few days. I stayed there until February, 1888. There I got a letter from Burrow. He addressed me as Lewis Waldrip. I was then going by that name. He said he was in trouble, but did not say what it was, and asked me to come to him. The letter was written from Vernon. I replied to the letter, addressing it to James Cash, and told him I was undecided whether to come or not. I received another letter from him, also from Vernon, Ala.

About the first of March, 1888, I went to Alabama. I went via Memphis, and got off the train at Sulligent, and went to old man Burrow's by way of Vernon. I found Burrow at Cash's house. He then told me that detectives were searching for him, and told me about his arrest and escape at Montgomery. He stated they had gotten off the train at Montgomery and started up the street, when policemen attempted to arrest them. He escaped, after shooting one of them, but his brother was captured. He was pursued by a party and surrounded in a negro cabin, where he had gone to get some coffee. He ran out of the house to the timber and escaped unhurt, although fired upon. He sat down in the bushes, and although he had no cartridges he pretended to be loading his pistol, and they were afraid to attack him. He went from there back to Lamar County, Ala.



L. C. BROCK, *alias* JOE JACKSON.

After I arrived in Lamar County, in March, 1888, we stayed there about a week, and then went south to Monroe County, crossing the Georgia Pacific Road at Columbus, Miss. We went into Columbus, Miss.; from there to Artesia, Miss., and thence to Meridian. We took a boat on the Tombigbee River and went to Coffeerville, Ala., and then walked to Baldwin County, Ala. We worked in Dunnaway's log camp there, and it was here we met John Barnes. I drove a log team for Dunnaway, and Burrow sawed logs with Barnes. We remained there three weeks. Dunnaway then moved his teams to a

point on the L. & N. Road, near Perdido Station. I carried a team there for him, and he then discharged me and Burrow, and we sawed logs at another camp for a few days. We then left, and crossed the Alabama River near Fort Claiborne. We crossed the Tombigbee River at the station where the railroad crosses the river. Workmen were engaged in painting the bridge, and asked us not to cross on the bridge, and we went down and crossed at the ferry. We then went north until we got into Mississippi, and went via Buckatunna to Ellisville. Then we went to Forrest, Miss. We bought our horses in Smith County, Miss. I traded my horse at Dixon, Miss., giving \$15 to boot. The horse cost \$90. Burrow paid \$85 for his horse. From Dixon we went to Oxford, via Houston, Miss. We went through Oxford on horseback. We went on to Berryhill's, Rube Burrow's brother-in-law, arriving there about eleven o'clock A. M. Berryhill was absent, but returned that evening. We remained there two days. Left there in the afternoon, and went east to Okolona. Went thence to Cotton Gin, Miss., and from there to Vernon, Ala., stopping at Cash's house. We got to Lamar County in the middle of May. Cash kept my horse and Burrow took his to his father's. We remained there, being most of the time near Cash's house, until the early part of August, when Reuben Burrow, having learned that his brother Jim, who was in the penitentiary at Little Rock, Ark., for safe keeping, would be taken to Texarkana about the fifth of September for trial, determined to go to his rescue. We talked the matter over, and resolved to rescue him from the guards, even if we had to kill them to do so. I do not recollect what date it was, but we saddled our horses, one at John Burrow's and one at Jim Cash's, on a dark night in the early part of August, and started on the Arkansas trip. We crossed the Tombigbee River at Cotton Gin, Miss., and came through Okolona, Miss., through Oxford, Miss., through Sardis, Miss., and took a westerly course to Helena, Ark., where we crossed the Mississippi River. Went from Helena to Pine Bluff, crossing the White River at St. Charles. Crossed the Arkansas River nine miles south of Pine Bluff; then went to Malvern; then to Donaldson, fifteen miles south of Malvern, where we expected to get Jim Burrow from the train. Then we passed Arkadelphia, remaining there one night, and went down to Curtis, fifteen miles south of Arkadelphia. There we searched two trains for Jim Burrow, but failed to find him. We then came back through Arkadelphia to Donaldson. There we searched two or three trains. Then we went up to Malvern, and boarded two or three trains there. While at Curtis, Ark., we learned that there was a train which would not stop at that place, but would stop at Arkadelphia, and Rube said he would go back to Arkadelphia. We

made the trip, riding hard, but not in time to get on the train. Just as we rode into the town the train pulled out.

Then we lost all hope of getting Jim Burrow, and came on to Pine Bluff, crossing the Arkansas River nine miles south of Pine Bluff, and came on back through the country to DeWitt, and crossed the White River at a point twelve or fifteen miles north of St. Charles, Ark., and went on back to Helena, crossing the Mississippi River at Helena. Stayed all night at a little town on the Mississippi River, fifteen miles above Helena, on the east side of the river. Next day we came out through the bottom, wading our horses through mud knee deep for fifteen miles. Stayed all night two miles from the ferry, and there met Fletcher Stephens, who wanted to hire hands to pick cotton. Burrow proposed that we go to work picking cotton for Stephens. Stephens agreed, and gave us fifty cents per hundred and our board. This was about the first of October, 1888. Burrow was a good cotton picker, but I was not. We picked cotton until about December first, and Stephens paid us \$50.

We then went from there to Sardis. Remained all night at Sardis, and crossed the Tallahatchie and went south to Berryhill's, where we stayed one day. Went from there to Water Valley, Miss., and stayed there all night. Put our horses up at a stable there. Had decided at this time to rob a train, but no place or time had been set. We decided on robbing a train before we left Berryhill's.

While looking at some horses at the livery stable at Water Valley, Burrow and I noticed a policeman eyeing us closely. This made us rather uneasy, and when the policeman went from the stable to the hotel where we were stopping, Burrow followed him and went to the hotel and got his saddle-bags, which he had left there. We then saddled our horses and left.

We stayed at a widow's house that night, and as it was raining next day we stopped at ten o'clock at a house and remained there until next morning. We then went south, and took dinner next day ten or twelve miles from Duck Hill, Miss. Arrived at Duck Hill soon after dark on the night of December 15, 1889. I went into a store and bought two boxes of sardines; went back, and we waited a short while for the train. The horses were hitched out about half a mile or so from town, and east of the track.

When the train pulled into the station we were in plain sight. There was nobody out, as it was a bad night. We were there close by the station. We got on the engine just as it was ready to pull out, both on the same side, and each one of us had a pistol. I did not point my pistol directly at either engineer or

fireman, but we covered them and ordered them to run out a certain distance, about eight hundred yards from the station, and stop. The engineer was in the act of stopping the train when we got on the engine, but we made him pull out. When he stopped the train I stepped on the ground first. Just as I stepped on the ground I fired off my pistol in the air, and about that time Burrow, the engineer and the fireman got out, and we all walked back to the express car. About the time I fired my pistol I noticed the door of the express car was open. Burrow went in the express car. I remained on the ground.

Pretty soon I saw a man walking towards me from the passenger coaches, and told him to go back. I thought he was going to shoot me, and I asked the engineer to tell him to go back, and the engineer did so. The engineer asked me at the same time not to shoot him—that the man had nothing to shoot me with—and I did not shoot him. The man did not turn back, and the negro fireman told him to turn back, and he then did so. In a few minutes some one down by the passenger coach spoke, and at the same time commenced shooting at us. The engineer ran, I don't know where to, and as they commenced shooting (I think they had fired about two shots) I commenced firing. I kept advancing from the train, in order to dodge their shots. There was somebody else down in one of the coaches who shot out several times—probably four or five times.

After the shooting was over I walked back to the side of the express car and stood there until Burrow came out. I did not know there was anybody shot. I fired one shot when I stepped off the engine, and fired four shots while standing at the express car. I could see the man I was shooting at, but very indistinctly. Did not hear him cry out when shot. I remained by the car, after the shooting, until Burrow got out. The negro fireman said to me, "Don't shoot me." I said I was not going to shoot him.

I think I saw Burrow in the car door while the shooting was going on outside. We were all shooting rapidly, and I could not tell much about Burrow's shooting. When we left the car we loaded our pistols. I put in five cartridges, and he put three, he said, in his.

We then made our way back to our horses, got on them and rode the balance of the night. It was raining all the time, and we waded the creek three times, crossing bends, to get to our horses. It began to rain very hard after we mounted our horses.

We rode at least forty miles by daylight. That day we camped in the woods, about forty miles from the scene of the robbery. Burrow got some corn for the horses. We were very wet. We built a fire to dry our clothes, and then ate something about the middle of the day. We dried the money and counted it. There was \$1500 in greenbacks and \$365 in silver. We divided it half and half. This was on Sunday. That evening we started out about sundown, and crossed the Illinois Central Road at Weirs Station. Went through the town, and took the Philadelphia road and rode all night, making about fifty miles; rode on next day until about eleven o'clock. Stopped at a house and got dinner, and stayed there about three hours. On Monday night we did not ride very far. Built a fire that night. Tuesday morning there was a heavy frost.

We left the Philadelphia road next morning, coming to Pearl River before we got to Philadelphia. We thought we might be waylaid at the bridge by detectives and shot, and when we got within two hundred yards of the bridge over Pearl River, we turned through the swamps and swam the river about eight o'clock Tuesday morning, five miles from Philadelphia. We rode through the timber until we struck a road leading north from Philadelphia to Lewisville. Did not travel the road. Laid up that day in the woods.

Started about sundown, and just after dark stopped at a negro's house to buy corn for our horses, but found no one at the house. There was a rail pen full of corn, and we could have taken what we wanted, but we did not do it. Stealing corn was out of our line of business. Riding on, we saw a light, and going up to it, we found an old colored woman in the house. From her we bought twenty-five ears of corn and some provisions, paying her one dollar therefor. Fed our horses there, and went through Lewisville on Tuesday night after the robbery, and took the road towards Macon, on the M. & O. Road. Rode fifty miles that night.

Next day we lay up until ten o'clock, stopping at daylight. Then went on towards Macon, and turned to the left and crossed the M. & O. Road at Brooksville, Miss. We inquired here for the road to Columbus. Went via Deerbrook to Columbus, riding slowly, and crossed the Tombigbee River just before day at Columbus. Went out from Columbus about six miles and stayed there that day.

A lightning rod man who lived at Aberdeen, Miss., came out to the house where we were stopping. We remained there until after dark. Took the road at dark and traveled toward Vernon, Ala. Arrived at Vernon about midnight on

Thursday night after the robbery, and went to Jim Cash's house about twelve o'clock. Got something to eat and fed our horses, and left word for him to come up next morning and get our horses. We went five miles above there to a point in the woods.

Don't remember that we asked Cash anything about the robbery. First saw an account of it in the *Memphis Appeal*, which came in a day or two after we got there. John Burrow came to us next morning. We did not say anything to him about the robbery. He brought us something to eat. Told us where we could take our horses and sell them. We turned over the horses to John Burrow that morning, and he took them off to sell them, but did not succeed in selling the horses then. Mr. Cash afterwards sold the bay horse. A man there kept the sorrel horse.

We remained around there, staying first in one house and then in another—most of the time at Cash's house and John Burrow's, but not much at old man Burrow's. I stayed in the woods in day-time and in the house at night.

Stayed there until some time in July, 1889, having arrived there from the Duck Hill robbery just before Christmas. Sometime in the spring Burrow decided to send for a wig, and sent for it, to be addressed to W. W. Cain. I don't recollect at what post-office. After a long time he heard that some mail had come for W. W. Cain, at Jewell post-office. Mr. Cash said that one day he asked the postmaster, Mr. Graves, if there was any mail there. Graves said there was a circular or paper of some kind there for Cain, and he would bring it or send it down, which he did a few days after.

They got word in some manner that a wig had come, and Burrow also got word that Graves said he was going to arrest the man that came after it, and see what business he had with it. Heard that Graves had taken it out of the wrapper and was showing it to people, and remarked to several that he was going to take in the man that came for it, and find what business he had with it. Burrow asked me to go for it, but I did not want to go. I told him that to go after it, if Graves was going to do a thing of that kind, would stir up a big fuss. Burrow at last said he was going to have it, and that Graves would not arrest him, and he went after it.

He started one morning before day, and, on arriving, went in the house from a door on the east side; saw Mr. Graves standing behind a counter near the post-office department, and a lady standing behind the same counter near the other end of the house. As he stepped in he spoke to them politely, and

asked Graves if there was any mail there for W. W. Cain. Graves made no reply, but walked slowly from the post-office department towards a double-barrelled shotgun, which Burrow said he saw sitting behind the counter, and which was the gun that Graves intended to arrest the man with. He asked him a second time if there was any mail there for W. W. Cain, and Graves said "Yes," but still advanced towards the gun. Burrow told him to get the mail, and he made no effort to go to get it, and Burrow then pulled his pistol and shot him, saying, "Get it for me, or I will shoot you again." About that time Graves began to fall, and the lady said, "Don't shoot him any more; I will get the mail for you." She then went and found part of the mail, and Burrow asked her if there was any more. She told him she thought there was, and found it and gave it to him, and he then left, going out the same door he came in.

There was a negro in the house who ran out just as Burrow pulled his pistol, and while he was standing there he saw the negro's head around the door, but he ran off again.

Burrow got back at ten o'clock that night to where I was staying, at Jim Cash's house. He waked me and told me that he had to shoot that man to get his mail. Before Burrow went to the post-office I advised him not to go for the mail, as he had heard that Graves intended to arrest the man. I said, "You might shoot him, and it would cause a great deal of trouble." But he said he was going to have it, and that it was his and he had paid for it.

After he came to me that night and told me that he had shot him, we then went out and laid in the woods. We left without seeing Cash, and went over about a mile north of Cash's in the hills, and remained there until that evening about three or four o'clock, when Mr. Cash and John Burrow came from Sulligent. We heard their wagon coming, and got near the road, where we saw them. Cash told us where to go, and he would bring us something to eat next morning. Cash only remained a few minutes; said he had heard Graves was killed. Burrow said nothing about it.

That night we went to a place which was over in another direction, about half a mile from Cash's. He brought us something to eat, and we remained there one or two days. We then went nearer to Cash's house, and remained in the bushes for a few days. Then we went to John Burrow's and stayed in the bushes, probably two or three days, when the men came from Aberdeen. The night they came was a wet and rainy night, and we went in John Burrow's house to sleep. Next morning, just before day, I went out of the house and

discovered three men lying on the ground. I got within four or five feet of them. I did not go back in the house, but went back in the bushes where we had been staying. Burrow waited until daylight, and then came out where I was.

The men who had been scattered around the house were gone. I told Burrow I walked on somebody out there. He said he reckoned not, but I insisted that I did, and when Mrs. Burrow brought us our breakfast we told her about it. She went out and found signs. She walked on the other side of the house, in the lane where there was sand, and she said the sand was all packed with tracks.

We remained there until we heard the men coming back to Burrow's, and they were right at his house before we got up to walk off. We then walked around there through the bushes, about three hundred yards from John Burrow's house, and remained through the day. When night came we walked over in another direction about a mile from John Burrow's and half a mile from Cash's.

The detectives had Jim Cash, John Burrow and old man Allen Burrow in jail. Rube did not say much about it, only that they were holding them, thinking it would enable them to get us, and that they would turn them out in a few days.

We then depended on the women to bring us food. John Burrow, Jim Cash and old man Burrow were turned out of jail in two or three days, and we then continued around in the bushes until about the latter part of August, Jim Cash bringing us food.

About this time old Mrs. Burrow, Allen Burrow's wife, went up a few miles north to Crews to see her sister. She got word that Rube Smith wanted to see Rube Burrow. She came back and told Rube Burrow about it, and he decided that he would about as soon see him as not; at the same time he thought there might be some trick in it, but in a day or two he got his sister to go and tell Rube Smith where to meet him. The place agreed on was at the lower corner of the graveyard at Fellowship Church. We went there early on the night we were to meet him. We did not go to the lower corner of the graveyard, but went down in the bushes a piece further. I went to sleep after being there awhile, and Burrow crawled up near the corner to see who would come. He got tired waiting, and came back to where I was and woke me, and I had been awake a few minutes when we heard some one walking. He crawled

back as quickly as he could near the lower corner of the graveyard, where we heard the man walking, and got over inside. He saw there was only one man, and he spoke to him. They stayed there a few minutes; I did not hear the conversation; then he brought him up and introduced him to me as his friend, without giving any name, and did not call my name. Burrow told me he had not seen Smith since he was a little boy. I knew Smith was the man we were going to meet, because Rube Burrow had sent his sister after him. We stayed there a few minutes, and then we all three went back to where Burrow and I had been, in the woods half a mile from Cash's.

We remained there next day, and next night we went nearer Smith's house. We did not go in sight of the house. It was about ten or twelve miles from Cash's. We remained there two days. Smith went after food for us, but I do not know where he got it. We then went back near Cash's again. Remained there one or two days, when we started south, traveling down the Tombigbee River. We did not start for any certain point when we started. Burrow told Smith, just as he told me, how a train could be robbed. Smith agreed to go; said he had no money, and needed some.

We then traveled south to Ellisville, Miss., on the Northeastern Road. It was concluded before we got to Ellisville that we would rob a train on the Northeastern Road, but Rube decided that there was not a great deal of money on that road, and we would go back over to Buckatunna and rob a train there. I should have said that our route to Ellisville was via Buckatunna, Miss. After getting to Ellisville we decided not to rob the Northeastern train, and decided to go back to Buckatunna. We traveled on the road until we got within two or three miles of Buckatunna. Waited over one day in a little out-house. We went out half a mile from the house and got some bread cooked at a white man's house. I went to get the bread cooked, and made the bargain for it, and Smith went after the bread when it was cooked.

On the evening previous to the robbery I went to Buckatunna and got a piece of meat and went back to the camp. Saw a negro in the out-house where we were staying, but did not talk to him. When dark came on we left the house and went through Buckatunna; don't remember how far we went below Buckatunna, but we went to where the trestle was. We remained there that night until the north-bound train passed. Then Burrow and Smith went to Buckatunna. Burrow asked which one was going with him. I do not remember just what was said, but he told Smith to go with him, and I remained there until they came down with the train. The train stopped right where I was

sitting, at the end of the cross-tie. I then said to Burrow, "You had better bring out the pick with you." Burrow had told me how they had picked the door open when the express messenger refused to open it, and they did that rather than fire the express car. They brought the pick out, when Smith, the fireman and engineer got off the engine. Burrow remained on the engine two or three minutes, or got off on the other side, I don't know which. They then came back to the express car. Burrow took a position in front of the door of the express car and told the express messenger to open the door; that if he attempted to move away without opening it he would shoot him. It was a barred door that Burrow wanted opened. The messenger opened the door and Burrow went in. What words were passed as he was going in, or after he was in, I do not know. I remained there with the fireman and engineer. Smith walked back towards the passenger coach a few steps. The conductor, or some one, came to the door of the passenger coach and asked what we were doing—I suppose two or three times. I fired off my pistol in the air. Some one—I suppose it was Smith—fired his pistol off also. Burrow got through in the express car and came out. He told the engineer to pull the train up until the mail car was off the trestle. The engineer said he did not know whether he could move it until he got up more steam, but he believed the mail car was already off the trestle. Burrow stepped back and asked the mail agent to open the door, which he did. He then got up in the mail car. What was said or done in there I do not know. He came out and said he had the mail.

The engineer said he would have to get up more steam before he could move the train, as he had on extra coaches that night. It took him a few minutes to get up steam, and we remained there with him until he pulled out. We were all close to the engine, and there was some talking carried on, but I don't remember what was said.

After the train pulled out we went off in an easterly direction; got out a short distance and took the covers off the money, in order to get rid of the weight, piled them up and set fire to them. Did not divide the money then. The greenbacks were put in a sack; don't remember who had it; believe Burrow took the sack, and we divided the silver to make it lighter for each one. Some time that day we divided the money. We then traveled in an easterly direction until we crossed the Tombigbee River. I think each of us got \$1,150, making in all about \$3,450. After crossing the Tombigbee River we turned north, traveling up the river until we got to Demopolis, Ala. There, after resting in the bottom a couple of days, on Monday morning Smith took the train, either

for Montgomery or Birmingham (I can not say which), stating he was going back to Lamar County. Burrow told him particularly to be cautious and not to show his money. I have not seen Smith from that day to this.

Burrow and myself then kept on north until we got to Lamar County, traveling on foot through the woods part of the time, and in the road part of the time. Traveled mostly by day from Demopolis. Arrived at old man Burrow's some time in the night, and remained there a few days until we rested up. The night we got there we did not sleep at all, but stayed on the ground until nearly day, when we went into old man Burrow's barn, up in the loft. Some of them came out to the barn in the morning, and we made our presence known. We remained in the barn a couple of weeks; then we went up near Cash's and remained there for a week, he bringing our food to us.

We then went back to old man Allen Burrow's; remained there a few days, and decided to go down the country on a wagon. We were tired of having to lie out in the bushes, and made up our minds to go south, after discussing the matter. I proposed buying a horse; Burrow said he did not want to go that way; he would rather take an ox-wagon and go. We concluded at one time to walk, and got as far as Columbus, Miss., or within a mile or two of that place, and there Burrow said if we went back he would buy a team, and that if I would go with him with the team he would pay my expenses. He offered to pay my expenses because I did not want to go on the ox-cart. I decided to go back with him, but it was against my will.

We went back to Lamar County, to old man Burrow's house, and Rube Burrow bought a team of oxen and a wagon. Jim Cash carried the team to Columbus, Miss. Burrow and myself went to Columbus with Allen Burrow in a covered wagon. We got out of the wagon within a few miles of Columbus and old man Burrow went on to town. We waited awhile and then went into the city, it being about dark when we got there. We then took the team and drove over about three or four miles east of Columbus and camped for the night. Next day we hitched up and drove on; camped when night came on, and drove in the day-time until we got to Flomaton, Ala., arriving there on the 14th of December, 1889.

I concluded I would not go into Florida with Burrow, but would go to Louisiana. I boarded the train at Flomaton for New Orleans, where I took the Texas Pacific Railway next day for the home of my uncle, J. T. Harrell, at Pleasant Hill, Sabine Parish, La. He is a well-to-do merchant there, and is the

brother of my mother. I had not seen him since my boyhood, and he knew nothing of my connection with Rube Burrow. I represented to him that I had been in the cattle business in Texas. I remained there till about the 15th of February. I passed the time pleasantly, visiting in the town the friends and neighbors of my uncle.

When Rube Burrow and I separated at Flomaton, Ala., we were to meet on the 20th of February at what we supposed was a station called Dyers, a few miles east of Mobile, on the L. & N. Road. When I went there on February 20th I found there was nothing there but a switch. I failed to meet Burrow, and went back to Mobile and to New Orleans; did not stay at New Orleans; got there in the morning and left that night, going back to Mobile. Remained there a few days and then went to Scranton and remained there one day. I then went back to Mobile. I walked to Scranton; took me several days, and did not stay there, but came back to Mobile. Was sick at Mobile with measles two or three days. Remained at Mobile until the middle of March, when I left and went to Meridian. Stayed there until the first of April. Then went to Demopolis, and came back to Meridian shortly. Made a trip to Vicksburg; stayed there two weeks. Went back to Meridian and stayed there until the latter part of April, and then decided I would go back into Lamar County, Ala. I got a ticket from Meridian to Columbus; at Columbus I got off the train and walked to Allen Burrow's; got there in the night and went up in the barn and went to sleep. That was the latter part of April or first of May, 1890. The first person I met was Mrs. Burrow, who came out to the barn; she asked where Rube Burrow was; told her I did not know where he was; had not seen him since before Christmas. First heard them talking about getting after Burrow in Florida, when I went to Dyer to meet him. Mrs. Burrow did not know anything about this; asked me if I knew when he would come; I told her I did not know. Remained in the barn that day; that night I went in the house. Went up in the loft at Allen Burrow's house; they put bedclothes there and handed me food up in the loft. Stayed there during the day all the time, from about the first of May until last Tuesday, July 15th. Came down at night; did not go anywhere at all; talked with old man Burrow very little.

When Rube Burrow and I agreed to meet at Dyer Station, on the L. & N. Road, it was for the purpose of robbing a train on the Louisville and Nashville Railway. He said if we did not meet on the 20th of February at Dyer Station, that we would meet early in the fall in Lamar County; think he said about September 1st. Waited for him at Dyer one day, February 20th, as agreed, but

he did not come. I heard, while at Bay Minette, that the detectives had routed Rube in Florida, and therefore did not much expect to meet him as agreed.

I left old man Burrow's last Tuesday night on his mule, having made arrangements with Cash to meet me, and Cash was to take me to Fernbank, Ala. I borrowed \$25 from Cash. He carried me within five or six miles of Fernbank and turned back. I gave him my pistol, because I did not intend to ever use another pistol. I felt bad, and said very little to Cash. When we separated he asked me when I was coming back. I said I reckoned I might be back in the fall. He did not seem to be anxious about Rube, and said nothing about him.

Rube Burrow never talked with me about any particular robbery he was engaged in, except at Genoa, Ark. He did tell me he was in that robbery, and indirectly mentioned the Gordon and Ben Brook, Texas, robberies, giving me to understand he was in those robberies also.

I have heard Rube Burrow say that if he was out of trouble, or if he was where he could quit robbing trains, that he would stop it. He thinks a great deal of his children, and is anxious to have them educated, and spoke of coming back to Lamar County in the spring to see if they were at school.

When I started from Allen Burrow's on the 15th of July I intended to go to Columbus, Miss., and from there to some point in Kentucky, and intended to quit train robbing. That is why I gave away my pistols.

We got in the Duck Hill robbery about \$1,500 in greenbacks, and about \$250 in silver. This we divided, each taking half. We did not rob the mail at Duck Hill. Burrow wanted to do it, but I would not agree to it. Burrow insisted on robbing the mail at Buckatunna, but Smith and I protested against it. Burrow said, "If we can get away with one, we can get away with the other; and if we are taken for one offense, we will be taken for the other," and insisted on robbing the mail, and carried out his view.

My opinion about Rube Burrow is about as follows: I have often heard him say that if the detectives crowded him that he would kill them, or he would shoot his way out if they did not kill him. He said it would be a life and death fight. I have heard him say more than once that if he could get a large lot of money he would leave enough at home to take care of his children, and then, if he could, would go off where he would not be bothered, and lead a quiet life.

Am pretty well satisfied he will come back to Lamar County about September 1st, because he said he would do so.

At one time, while in the cattle business at Fort Worth, Texas, I had an encounter with a man who was a bully, and who was cutting up one day, and in an insulting manner ordered me out of his way. I stepped out of his way, but he kept annoying me, and I at last decided I did not want any more of his talk, and told him so. He then cursed me, and I cursed him also, and he drew a knife. I had a pistol, and walked up to him and struck him on the arm, knocking the knife out of his hand, and then knocked him down. Burrow witnessed the affair, and this was probably the reason he chose me to help him in his train robberies.

I was never in a train robbery with Burrow in Texas, and he never mentioned that he had engaged in train robbing in that State, except indirectly, as I have stated.

When we started on the Arkansas trip I had one Colt's forty-five caliber pistol. Burrow had two forty-five caliber pistols. Had no rifle. These were the arms we used in the Duck Hill robbery, and, as far as I know, Rube Burrow now has these same pistols. They are not double, but single action pistols. Burrow got from Connecticut a Marlin rifle, thirty-eight caliber, in April, 1889. It holds fourteen or fifteen cartridges.

At Duck Hill we tied our pocket handkerchiefs, such as we used daily, around our faces, just before we boarded the engine. I do not remember the color of the handkerchiefs. At Buckatunna I tied my handkerchief on just before the train stopped. Burrow and Smith had theirs on when the train stopped, and I suppose put them on before they boarded the train at Buckatunna.

(Signed) L. C. BROCK, *alias* Joe Jackson.

* * * * *

The foregoing statement being read in the presence of L. C. Brock, and he having stated that the same is correct, we, the undersigned, do hereby certify to the same, and agree that while Reuben Burrow is alive the statement will not be made public.

G. W. AGEE,
T. V. JACKSON,

* * * * *

The statement made by a so-called detective, Stout, in a publication issued by him, that Rube Burrow was on the train at the time of Jackson's capture, dressed in female apparel, and escaped, like many other accounts in that volume, is a silly fabrication.

Joe Jackson was brought to Memphis and quartered in the building of the Southern Express Company, on North Court Street, for several days. He was confronted with the evidence of his crimes by the express officials. The chain of testimony which had been riveted about him, from the day he joined Burrow, was unfolded to him link by link, and he was told to choose between a trial for the Duck Hill affair, in which the penalty was hanging, for the murder of Chester Hughes, and that of Buckatunna, where the penalty was imprisonment for life. For two days Joe held out, still denying the crimes charged, but, finally, on the morning of the third day, when he found he was to be taken to Duck Hill, he agreed to give a full statement of his participation in the Duck Hill and Buckatunna robberies, and to narrate the story of the movements of Rube Burrow and himself from the day they first met until they separated in December, 1889. The sole stipulation was that his confession should not be made public while Rube Burrow lived, a promise which was faithfully kept by the express officials, satisfied, as they were, that the knowledge they possessed would soon enable them to capture Rube Burrow, then the last member of his band at liberty.

CHAPTER XVII.

RUBE SMITH'S PLOT TO ESCAPE FROM PRISON—HIS PLANS DISCOVERED—THE TELL-TALE LETTERS.

RUBE SMITH, having been sentenced to ten years' imprisonment, was, therefore, a convict in the state-prison when Brock, *alias* Jackson, was carried there on July 21st for safe keeping. Smith was at work in the prison shop when Brock was taken within the gates and given a seat in the prison-yard, about thirty feet from the shop window. An official of the Southern Express Company, with Detective Jackson, approached Rube and said:

"Well, Rube, we have Joe Jackson."

Smith had not heard of the capture, and was evidently somewhat embarrassed at the announcement. Quickly rallying, however, he answered:

"I don't know Joe Jackson—never saw him in my life."

"Come with me to the window," said the official.

Rube walked over to the window, and Joe being pointed out, Rube said:

"No, sir, I never saw that man before."

On being told he was Rube Burrow's partner, Smith repeated what he was often wont to say:

"I have not seen Rube Burrow since I was a small boy," and again he denied his guilt.

"Ah," said the official, "We have new evidence against you, Rube. We know that Mrs. Allen Burrow visited your father's, and through her you sent a message to Rube Burrow that you wanted to see him; and we know that Ann Eliza brought the answer from Rube that he would meet you in Fellowship church-yard. We know just where you met before the robbery, and we know you parted at Demopolis, Ala., after the work was done."

This information, which was literally true, was adroitly given Rube for a purpose, and convinced him that the coils were tightening, and that additional

evidence had, indeed, been secured.

Rube Smith, though not as old in crime as his copartners, was not a whit less bold and desperate. While in jail at Meridian, pending his trial at Waynesboro, he had been discovered in a plot to kill the jailer and liberate himself and others. He had not been at Jackson thirty days before it was developed that he was scheming to make his escape, and for this offense he then wore a heavy ball and chain. Bold and unscrupulous, he was ready to take the life of any man who stood between him and liberty. He was, however, very secretive and self-possessed, and up to this time he had not, from the day of his arrest, spoken a word which could be used as evidence against him.

Jeff. Moody, a convict from Itawamba County, was on the eve of being liberated, having served his time. Smith, in his desperation, sought Moody as a medium through which to communicate with friends on the outside, through whose aid he hoped to make his escape. After cautiously canvassing the matter, Smith unfolded to Moody his plan of escape, commissioning him to take letters to his father, who was requested to buy pistols, which Moody was to bring to the prison; and as all the guards were withdrawn from the walls of the prison at night, under Moody's guidance Jim Barker was to scale the walls and hide the pistols in a drawer of Smith's work-bench, and at the tap of the six o'clock bell the succeeding night, after the guards had been called in, and while the prisoners were being conducted to their cells, Smith expected to furnish Brock, and a fellow convict who had been taken into the scheme, a pistol each. The inside guards were to be "held up" and disarmed, after the fashion of train robbers, and thereby they would effect their escape. As the letters show clearly the bold, bad character of the man, they are herewith given literally:

Aug. the 24, 1890.

Dear Father:

I seat my self to rite you a few lines to let you no what I want you to do for me. James cash has told all he noes. they are a going to use him fore a wittness against me—he sot the trap to cetch Jackson, they have got him heare now. Agee told me all a bout Miss Burrow & Anlizer a coming up thaire. He told me rite where wee got together at & where I left them at, som body has told them that noes something. Jackson ses he hant told them nothing. he ses his name is not Jackson, it is Winslow. He

told me that James cash set the trap for him he sed that no body node he was coming but Cash, so it look very darke for me theay have got all under holt now everything is a working against me heare but if you will doo what I want you to do I will leave them the Bag to hold themselves. I mean just what I say and nothing elce. Now I will begin to tell you what it is so look on the other side. I want you to see that I get what I want. I want you to send me three good Pistols. thay will cost a bout \$15 a peace but you be shore to get them I want them to bee 45 caliber I want the Best ingraned Smith & wesson or colt's, one or the other. I want you to get Uncle James Barker to cum with this man to bring them to me he noes just how to get them to me If I had them I can get a way without having to fire a shot I no Just what I am talking a bout now. thay are goin to send me up salt creak if they can. this is all the chance for me and I no it & if you dont do something now I am going to give the gards a faire shot at me—if theay kill me all rite & if they miss me all rite but if you will do what I want you to do theay wont bee eny Danger of geting hurt for i can make them turn me rite out without eny truble.

REUBEN SMITH.

* * * * *

August the 24 1890.

Dear father:

I seat myself to rite you a few lines to let you no that I am well at this time hoping those few lines may find you the same. I have no news to rite onley times is mity hard here. My Dear father as I state in my other note what I want you to do fore me I do earnestly pray that you will doo it. You know that I would not reckment a man to you that I thought would get you in truble. I have bin with Mr. Moody for some time he has proved to bee a friend too me so faire he has bin heare for three years he noes the triels and troubles of this place he is not in very good helth as you will see. I want you to give him as good treatment as you can for he deserves it, as you will have to pay all the expences a bout this matter when he has done thease matters I want you to see him home all rite so I will close hoping

success to all. Yours truley, from Reuben Smith to Mr. James Smith, in
ceare of a friend.

* * * * *

My Dear father:

I seat myself to rite you a few lines to let you know that I am well. I have
lernt a good eal a bout what theay Aim to do, theay aim to use James cash
as a witness a gainst me and sum of uncle allen Burrow's folks. Now
heare is a man that has bin heare serving his three years in the
penitenchery and after his time was out theay warnt willing to turn him
loos thin. he is a good man & I think he is all rite. I want you to treat this
man rite & give him Plenty to eat and when he Brings me my things then
I want you to fix him up all rite. I want you to get uncle Jim to cum with
him heare you will have to beare his expences heare and back it will be
easy done he can get me eny thing that I want and he wont bee in any
danger hardly at all he noes where to put them for me & everything will
Bee in a nut shell. Bring me a bout 20 dollars in money & put it with the
pistols I want good pistols. I want sum like the one that I had if you can
get them of that cind. I want the .45 caliber be shore and get me plenty of
catriges He can tell you all a bout me I dont think he will tell you a ly to
get the advantage of you I have watch him close evry since I have bin
heare i think he will doo what he ses he will do. he has got a family at
hom a looking for him & after he dos what he can for me I want you to
see him hom all rite. he can tell you how everything is heare and how me
& him has got it fixt up. it will haft to bee don after dark. Dont fail to Do
this for I no it is all the chance for me if you let this chance pass you may
never get a nother as good as this so I feel that my hold life is in your
hands dont fail whatever.

Yours truley,
REUBEN SMITH.

Moody had disclosed to the prison officials the proposition of Smith to
send these letters out by him, and had been instructed to humor the plot.
Meantime the express officials had been notified of Moody's disclosures, and

of the date he would be released, and the letters were thus secured and made important links in the chain of evidence against Smith.

CHAPTER XVIII.

RUBE BURROW HARBORED IN SANTA ROSA—THE FLOMATON ROBBERY.

SANTA ROSA COUNTY, in which Rube sought refuge from the unflagging pursuit of the detectives, is one of the northwestern counties of Florida, its northern boundary being the Alabama line. Escambia River, whose blue waters are dotted with numerous islets, marks its western limits, and flowing onward into Pensacola Bay, interlocks the many inlets and lakes that indent its shores.

Santa Rosa Island, stretching itself along its whole southern border, in the white-crested waters of the Gulf of Mexico, seems to stand as a sentry to guard its serf-beaten coast. The county is more than half the size of the State of Delaware. It embraces 1,260 square miles of territory, and has a population of only 7,500, or about six persons to every square mile, and the major portion of this population is confined to Milton, the county seat, and other towns lying along the Pensacola and Atlantic Railway.

Yellow, East Bay, Juniper and Blackwater Rivers all find their channels to the estuaries of the Gulf through Santa Rosa. In this isolated and uninhabited district, amid the hooting of owls, the hissing of reptiles, and the snarling of wild beasts, as ever and anon they were startled from their dark coverts, Detective Jackson quietly but persistently followed the outlaw.

On February 15th, about twenty miles north of Broxton's ferry, Jackson found Rube's trail, and reaching a landing on Yellow River, ascertained that a boy had taken him across about one hour before his arrival. Learning that the boy had been instructed to pull the boat half a mile down stream before landing on the opposite shore, Jackson, being afoot and finding no other boat could be secured, swam the stream, and making his way, with great difficulty, through the canebrake, down the river's bank, found, on meeting the boy, that Rube was only half an hour ahead of him.

Pushing forward, he pursued the trail, though without result, until darkness compelled him to abandon it and shelter himself, as best he could, in the marshy bottoms of Yellow River.

Some weeks after this the outlaw was located in the vicinity of East Bay, about four miles from the Gulf coast, in one of the wildest of Florida's jungles. Here lived Charles Wells, with his two sons and two daughters, in a dilapidated cabin, whose roof was thatched with cane from the brake not twenty paces distant. Wells bore a very unsavory reputation throughout all that section, and was known to harbor criminals of every class and type. His fealty to the criminal classes who sought refuge in the wilds of Santa Rosa had been tested full many a time, and Rube was not long in ascertaining that in the person of Wells he would find a friend, whose dark record of crime gave ample surety of his zeal in the cause of lawlessness. In this secluded spot Rube found shelter during the spring and summer of 1890, never venturing, at any time, however, to trust himself in the cabin of Wells. He lived in the canebrakes like a beast, and defied the most vigilant efforts of the detectives to dislodge him.

Meantime Detective Jackson was withdrawn from Florida early in July to look after Brock, *alias* Jackson, and his capture having been effected the detective returned about August 1st to Florida, to renew his pursuit of Rube.

While searching the swamps of Santa Rosa, Detective Jackson learned that Rube claimed to know one John Barnes, of Baldwin County, Ala., and the information that Barnes had taught him how to saw logs was confirmed by the confession of Brock that Barnes was a laborer in the camp on Lovette's creek, where all three of the men had worked in March, 1888. With some difficulty the detective found Barnes, who lived on a small farm about twelve miles from Castleberry, Ala. Barnes soon convinced Jackson that the man known to him as Ward was Rube Burrow. Barnes was selected to go into Santa Rosa County and endeavor to toll the outlaw from his hiding place, or else definitely locate him, and thus enable the detectives to capture him. Barnes was peculiarly fitted for the task. The Indian blood that coursed through his veins gave him both nerve and cunning. He was a native of Santa Rosa, and, as boy and man, had traversed fen and swamp till he knew every bear trail and deer stand in that entire section.

About August 20th Barnes went into Santa Rosa County to make a *reconnaissance*, and in a few days visited Wells, to whom he was well known. Barnes intimated to Wells that he expected to leave Alabama and settle in Santa Rosa County, and fortunately for his plans Wells suggested a copartnership between Burrow and Barnes, to which the latter, feigning reluctance, finally consented. Barnes remained long enough at Wells' cabin to receive a message from Rube that he would meet him on Sunday, August 31st, in that vicinity. Barnes returned to his father's home, about eighteen miles distant, and reported the result to Jackson, who was enjoying the quiet of camp life, within easy reach of the home of the elder Barnes. Why Rube should postpone the meeting for a week and enjoin Barnes, as he did through Wells, to return, was a mystery. Upon Barnes' return to Wells, as appointed, he was advised that Rube had declined the proffered partnership and would not see him. Rube knew the detectives were in Santa Rosa, and shrewdly suspecting that Barnes was being used to entrap him he refused all alliance with him.

While Barnes was vainly endeavoring to negotiate a copartnership between Rube and himself, the wily outlaw was planning another train robbery.

It was suggested to Brock, *alias* Jackson, a few days after his arrest, that all of Rube's partners being captured he would doubtless recruit his forces before robbing another train. Brock replied, "If Rube takes a notion to rob a train by himself, he will do it."

When it was reported, therefore, that the north-bound express on the Louisville and Nashville Railway had been boarded on the night of September 1, 1890, at Flomaton, Ala., only about seventy-five miles from the hiding place of Rube Burrow, it was quite evident that the bold adventure was the work of the famous bandit.

It was a *chef-d'œuvre*, in the execution of which he doubtless congratulated himself. That a man should, under any circumstances, successfully hold an entire train crew at bay, and, single-handed, rob the express car, is a deed of such daring as to almost challenge admiration, at least for his dauntless courage, whatever may be thought of his lawless purpose; but that a man hunted down by detectives, living like a wild beast in the swamps, afraid to show his face in daylight because of their dreaded

presence, should emerge from his place of concealment and rob the very corporation whose sleuth hounds had tracked him to his lair, betokens a degree of audacity unparalleled in the history of crime or the realms of fiction. Rube is credited with possessing a sense of the ridiculous, inherent in the Burrow family, and doubtless this turning of the tables on his would-be captors appealed strongly to his sense of humor, if, indeed, the dare-devil deed was not inspired thereby.

The train pulled into the station of Flomaton about ten P. M., where it was delayed some twenty minutes in awaiting the Pensacola connection. Meantime a tall man, coarsely dressed, was seen to mount the steps of the express car, next the engine, and look in upon the messenger through the glass door in the end of the car. When he came down from the car he was seen to have a coal pick, which he had taken from the tender of the engine. A few minutes afterward, just as the train was pulling out, he ran toward the engine and mounted it. The yard-master observed these movements, but simply thought the man was some employe of the railway.

Before the train was fairly under headway the engineer, facing about, saw himself and fireman covered by two revolvers in the hands of a man whose face was masked and who held under his arm a coal pick.

“Pull ahead and stop the train with the express car on the north side of Escambia River bridge, or I will blow the top of your head off,” was the stern command.

“All right, Captain,” said the engineer.

The bridge was about three quarters of a mile north of the station. While *en route*, Rube said:

“If you obey my orders, I will not harm you, but the penalty is instant death if you disobey.”

On arriving at the bridge the sharp command “Stop!” was given, and the engineer instantly complied.

“Get down,” said Rube to the engineer and fireman, and he followed the two men to the ground.

The colored fireman, as soon as he reached *terra firma*, made instant flight from the scene. Rube fired two shots at him as he fled, which had no

other effect, however, than to increase his speed.

When called upon afterwards to explain the cause of his retreat, the darkey replied:

“I thought I heerd him say run, and as we was all ’beyin’ orders, I run.”

Rube now ordered the engineer to take the coal pick which he gave him and break in the front door of the express car. While the engineer was engaged in doing so, Rube, standing on the platform of the car behind him, fired five shots into the air on the one side, and four shots on the other side, and by this ruse made it appear that the woods were full of robbers.

Johnson, the messenger of the Southern Express Company, stood on the floor of his car, pistol in hand, as the engineer entered, the door being broken through, and manifested a disposition to resist the attack upon his car. Rube, however, standing in the doorway, covered him with his two Colt’s revolvers, and threatening to shoot both engineer and messenger, the latter, being entreated also by the engineer, like Ben Battle, of old, “laid down his arms.”

Rube threw a sack to the engineer, not trusting himself to cross the portals of the doorway in which he stood, and bade him hold it, while the messenger was ordered to place within it the contents of his safe. The messenger complied, but the bulk of the matter placed in the sack was so small that Rube insisted he had not received all. The messenger, taking from his safe a book, said:

“This is all—do you want this?”

“No,” said Rube, “don’t put that in.”

“Give me your pistol,” then said Rube, “butt end foremost.”

The messenger complied, and Rube backed out of the car, saying to the messenger and engineer:

“If you poke your heads out of the car before I get out of sight, I will shoot them off.”

The work was done so quickly that the passengers were hardly aware of what had occurred until all was over. The conductor, who came forward and entered the rear compartment of the express car, which was used for

baggage, while the messenger was delivering the contents of his safe, was observed by Rube and ordered to retreat. Taking in the situation, the conductor deemed prudence the better part of valor, and complied.

This proved to be Rube's last exploit at train robbing, and he secured only the pitiful sum of \$256.19.

Officers of the Express Company, with several detectives, arrived on the scene the next day, and it was soon ascertained that Rube had gone back into Santa Rosa County, from which he was quickly driven by the detectives, on the long, last chase of his career.

CHAPTER XIX.

RUBE ROUTED FROM FLORIDA—THE CHASE INTO MARENGO COUNTY, ALA.—HIS CAPTURE.

THE detectives of the Southern Express Company were only a few hours behind the outlaw when he reached his lair in Santa Rosa County on the third day after the Flomaton robbery. Anticipating his return an effort was made to cut off his retreat. Rube, however, had twenty-four hours the start, and being at home in the swamps, succeeded in eluding his pursuers.

It was now determined by the officers of the Southern Express Company to organize a posse under the leadership of Detective Thomas Jackson and drive the bandit from the swamps of Santa Rosa and capture him at whatever cost and hazard.

Detectives Stewart and Kinsler, of the Louisville and Nashville Railway service, were detailed to aid Jackson, and several other trusted men were added to the posse.

“Go into Santa Rosa and capture Rube, or drive him out,” was the order given.

The faithful detectives, willing to brook any toil and brave any danger, however hazardous, pledged their best efforts to carry out the order.

The expedition, having been provided with ten days' rations, quietly set out for Santa Rosa County on the 12th of September.

John Barnes, who had returned, having failed in his attempted treaty with Rube, was the trusted guide. Leaving the Pensacola and Atlantic Railway at a flag station south of Milton, the party set out afoot across the swamps for Wells' cabin, distant about thirty-five miles. The difficulties which beset the journey, however, were so numerous that three days were consumed in arriving at their destination.

Reaching the vicinity of Wells' home soon after dark on the 15th of September, the cabin was surrounded, and sentries, under cover of the adjacent cane and brush, began watch. Morning came, and with it the detectives hoped Rube would appear, either to enter the cabin for food, or, if sheltered there the previous night, he could be seen going out. Not so. For three days and nights a close watch was kept under circumstances of hardship and suffering which sorely taxed the capacity of the detectives. Driven by hunger and thirst, they finally resolved upon a strategy which in time brought good results.

About sunrise on the morning of the 18th of September the detectives closed in upon the cabin. Rube was not found. It was evident, however, that he was in the immediate vicinity. A trunk, containing a suit of clothing, an overcoat and some small articles, was found in the cabin, and the property was confessed to be that of Ward. Searching the trunk, Jackson found \$35 in currency, which bore the marks of having been stitched while in the custody of the express company. The money being claimed by Wells, other money was exchanged for it, but the clothes were taken in charge. The detectives now resolved to starve Rube out—to hold his commissary and prevent the issue of any supplies.

While the detectives were in ambush about the cabin, visits were being made by members of the Wells household to Rube, but it was impossible to follow these scouts without disclosing the presence of the detectives. The wild solitude of the place quickened the ears of these lawless people to the least sound, and the snapping of a cane in the brake or the sound of a footstep was regarded as a signal of danger. The very profession of these people was to harbor thieves.

Once in possession of the Wells domicile the detectives put the whole family under close surveillance. They virtually made prisoners of them. Deploying part of their forces in the adjacent canebrakes, they swept every trail for miles around, and made it impossible for the outlaw to find food in any part of that section.

While scouring the swamps Detective Jackson learned from a thoroughly reliable source that Rube had crossed Yellow River just above the Florida line on the 25th of September.

The order had been carried out—Rube had been routed from the swamps of Santa Rosa. The detectives were at once withdrawn from Florida. Barnes, the guide, hurried home, his presence not having been disclosed while in the Wells neighborhood.

Jackson was now making ready to strike the trail of Rube who, he felt sure, had crossed the Alabama line, when, on September 29th, the following telegram from John Barnes was received:

“Ward, the man you call Rube Burrow, took breakfast at my house this morning and left at noon, going by way of Repton, Ala. Send Jackson with sufficient force to capture him.”

The express official who received the message had talked with Barnes and knew that Ward and Burrow were identical. There could be no mistake. Instant pursuit was organized.

Rube had called at the home of Barnes early in the morning and asked for something to eat. Barnes recognized him instantly as Rube Burrow, *alias* Ward. He felt sure that while piloting the detectives in and about Rube’s den in the canebrakes of Santa Rosa his identity had been disclosed and the outlaw had come to seek revenge. Barnes invited his unexpected and unwelcome guest in, with fear and trembling.

Rube being seated, Barnes went into the kitchen to assist his wife in preparing breakfast. Barnes said to his wife, who knew the history of his trip into Florida:

“That man is Rube Burrow, and I believe he has come here to kill me, and if he does so, you will know who murdered me.”

Barnes was without fire-arms of any kind, and although not wanting in courage, felt the struggle with the armed outlaw would be an unequal one if he should either attempt to arrest him, or if Rube should attack him.

Making an excuse to leave the house for a few minutes, Barnes sent a message to Mr. Johnson, a neighbor who lived only a half-mile distant, to come to his aid, but Johnson was not at home.

Rube’s breakfast was soon prepared, and as he seemed very peaceably inclined, Barnes incidentally mentioned that he had worked, in March, 1888, at a log camp in Baldwin County. Finally Barnes suggested that his

guest's face seemed familiar. Rube replied, "I guess not," and refused to renew his acquaintance with Barnes, and, as subsequent events proved, was firm in the belief that Barnes had forgotten him.

Rube provided himself with about two days' rations, which he paid Barnes liberally for, and resumed his journey, after making inquiries, according to his custom, for points in various directions.

Barnes went immediately to Castleberry and sent the telegram referred to, and waited there until joined by the express officials and detectives, at midnight, September 30th.

Detectives Jackson and Kinsler started on the trail at once. Detective Barnes, of the L. & N. Railway, accompanied them, having in charge a brace of well-trained blood-hounds, should their use become necessary. Jackson correctly surmised that Rube was making for Lamar County, and he therefore set out for Bell's Landing, about fifty miles distant, and on the line of route to Lamar County.

About noon the next day, and when within ten miles of the Alabama River, the detectives found they were but three hours behind the outlaw, who was traveling in the direction of Bell's Landing. Reaching the farm of John McDuffie, seven miles from Bell's Landing, Jackson requested his assistance, disclosing to him the information that he was in hot pursuit of Rube Burrow. McDuffie had been recommended to Jackson by the sheriff of that (Monroe) county as a brave and fearless man, and Jackson felt that his assistance would be, as subsequent events confirmed, a valuable acquisition to the posse.

Guarding all the adjacent landings on the river that night, the detectives were quite sure that Rube had not crossed the Alabama River at daylight on the morning of October 3d. While reconnoitering in the vicinity of Bell's Landing, about ten o'clock that morning a negro came with a message from Mrs. McDuffie that Rube was then eating breakfast at a negro cabin on McDuffie's farm, then six miles distant.



JOHN MC DUFFIE.

Under whip and spur John McDuffie led the party back to his farm. The cabin was quickly surrounded. It was soon ascertained that Rube had breakfasted, and taking the only boat at the landing had put himself across the river about thirty minutes before the arrival of the posse. Again had luck favored the outlaw, and a chance half hour's time had intervened to save him from certain capture.

It was discovered that Rube had made a bed of some brush under the cliff near the brink of the river and had slept there the previous night. His appearance at the cabin for breakfast was reported by the colored people to Mrs. McDuffie, who immediately sent a courier to her husband. A few minutes after the posse reached the cabin, Mrs. McDuffie, having walked from her home, two miles away, arrived.

“What are you doing here,” said her husband.

Mrs. McDuffie answered: “Oh, I thought the boy might not find you, and I would come down and get a good description of Rube, so as to help you to find him if he should leave.”

Mrs. McDuffie was escorted by Master McDuffie, only six years of age. Bravo to this courageous woman. While all who know her do homage to her many womanly graces, let the brave Mrs. John McDuffie be laurelled among the bravest of the matrons of the South.

An accurate description of Rube was obtained from the colored people, who reported that he had three pistols and a rifle.

The detectives were obliged to go down the river six miles before they could cross. Pushing forward, they crossed the Alabama River with all possible dispatch. Hoping that Rube would leave the swamps after crossing the river and take the one public highway leading towards Demopolis, a covered wagon was hired. Into this wagon the detectives and McDuffie crowded themselves and ordered the driver onward. The pursuit was now hot and success seemed certain. Every moment the posse expected to receive from the driver the preconcerted signal that the fugitive had been overtaken, when they would cover him with their guns and demand his surrender.

In eager expectancy the detectives journeyed for ten miles by wagon, and until darkness ended all hope of overtaking the outlaw that day. Sending back for their horses, the chase was resumed next morning on horseback.

When within two miles of Thomasville, Ala., Saturday, October 4th, the pursuing party found Rube only two hours ahead. From this point telegrams were sent to the express officials, who repaired to Demopolis, Ala., feeling confident that Rube was *en route* to Lamar County, and would cross the Tombigbee River in that vicinity.

Jackson pursued the trail in every possible direction from Thomasville, and confirmed his theory that Rube, traveling under cover of the woods, was avoiding the public highways. He therefore deemed it best to ride into Demopolis, thirty-five miles distant, that night, and organize other possees and guard all the adjacent river landings.

Early Sunday morning, October 5th, found the officers of the Express Company and the detectives in conference at Demopolis. It was decided to organize in a quiet way additional possees to guard the river landings and to search the northern district of Marengo County, in which it was certain the outlaw had gone. Scores of the good people of that section joined in the chase.

Marengo County, by Sunday night, had been organized into one vast army of detectives. At daylight on Monday morning it was known that Rube had not crossed the river. The search was therefore renewed with unceasing vigilance. Knowing that the outlaw was apt to visit a negro cabin for food, the white planters were apprised of the situation and were especially enjoined to put their colored employes on watch.

About midnight on Monday, Jackson and McDuffie returned to Demopolis, and no tidings of the outlaw, up to that hour, had been received. However, about three o'clock A. M., Tuesday, a courier, sent by Mr. D. J. Meadow, brought the news that Rube had been seen about dark three miles from Beckley's Landing, about eighteen miles south of Demopolis. It was surmised that the outlaw, being so close to the river, would possibly cross that night.

Jackson went down on the west side of the river, while McDuffie took the east bank. While *en route*, McDuffie was joined by J. D. Carter, who, infused by the spirit that prevailed among the good people of that section, expressed a desire to assist in the chase. McDuffie and Carter joined each other at noon, and deploying the men under him through the bottoms, McDuffie was soon alone with Carter.

Meantime Jesse Hildreth, a very worthy and reliable colored man, had discovered Rube in an abandoned cabin Tuesday morning. Hildreth had noticed smoke arising from the cabin chimney the night previous, and repairing thither early next morning found the outlaw asleep. He woke him and at once recognized the fugitive described to him the previous day. Rube said he was hunting work, and asked Jesse to get him some coffee. Jesse, pretending to be in search of his horse, told Rube he would go by home and order coffee sent him. Jesse kept watch on the cabin, and finding Rube about to depart, rejoined him at the cabin and endeavored to detain him by selling Rube his horse. Rube, however, did not want to buy a horse, and

asked the way to Blue Lick. Jesse, determined to keep Rube in sight, offered to go and show him the way. Rube mounted Jesse's horse, while the latter walked.

About noon, while passing the house of a colored man, George Ford, Jesse suggested to Rube, as it had begun to rain very hard, to stop and get dinner, and wait till the rain should be over. To this Rube consented. While dinner was being prepared, Jesse, on the alert for "some of the bosses," as he expressed it, went out of the house. Frank Marshal, a colored man, who was also looking for the stranger, at this moment rode up to the cabin. Jesse quickly explained that the man was in Ford's house, and while the colored men were in conference they discovered, to their great joy, two white men about a quarter of a mile distant, riding in their direction. Joining them at the foot of the hill the two men proved to be McDuffie and Carter.

Ford's cabin was in an open field, and McDuffie and Carter found they could not approach it within less than two hundred yards without being seen. It was agreed that Jesse and Frank should go ahead, enter the cabin, seize the outlaw, and give the signal to McDuffie and Carter, who would approach cautiously under cover.

Entering the cabin, the negroes found Rube making ready for his departure, having eaten dinner. He was wholly unsuspecting of anything wrong in the movements of the colored men, however. Rube was in the act of wrapping his trusty Marlin rifle in an oil cloth, when Jesse said:

"Boss, let me wrap it for you."

Rube handed the rifle to Jesse, who carefully wrapped it, and feigning to hand it back, dropped it. Quick as thought Jesse gathered his great brawny arms about the outlaw, and with a grip like that of an octopus he struggled for the mastery. Frank Marshal threw himself upon the outlaw at the same time, but not being very robust, was not able to greatly assist Jesse. The latter was as strong as an ox. His weight was one hundred and eighty lbs., his height about five feet ten inches, and there was not an ounce of surplus flesh upon him. He wore no shoes, and his great, broad feet looked as big as a pair of Virginia hams.

"Where was Frank while you were struggling with Rube?" said some one afterwards to Jesse.

“Fore de Lord, boss, he had his mouf full of Frank.”

Rube had caught Frank’s shoulder in his teeth, while Jesse grappled with him. Biting Frank and stamping Jesse’s bare feet, the outlaw struggled with herculean strength for liberty. He dragged his captors across the floor of the little cabin, shaking it from bottom to top. The noise of the scuffle within was heard by McDuffie and Carter, who meanwhile had been quietly approaching. Just at the moment when Rube was falling to the floor, the colored men on top, they rushed in, and seizing Rube, disarmed him. He was searched and tied before being allowed to rise. A Colt s revolver, forty-five caliber, and \$175 were found on his person.

The capture was made about one o’clock P. M., eighteen miles from Demopolis. His captors concluded to avoid the risk of escape consequent upon a journey after dark to Demopolis, and, therefore, took him to Linden, the county seat, only nine miles distant.

Rube was made to mount McDuffie’s horse, with his hands tied in front, his arms pinioned by tight cords to his body, and his feet tied underneath the animal. McDuffie mounted behind the prisoner, and, escorted by Carter and the two colored heroes, Hildreth and Marshal, the party set out for Linden, reaching there just at dark. The great desperado was in the toils of his pursuers at last. He was destined, however, in a short time, to outwit his captors, and to perform the last and most daring exploit of his career.

CHAPTER XX.

RUBE'S LAST DESPERATE ACT—ESCAPE FROM JAIL—THE DEADLY DUEL ON THE STREETS OF LINDEN—THE OUTLAW KILLED.

ON arrival at Linden, the sheriff being absent with the keys, the prisoner was taken to a room of the jail. The ropes still bound his hands, heavy iron shackles were locked around his ankles, and the chain uniting them was securely fastened to the floor.

McDuffie repaired to the telephone office and reported the capture to the express officials at Demopolis. After obtaining a full description of the outlaw from McDuffie, and being satisfied the right man had been captured, McDuffie was asked:

“How many pistols had he?”

“Only one,” said McDuffie.

“There must be some mistake,” answered the express official; “he had three when he crossed the Alabama River.”

“Rube says he has sold the other two,” was the answer.

“Rube never sells pistols,” replied the official, and knowing from the reports received that Rube always carried a sack, the inquiry was:

“What’s in the sack?”

“Nothing but provisions,” answered McDuffie.

The official then instructed McDuffie to handcuff and shackle the prisoner, put him in a cell of the jail and place half dozen men on guard.

McDuffie replied: “There are forty men on guard.”

Indeed, the whole town of Linden surrounded the jail, and McDuffie’s answer was not, perhaps, exaggerated.

When Rube's supper was brought his hands were untied that he might eat and they were not again manacled. Rube sat and joked with his guards and visitors, entertaining them with his droll humor, which seemed never to forsake him. His shoes were badly worn, and a visitor remarking it, said:

"Rube, your shoes are badly run down—you need a new pair."

"Yes," replied Rube, "some people always praise their shoes up, but I always run mine down."

One by one the visitors dropped out, and at midnight John McDuffie, Jesse Hildreth and Frank Marshall were left in charge of the prisoner. Carter, not feeling well, had retired to Glass' store, just across the street from the jail. He had possession of Rube's rifle and money.

George Ford, in whose cabin the capture occurred, found, after the departure of the prisoner, a greasy cloth sack, and knowing it to be the property of Rube, carried it to Linden, arriving some half hour after the prisoner. He deposited the sack on the steps of the court-house and reported the fact to the colored men, who informed McDuffie. It was said to contain provisions.

About four o'clock A. M. Rube complained that he was hungry. McDuffie said:

"You will have to await the usual hour for breakfast. I can not get anything to eat now."

"Where is my grub sack?" said Rube.

"George left it on the court-house steps," said Frank.

"Mr. McDuffie, please send Frank for it. I have some ginger snaps and some candy in it, and I will give the boys some; I reckon they are hungry, too," said Rube.

McDuffie consented, and when Frank returned he did not even look to see what was handed Rube. For full half an hour the wily prisoner sat eating ginger snaps and candy from the sack, which he occasionally shared with the colored men. Watching his chance, Rube suddenly pulled from the sack one of his trusty pistols, and covering McDuffie, who sat only about ten feet away, said:

“If you make a move I will kill you.”

McDuffie’s pistol was lying in a chair beside him. Rube, turning to Jesse, said:

“Hand me that pistol quick, or I will shoot your head off.”

Jesse tremblingly obeyed, and Rube covered all three of the guards with the two pistols. He then bade Jesse unlock his shackles. This being done, he said:

“Now put them on McDuffie.”

McDuffie protested and made a motion to approach Rube, but seeing he was powerless, said:

“All right, Rube; you have the drop, and can have your way.”

Rube then made Jesse shackle McDuffie and Marshal together. Taking the key of the jail-yard door from the chair where McDuffie had placed it, Rube, jumping up about two feet from the floor, cracked his heels together and exclaimed:

“I have the big key to the jail. I am boss of the town, and as some people say I am not Rube Burrow, I will paint Linden red, and show them who I am.”

He then ordered Jesse to go with him to find Carter. Carter’s exact whereabouts were not known to either Rube or Jesse. To the hotel and thence to the sheriff’s office they journeyed, and spending nearly an hour in a fruitless search for Carter, Rube thought Jesse was purposely delaying him.

“I will kill you,” said Rube, “if I find you are fooling with me.”

Jesse, however, was innocent. He did not know where Carter could be found. Further inquiry developed that he was in Glass’ store. Rube knocked loudly on the door, and stepping aside, covered Jesse with his pistol, and in a stern whisper said:

“Tell him the express people have come, and McDuffie wants him at the jail quick.”

A clerk answered the call to the door, and to him Jesse repeated the order in a voice loud enough to be heard by Carter, who was in the rear part of the store. Carter's footsteps could be distinctly heard as he came across the floor. Just as he appeared in the doorway Rube threw himself in front of him, and placing his pistol within a few inches of Carter's breast, commanded:

"Give me my rifle and my money, or I will shoot your head off."

Carter, instantly taking in the situation, replied, "All right," and placing his hand in his hip pocket, pulled a thirty-two caliber Smith & Wesson pistol.

The hour was just at dawn of day. The two men stood face to face, the one gleaming with rage and thirsting for revenge, the other cool, fearless and determined, with law and justice on his side, not to accede to the outlaw's demand.

When the sheen of Carter's pistol flashed upon Rube's vision the outlaw fired, and Carter, anticipating the shot, threw his body to the right. The ball pierced the left shoulder, just above the collar bone, making a painful wound. Carter's intrepid courage was not dashed by his wound, and he instantly returned the fire.

Rube, for the first time in all his career of crime, was called to stand and fight. He had "held the drop" on many a field of rencontre, but here was an even gauge of battle, with the *qui vive* as the vantage ground for him.

Carter boldly advanced upon the outlaw, and, with steady nerve, pressed the trigger of his faithful revolver, but Rube backed away after the first shot from Carter's pistol, and continued backing and firing until he had retreated some thirty paces, and until he himself had fired five shots. Just as Carter fired his fourth round, Rube turned, and running some ten paces, leaped a few feet in the air and fell prostrate upon the earth, stone dead.

After falling upon his knees, from loss of blood, Carter managed to fire a fifth shot. The fourth shot from Carter's pistol, however, had entered the upper abdomen, and cutting the portal artery, caused instant death. This was the only shot that hit Rube.

McDuffie and Marshal, meantime, by means of a duplicate key, had liberated themselves, and had visited several places in the town in the

endeavor to secure fire-arms with which to recapture Rube. Being unsuccessful, they reached the store just as the duel was ended.

Rube had given to Jesse the fateful sack as they started from the jail, and while the duel between Carter and Rube was in progress Jesse opened the sack, drew out a pistol, and rushing to Carter's assistance, commenced firing.

"Stand up to him, Mr. Carter; I'm gwine to be wid you," said the heroic Jesse. He fired two shots, without effect, however, and was the first man to reach the dead outlaw and take from his hand his smoking revolver. All honor to Jesse Hildreth. He has written his name in the annals of his race and times as a hero.

Rube's conduct in seeking out Carter and demanding his rifle and money has been reckoned as foolhardy. The truth is, however, that McDuffie had recited to him the details of the chase, and Rube knew that the detectives of the Southern Express Company were within a few miles, and that under their guidance armed possees were scouring the country in search of him. He had been told that the ferry landings were guarded, and that if his arrest had not been effected in the cabin he would have been captured on his arrival at the river landing for which he was *en route*.

Rube knew that blood-hounds were in leash, ready to be set upon his trail, and that it would be impossible to escape without his Marlin rifle, which was in Carter's possession. With this weapon, which chambered sixteen cartridges, he could have held a dozen men at bay, and perhaps might have effected his escape. His attempt to regain possession of it, therefore, was not foolhardy, but it was a *dernier* resort.



JEFFERSON D. CARTER.

Jefferson Davis Carter, who fought the duel unto death with the great outlaw, was named in honor of the President of the Confederacy. His ancestors, who moved from South Carolina to Alabama in 1832, distinguished themselves as soldiers both during the American Revolution and the late civil war. Young Carter was born in 1860, is unmarried, and is a prosperous merchant in the village of Myrtlewood, Ala. He is quiet and modest in his demeanor, and his encounter with Rube Burrow is the only time he was ever engaged in serious combat.

A very general interest has been manifested as to the condition of Carter's wound, and universal sympathy has been expressed in his behalf. He is now under surgical treatment at Mobile, and will remain there for some time. The ball from Burrow's pistol, a forty-five caliber, pierced the upper part of the shoulder, passing through the brachial plexus of nerves, and complete paralysis of the left arm has followed. It is possible that under careful antiseptic treatment the functions of the nerves may be restored, and the use of the arm fully regained. His general health has been restored, but he still carries his wounded arm supported by a bandage.

In a letter dated October 18th, 1890, Governor Seay, of Alabama, in tendering his congratulations to the officials of the Southern Express Company, writes:

"The running at large of the outlaw was a menace not only to the State but to this entire section of the country, and the ending of his career of crime is cause for congratulation to us all. Much as we would have preferred, by the regular course of law, to have marked a more ignominious end, his hardiness, his readiness and his desperation prevented this, but leaves to us the very satisfactory reflection that there was found in the lawful paths of life the courage, the presence of mind and the constancy which surpassed that of the outlaw himself."

J. D. Carter's name stands enrolled on the list of honor as the finest type of American courage and manhood exhibited in modern times.

Brave John McDuffie—what shall be said of him and of his discomfiture at being outwitted by his wily captive? McDuffie said to the express official, on his arrival at Linden, with whom he had talked through the telephone the previous night:

"I can not look you in the face, after all the caution you gave me last night."

Taking his hand and pressing it warmly, the official said:

"Be of good cheer, McDuffie. Napoleon made a mistake at Waterloo, Lee made a mistake at Gettysburg, and the heroic Custer made one when he rode down to death in the valley of the Big Horn. Greater men have made

greater mistakes on greater occasions, and but for you the chase would not be over and the battle won. 'All is well that ends well.'"

McDuffie had joined Detective Jackson on the afternoon of October 2d. From that hour he had been to the fore, riding night and day in the arduous chase that followed. Worn and fagged with the toils of the pursuit, he was perhaps less watchful than otherwise he would have been. *Humanus est errare*.

A coroner's inquest was held, and the body of Rube Burrow being thoroughly identified a verdict of death in the manner described was rendered. After treating the body with preservatives it was taken to Demopolis, Ala. Here hundreds of people assembled to view the remains of the great bandit.

On arrival at Birmingham, at three o'clock on the morning of the 9th of October, fully one thousand people were in waiting to get a glimpse at the body of the great train robber. Special officers were employed to keep the morbid crowd at bay. Photographs of the body were taken, and at seven o'clock A. M. the train leaving Birmingham for Memphis conveyed the remains to Sulligent, Ala. A telegram had been sent to Allen Burrow, stating that Rube's dead body would be delivered to him at noon that day at Sulligent. The father was there to receive it. A representative of the Southern Express Company said to him:

"We are sorry to bring your boy back in this shape, but it was the best we could do."

"I have no doubt," answered Allen Burrow, "that he was mobbed."

This sentiment was diffused among the friends of the outlaw, and finally found culmination in a sensational letter written from Vernon, Ala., and published in the Birmingham *Age-Herald*. The publication asserted that Rube had been mobbed, his neck horribly broken and his body shamefully mutilated. All this, despite the fact that the body had been viewed by newspaper correspondents at Demopolis and Birmingham, and by at least five thousand persons before it reached Sulligent. The body and face bore no marks of mutilation and no wound of any description, save the small bullet hole from Carter's pistol.

The remains of the most famous bandit of modern times were buried among the hills of Lamar County, in the quiet graveyard of Fellowship Church, on the morning of the 10th of October, 1890, on the very spot where, a year before, he had enlisted Rube Smith as a member of his unlawful band—a strange coincidence, surely.

The train robber's pistols, belt and Marlin rifle were taken to Memphis, Tenn., and the publication of the chase and capture by a Memphis journal, accompanied by illustrations of the pistols and cartridge belt, and the announcement that the arms would be on exhibition at its office that morning, created a remarkable and unexpected effect. The rush of visitors that ensued was extraordinary, and is mentioned here merely to show the wonderful interest with which the career of Rube Burrow imbued all classes of people. Early in the morning the first callers were the newsboys, porters and clerks. All wanted to see and handle the weapons of the great outlaw. Later, merchants, bankers, lawyers, shop-keepers, all alike interested, left their places of business to view the weapons. It became necessary to place the pistols and belt in a glass case and hang the rifle beyond reach, and still the crowd continued to gather.

The weapons were on exhibition for several days, during all of which time the influx of visitors never ceased. Rich and poor, male and female, black and white, all were possessed of the same curiosity, and the deeds of the outlaw were discussed by some with admiration for his courage, by others with an expression of detestation of his crimes—by all with a feeling of relief that he was dead.

CHAPTER XXI.

TRAGIC SUICIDE OF L. C. BROCK, ALIAS JOE JACKSON— HE LEAPS FROM THE FOURTH STORY OF THE PRISON INTO THE OPEN COURT, SIXTY FEET BELOW, CAUSING INSTANT DEATH—HIS LAST STATEMENT.

L. C. BROCK, *alias* Joe Jackson, was placed in the penitentiary at Jackson, Miss., for safe keeping, on the twenty-first day of July, pending his appearance for trial at the November Term of the Federal Court. He had elected to plead guilty, and receive a sentence of life imprisonment for the offense of robbing the United States mail at Buckatunna, Miss., September 25, 1889, rather than be taken to Duck Hill, because the penalty of death by hanging he knew would be his fate. Again, he felt that the outraged friends of Chester Hughes, the heroic passenger who had, in assisting Conductor Wilkinson on that fateful night, been shot down in cold blood, would probably mob him if taken there for trial, and fearless and bold as he was, his heart quaked within him whenever the alternative of being taken to Duck Hill was presented to him. Again and again he had been told by the officials of the Southern Express Company that whenever he repented of the conclusion he had made to plead guilty to the Buckatunna robbery and testify against Smith, that the confession he had made could be withdrawn, and he could elect a trial for the murder at Duck Hill.

Meantime Rube Smith, unaware that Brock had made a confession, had notified the officials of the Express Company that he would turn state's evidence against Brock, provided a *nolle pros.* could be entered in his case in the Federal Court. Rube Smith's proposition was, however, rejected, but Brock was told of Smith's offer to testify against him, and thus he found the coils tightening, day by day, about him. On August 22d Brock, under the assumed name of Winslow, the name he at first gave when captured, wrote the following letter to his uncle, at Pleasant Hill, La.

JACKSON, MISS., August 22, 1890.

J. T. Harrell, Pleasant Hill, La.

Dearest ——:

I wrote to you some time ago, but as you neither come nor wrote I will write again. I have some very important business, would like to have you attend to and if you will come I will pay your expences and pay you any price beside. the business I want you to do for me is to sell my land. I do not think it will be any trouble to sell it for the cash. if you can come please come soon. if not write and let me know if you will come. remember I will pay you well besids expences. I am very anxious to see you as I wrote you before if you come come to the penitentiary and call for J. B. Winslow or if you do not come address letter to J. B. Winslow, care M. L. Jenkins, Jackson, Miss. My health is very bad. Guess it will puzzle you to read this, am writing on my knee, not even a book to lay my paper on. I will not put my right name to this. I am sure you will know the writing anyhow. So I will close, hoping to see you soon.

Respectfully &c.

J. B. WINSLOW.

N. B. Be sure to come and come in a very few days. I want my land sold now rite away and I will pay you a hansome price to go and make the trade for me. Come as soon as you get this.

Goodbye, Your friend.

Mr. Harrell called on his nephew, Brock, about September 1st, succeeding the date of his letter, and for the first time learned that his nephew was charged with murder and train robbery. He had no idea who J. B. Winslow was until he met his nephew face to face, within the walls of the state-prison. The scene was an affecting one. The conversation between the two occurred in the presence of Sergeant Montgomery, of the prison. Brock made no effort to secure counsel, or to summon any witnesses, but merely expressed a desire to have his uncle sell his land, a tract of two hundred acres owned by him in Coffee County, Ala., and turn the proceeds over to his mother.

On the 16th of October, by appointment, the U. S. District Attorney, A. M. Lea, Col. J. H. Neville, Special Counsel employed by the Government to assist in the trial, and the express officials, who were familiar with the facts, all met at Jackson, Miss., to arrange for the approaching trial of L. C. Brock and Rube Smith. All of these gentlemen called in company upon Brock, in his cell at the penitentiary, and District Attorney Lea told Brock if he had any witnesses he desired summoned he would have subpoenas issued, and that he was free to choose as to whether he would plead guilty or employ counsel. Brock then and there reiterated his determination to plead guilty, so frequently made prior to that time to the author, and said he had no money, and did not intend to employ any counsel. He said he was willing to testify against Smith, but remarked:

“What will people think of me for doing that—see how the world looks upon Bob Ford?”

When told that all fair-minded and Christian people would applaud him for standing on the side of honesty and truth, he added:

“Well, the Bible does not give Judas Iscariot a very fair name.”

And so it was easily discovered that the ill-fated criminal was battling against opposing ideas. On the one hand he was confronted with the certainty of conviction and an ignominious death at the hands of the hangman, on the other life imprisonment, with the added alternative of standing as a witness against his copartner in crime and assisting to fasten guilt upon him. He had often said:

“I prefer death to imprisonment for life, for what is life without liberty.”

On Saturday, the 8th of November, two days before his suicide, he said to a fellow prisoner, whose hat was worn and old:

“You need a new hat; you may have mine Monday.”

Brock had evidently made up his mind, as indicated by these remarks, to take his own life. About nine o'clock on the morning of November 10, 1890, the day set for his trial, Detective Thomas Jackson and United States Marshal Mathews went to the penitentiary building to bring the prisoner to the Federal Court, as he had been notified would be done. Sergeant Montgomery sent the officer of the prison charged with the special

surveillance of Brock to bring him into his office, where the detective and marshal awaited him. At night he was confined in one of the cells on the ground floor of the prison, but was permitted to occupy during the day one of the guard rooms situated on the third floor of the building. The prisoner was in this room when the keeper went after him to bring him to the sergeant's office. Just as the keeper was in the act of unlocking the door, Brock walked to the iron barred window of the room, and beckoning to a fellow convict standing in the yard of the prison, threw out of the window the following note:

NOVEMBER 10th, 1890.

To all who may read this, I write this to inform you that my name is L. C. Brock; was born and raised in Coffee county, southeast Ala. and I am not guilty of the crime for which I am imprisoned. I am innocent, the God of Heaven knows it. I have suffered all the while for the crime of some one else. On the 29th of September I wrote to L. B. Moseley, Deputy U. S. Marshal, Jackson Miss. to come and get the names of my witnesses. he has not come yet. I do not believe the letter was mailed to him at all. through August I had fever and nothing to lay on up stairs (daytime) but the floor, fainted 25 or 35 times from weakness. I am telling this to show or give you an idea of how I have been treated. They entend to force me to a trial without my witnesses. You show this to any and all if you wish.

Respectfully,

L. C. BROCK.

The officer, unlocking the room door, announced that he had come to take him to the sergeant's office, where the marshal and Detective Jackson were in waiting to take him to the courtroom. "All right," said Brock, and immediately followed the officer out.

The penitentiary cells are four deep, one above the other, around a large corridor, eighty feet long, making an open court sixty feet deep. When the prisoner reached the head of the stair-way, in front of the door of his room, instead of descending with the officer he turned down the hall-way and commenced to ascend the stair-way leading to the fourth floor. At the same

time he drew a murderous looking knife, which he had secured and secreted in some unaccountable manner, and bade the guard stand back or he would cut him. Sergeant Montgomery was at once notified of the unusual conduct of the prisoner, and, in company with Detective Jackson and Marshal Mathews, immediately repaired to the rotunda of the court and inquired of the prisoner what he meant by such conduct. Brock was then calmly walking to and fro along the floor of the fourth story brandishing his knife, and at once declared his intention to jump to the ground beneath and kill himself. Meantime the note thrown from the window had been handed to the officers of the prison, and Brock was asked to name the party to whom he had given letters, asking that witnesses be summoned. This he refused to do, but stated that the Southern Express Company intended to “railroad” him either to the gallows or to life imprisonment without giving him even the shadow of a showing, whereupon Marshal Mathews assured him that he should not go to trial without counsel, and further stated that he would see that all the witnesses he desired should be summoned.

Brock refused to come down, and, despite the assurances and entreaties of the officers, continued to repeat his intention to take the fatal leap. The stern and determined expression upon the desperate man’s face, his cool and collected demeanor, convinced all who saw and heard him that an awful tragedy would soon be enacted.

At this juncture the prisoner placed a table near the balcony railing, mounted it, declared he was alone and friendless in the world, and preferred death to life imprisonment. He asked that his uncle, Mr. Harrell—then at Jackson, although the prisoner did not know it—be telegraphed the information of his death, and that his body be sent to his mother.

Sergeant Montgomery, meantime, had conceived the idea of climbing the latticed walls of the court, and while the other officers diverted his attention, would reach the fourth story, directly under him, and overturn the table, and before the prisoner could regain his footing he would pinion him and prevent his suicide. Divesting himself of coat and hat, the Sergeant climbed as far as the third story, when he was prevailed upon not to risk his life in such a hazardous feat, as the prisoner would undoubtedly knife him before he could carry out his project. He then came down.

The officers vied with each other in appealing to the prisoner's manhood, and entreating him to forego the fatal project. Finally Detective Jackson and Marshal Mathews noiselessly went up the stair-way until they stood on the landing just behind and about six feet from the prisoner, urging him all the while to put away his knife and come down stairs. Detective Jackson, approaching within three or four feet of the prisoner, said:

"Joe, you are not going to jump, are you?"

"Yes, I am," replied the prisoner, and stepping from the table to the railing, he sprang head foremost into the awful space. Vaulting over and over in his rapid flight to the stone-covered corridor, sixty feet below, he fell, crushed and bleeding, with a sound that reverberated through the long tiers of cells, from which the gaping eyes of his fellow prisoners looked, in speechless horror, upon a tragedy so appalling as to make strong men shudder and turn pale. The unfortunate victim of his own desperation lingered for about one hour, unconscious, his body writhing in horrible contortions until death ensued. He was buried in the prison cemetery at Jackson at five o'clock on the evening of his death.

The author, having repeatedly visited Brock while confined at Jackson, takes pleasure in acquitting the officers of the State penitentiary of any maltreatment of the prisoner.

The prisoner made no attempt to secure witnesses; in fact, repeatedly stated he had none. The statement written and thrown from the window, is, therefore, not entitled to credit. A few minutes before his suicide he freely confessed to having received fair treatment at the hands of the prison officials.

The following lines were found on his person after death, indicating that the bold outlaw, in his hours of retrospection, had garnered the bitter fruitage of despair and remorse so aptly depicted:

"How wise we are when the chance is gone,
And a glance we backward cast.
We know just the thing we should have done
When the time for doing is past."

CHAPTER XXII.

RUBE SMITH'S TRIAL FOR THE BUCKATUNNA MAIL ROBBERY—AN UNSUCCESSFUL ALIBI—PERJURED WITNESSES—MASTERLY SPEECHES—CONVICTION AND SENTENCE.

THE tragic and appalling death of L. C. Brock, *alias* Joe Jackson, while it spread consternation among his fellow prisoners and disturbed somewhat the serenity of the Court, did not impede the course of justice. The trial of Rube Smith for the Buckatunna mail robbery was proceeded with in the Federal Court, Judge R. A. Hill presiding, as though nothing had occurred. It was of but little importance to the defendant whether he should be tried at that time or later. He had already been convicted in the State Court for the express robbery and sentenced to imprisonment for ten years.

His defense was conducted in a skillful and able manner by Colonel John A. Blair, of Tupelo, Miss. The Government was represented by Captain A. M. Lea, United States District Attorney, who made a masterly presentation of the case in behalf of the prosecution. Captain Lea was assisted by Col. J. H. Neville, the brilliant Prosecuting Attorney for the Second Judicial District of Mississippi. Col. Neville had successfully conducted the prosecution for the express robbery, and had, on account of his familiarity with the facts and his recognized ability, been employed by the Department of Justice to assist in the prosecution.

The *corpus delicti* was proved by the introduction of the conductor, engineer, express messenger and the railway mail agent. Neil McAllister, a very sensible colored man, in whose cabin the robbers spent two days immediately preceding the occurrence, identified Rube Smith as one of the men who had occupied his cabin, and disappeared on the morning of the robbery. W. D. Cochran, an intelligent farmer of the vicinity, also identified Smith as being in that locality two days before the train was robbed. McClung's testimony, reciting all the details of the robbery as given him by

Smith, was corroborated by the engineer and other train employes. The letters written by Smith, his proposition to become a witness for the prosecution against Brock, which was declined, all formed links in the chain of testimony against him which the skill and ability of defendant's counsel could not weaken or break. The father of the prisoner testified that his son had slept at his home in Lamar County on the night of the Buckatunna robbery. James Barker and Jasper Smith, the former an uncle by marriage, and the latter a first cousin of the defendant, both testified unscrupulously and recklessly in support of the *alibi* sought to be established.

As a fitting climax to the trial, otherwise famous as it had been rendered by the tragic events that had so closely preceded it, James Barker and Jasper Smith were arrested for perjury immediately on leaving the witness stand. The Grand Jury being in session they were indicted at once, and finding that any defense would be useless, both entered a plea of guilty. James Barker was sentenced to three years' and Jasper Smith to two years' imprisonment at hard labor at Detroit.

Consequent upon the arrest of the defendant's witnesses for perjury originated a good story on Colonel Blair. Jim McClung, Smith's pal, had been confined in default of bond in the jail at Jackson as a witness. When James Barker and Jasper Smith were arrested they sent for Colonel Blair, who went to the jail to visit them. On entering, Colonel Blair found Jim McClung playing a game of solitaire in the hall of the jail. Jim is wholly illiterate, but was possessed of a good deal of droll wit that made him an entertaining witness. The following conversation ensued between Colonel Blair and Jim McClung:

Col. B.—"Good morning, Jim. How are you this morning?"

Jim McC.—"Only tolerbul, Colonel—not feelin' very well. How are you?"

Col. B.—"First rate, Jim, but I am not surprised that you are not feeling very well. I don't see how a man can feel very well who has (alluding to his testimony against Smith) put his friend in prison, as you have done."

Jim McC.—"Well, now, Colonel, look here. Before you come into this case there warn't but one of my friends in prison, and now you have been a

foolin' with the case sence last spring and you've got three of 'em in. How is that? Eh?"

The joke was on the gifted and brilliant attorney. He had been powerless to stem the tide which swept his client and witnesses alike into the prisoner's cell.

On the eighteenth day of November, 1890, Rube Smith was brought before the bar of the Court by the marshal, and asked by the venerable Judge presiding if he had anything to say as to why the judgment of the law should not be pronounced upon him for the crime of which he stood convicted. The prisoner replied he had nothing further to say, whereupon Judge Hill addressed him as follows:

"Mr. Reuben Smith, the crime of which you stand convicted, and for which it becomes my duty as presiding Judge of the Court to pronounce against you the penalty of the law, which is confinement at hard labor in the penitentiary for the remainder of your natural life, is that of forcibly and violently robbing the United States mail. This crime is the highest crime known to the law of the United States, save that of murder and treason, and is punished with the severest penalty save that of death. The reason therefor is that the robber usually engages in robbery with the determination to murder his victims if necessary to carry out his purpose.

"It is sad to behold a young man like yourself, who, by an upright and virtuous life, might have been an honorable and useful citizen, enjoying the blessings of the most refined and elevated society, banished, as it were, from all that renders life desirable. The evil consequences of your crime are not confined to yourself. For to save you from the punishment of your offense no less than five of your family and friends have perjured themselves to establish an *alibi* in your behalf, for which offense two of them have already pleaded guilty and are condemned to serve terms at hard labor in the penitentiary—a punishment the more serious in its consequences because not confined to themselves alone, but to their helpless families and children as well.

"Sad as these consequences are, you may, and it is your duty, to repent of your offense against the laws of the State and the Nation, and against your Maker, your family, and your own well-being, and commence a new life by obeying strictly all the laws of God and man, and especially the

regulations of the prison in which you will be confined. If you do this, in the course of time the President may grant you a pardon; but whether this is granted or not, your best interest is to obey whatever may be required of you, and also to employ all of the means that may be offered you to improve your mind and your morals, and to make preparations for the final judgment.

“I feel assured that if you conduct yourself properly you will be not only treated well, clothed and fed well, but will receive as kind treatment as the circumstances will permit.

“Will you promise me that you will follow this advice? (The prisoner replied in a subdued tone, “I will follow your advice.”)

“The judgment of the Court and of the law is, that for the offense for which you stand convicted you be delivered to the warden of the penitentiary of the State of Ohio, at Columbus, and be there imprisoned at hard labor for and during your natural life.”

CHAPTER XXIII.

CONCLUSION.

“An honest tale speeds best, being plainly told.”

IF the reader has been disappointed in the fact that the hero of this narrative has not been vested with the glamour of princely wealth; that he has not been painted a knight-errant of more romantic type; and that a champion in the field of pillage and plunder should not wear golden spurs and a helmet of brass, the fault lies not with the author, but rather with the popular error which pre-supposes these fallacious results.

The stereotyped question of all interested in his career has been, “What did Rube Burrow do with his money?”

The accuracy of the statement is vouched for, that in all of the eight train robberies, from Ben Brook, Texas, to Flomaton, Ala., reckoning his share as equal with that of his companions in crime, Rube Burrow secured not exceeding *five thousand five hundred dollars*. He invested, in the spring of 1887, about four hundred dollars by purchasing a one-half interest, with his brother, in a few acres of land in Texas. Soon after the Genoa robbery he purchased for sixteen hundred dollars the farm on which his father now resides in Lamar County, paying four hundred dollars cash and giving his note for twelve hundred dollars. A few weeks after the Buckatunna robbery this note, through his father, was paid, some of the currency used being subsequently identified as part of that stolen at Buckatunna. The residue, the pitiful sum of three thousand five hundred dollars, was spent in the vain endeavor to avoid the ceaseless pursuit organized against him, and which made the latter years of his life an intolerable burden.

In the autumn of 1889 Rube Burrow made, through one of his kinsmen, a proposition to the officers of the Southern Express to surrender, upon the condition that he would not be tried for the murder of Hughes or Graves. The proposition was, of course, promptly declined.

L. C. Brock, *alias* Joe Jackson, stated, after his arrest, that he had at one time made up his mind to seek an interview with Detective Jackson, with a view of making some conditions for his own surrender, but Rube's proposition having been declined he gave up the project.

Although lawless by instinct, training and ambition, these men had drunk the bitter cup of crime to the dregs, and longed, no doubt, to enfranchise themselves from the toils that beset them, and which, like an avenging Nemesis, pursued them to the end.

The Southern Express Company expended, independently of all rewards, about twenty thousand dollars in the hunting down of this band of train robbers. The total rewards offered for Rube Burrow amounted to about \$3,500. The rewards of \$1,000 by the United States Government, and \$250 by the State of Mississippi, have been, so far, withheld, because the language of the statutes, both Federal and State, under which the rewards were offered, required conviction in the courts.

Inspector A. G. Sharp, of the United States Postal Service, who has been very zealous in urging that the rewards offered by the Government be paid, writes under date of December 17, 1890, as follows:

“While in Washington recently, I laid the matter of reward for Rube Burrow and Joe Jackson before the Postmaster-General and the Chief Inspector, and strongly urged that the rewards for both be paid, and the question of conviction be waived. I believe the claims to be just, and that good policy suggests prompt payment. I feel satisfied that the Postmaster-General will accept my advice in the matter, and that the rewards for both will be paid in full. Of this, however, I can not speak positively; but from the reply made by the Postmaster-General, to my earnest solicitation, I feel justified in saying that I have strong reasons for believing that he will make the order allowing the rewards.”

All other rewards for Rube Burrow have been paid to Carter and his associates. The rewards for Brock and Smith, excepting those offered by the Government and the State of Mississippi, have also been paid to the parties interested.

William Brock, of Texas, was in nowise related to L. C. Brock. The two men never met, and that two of Burrow's clansmen bore the same name was merely a coincidence.

The question recurs, "Does train-robbing pay?"

Here were men whose untoward inclinings, fostered by evil association, inflamed them with a passion for lawlessness. Their brawny arms were uplifted against the laws of God and man for ambition's sake. They loved pillage for booty's sake.

Behold the hapless fate of the five men who linked their fortunes together, commencing with the date of the Genoa robbery in December, 1887. William Brock, although sentenced to a short term of imprisonment, will carry to his grave the stigma of an ex-convict. Rube Smith has entered the gloomy portals of a prison, in which he is doomed to spend the remaining days of his life—a fate more horrible than death.

Rube Burrow, Jim Burrow and L. C. Brock lie in unhallowed graves, their memories kept alive only by the recollection of their atrocious deeds, leaving their kindred and friends to realize the bitter truth that

"The evil that men do lives after them;
The good is oft interred with their bones."

Verily, "the way of the transgressor is hard"—"for whatsoever a man soweth, that shall he also reap."

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Misspellings and poor punctuation in some letters have been retained.

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